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PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Thursday, 5th February, 2026

*The House met at the Chamber,
Parliament House, at 2:20 p.m.*

[HON FIRST DEPUTY SPEAKER, MR
BERNARD AHIAFOR, IN THE CHAIR]

[PRAYERS]

Mr First Deputy Speaker: Hon Members, I crave your indulgence to announce the presence of student visitors in our midst.

We have the Communication Students of Ghana (UDS), and they are led by their president, Mohammed Abdul Fatawu. They are from the Tolon Constituency and are 54 in number.

We also have Peniel City School, led by their Director, Reverend Opoku Acheampong. They are also from the New Juaben South Constituency and are 34 in number.

We have Uthman Bin Affan Islamic Senior High School, led by Benjamin Arthur, a teacher. They are from the Ellembele Constituency and are 124 in number.

[Students of Communication Students of Ghana (UDS) were acknowledged.]

[Pupils of Peniel City School were acknowledged.]

[Students from Uthman Bin Islamic Senior High School were acknowledged.]

Mr First Deputy Speaker: Hon Members, on your behalf, I welcome our dear students to the Parliament of the Republic of Ghana. You are all welcome. May you have a fruitful visit to Parliament. Please, kindly resume your seats.

Yes, Alhaji Habib Iddrisu?

Alhaji Habib Iddrisu: Thank you, Mr Speaker.

Mr Speaker, I want to draw your attention to Article 102 of the 1992 Constitution and with your permission I read;

“A quorum of Parliament, apart from the person presiding, shall be one-third of all Members of Parliament.”

Mr Speaker, I am fortified by Standing Order 64. This is a Chamber made up of 276 Members and at the moment, we are 25. We have a so-called supermajority of 189. At the moment, there are about 16 of them here.

Mr Speaker, they cannot take the votes of Ghanaians for granted. They gave them the numbers of a supermajority for a reason, which is to conduct Government Business. Just yesterday, the 24-Hour Economy Bill was laid. Yet, Members of Parliament will not be in the Chamber to attend to Government Business.

Mr Speaker, I invite you to apply the rules. If they are not ready and we do not have the number to continue the Business of the day, then we should adjourn. Then, Ghanaians will know that they do not

deserve that supermajority that was given to them. Hence, they should give it to us and we would be able to handle it.

Thank you, Mr Speaker.

Mr First Deputy Speaker: But let us use the opportunity to address this issue once and for all. The Constitutional provision says, “apart from the person presiding.” However, in the case of *Justice Abdulai v. Attorney General*, the Supreme Court has given an interpretation to the effect that, if the person presiding is a Deputy Speaker, that person should be counted as part of the quorum. Do you still stand by your words?

Alhaji Habib Iddrisu: Mr Speaker, Standing Order 64(2) makes it clear and that is why I said I am fortified by Standing Order 64(2). The Order makes it clear that,

“...where a person presiding is a Deputy Speaker or a Member, that person shall be counted as part of the quorum.”

So, yes, I counted you as part of the number 25 I stated.

Mr First Deputy Speaker: We are looking at it in view of the provision that you have read from the Constitution states that “apart from the person presiding” and I am the one presiding.

Alhaji Habib Iddrisu: Mr Speaker, I quoted the Constitution and I said I am fortified by Standing Order 64 which includes you. So, you are included in the 25. We cannot have a Majority of 189 Members, yet they cannot raise 91 people to commence Business. This is not acceptable.

Mr Speaker, I know that you are a very experienced legislator and I know the angle you might be coming from. But please, the

Majority Chief Whip has a very good force behind him with Members numbering 189 and for that matter, he must provide the quorum to commence Business.

Mr Speaker, thank you.

Mr First Deputy Speaker: Yes, can I hear those from the Majority.

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, I have listened carefully to the First Deputy Minority Whip, drawing your attention to the supposed absence of quorum—*[Interruption]*—for commencement.

Mr Speaker, he invoked Article 102 and our Standing Order 64. If he adverts his mind to Order 64 (3)—Mr Speaker, with your permission, may I bring to the attention of the House, the terms of that rule. It says;

“A Member may draw the attention of the person presiding at any time during a sitting, that Members present in the House constitute less than one-third of the number of all the Members of Parliament.”

Mr Speaker, the consequential rule in Standing Order 64(4) is the effect that, “The person presiding shall...” which is Mr Speaker, in this case,

“...shall direct the Clerks-at-the-Table to cause the bell to be rang;

(b) continue the business of the House for a period of ten minutes;

(c) direct the Clerks-at-the-Table to conduct the head count of Members present;

- (d) if there is still no quorum, suspend the sitting of the House for a period of not more than one hour”.

2:30 p.m.

Mr Speaker, instead of the Member urging you to proceed within the terms of Standing Order 64(4), he went to town and played politics that we have 189 Members and all that. Those matters are not captured by the Standing Orders—*[Laughter]* There is a procedure provided under the rules for how this ought to be done. So, he should draw the Speaker’s attention to the procedure, let the bell be rung by all means. Let us proceed with Business. After ten minutes, then Speaker can call the Clerks-at-the-Table to do a head count.

So, the procedure provided under Standing Order 64(4) will have to be triggered and Mr Speaker will cause the bell to be rung. This is a journey to nowhere, Hon Habib Iddrisu. We will follow the procedure but I can assure him that by the time the bell is rung and the head count is done; we will marshal in the numbers. The Members are within the precincts of Parliament; they are in their offices. We have just commenced. Do you understand? So, this attempt to try and do politics—this is Friday politics and today is Thursday—*[Laughter]* It is premature so, wait to do this tomorrow. Today is so premature.

Mr Speaker, let us ring the bell and then we would—

Mr First Deputy Speaker: Two Leaders cannot be standing at the same time. I can only listen to one person at a time.

Mr Dafeamekpor: Mr Speaker, may I urge you that the procedure under Standing

Order 64(4) be triggered so that we can deal with this matter. On those terms, I urge you to continue to deal with the proceedings.

Mr Frank Annoh-Dompreh: Mr Speaker, let me say that we on this Side of the House have resolved not to activate the provisions of Article 102 and Standing Order 64. But the extent to which we are going is taking something away from the credibility of this House.

Mr Speaker, by 1:30 p.m., I was seated. Half past one 1 p.m. I was here. Most of my Hon Colleagues were all here. I came here and the Frontbench was empty except Hon Isaac Adongo who was in the Chamber.

Mr Speaker, I am making this argument beyond the provisions of the Constitution and the Standing Orders. Now, I sympathise with my good Friend, clearly struggling to make reference to Standing Order 64(4). It would not take him to remind the Speaker. As experienced as Mr Speaker is when it comes to procedure. So, it would not take, with the greatest respect to the Majority Leader to tell the Speaker that he should revert his mind to Order 64(4).

Mr Speaker knows what to do. Now, the Majority Leader also just walked in. Majority Side, please be guided. Be guided. Ghanaians gave them a whooping Majority of 189 and they cannot get a quorum. It is pathetic. We do not mind to even withdraw this application. But Ghanaians are watching them. The good people of this country are watching them. They come to the Chamber as and when they will. When the Speaker walked in, all of them, the Frontbench, none of them were here. None of the five of them was here. What are they taking Ghanaians for? What are they taking the good people of this country for?

Ghanaians have given them a whopping majority, make good use of the Majority. What is that?

Mr Speaker, this is free counsel to them. In the days ahead of us, they should make sure they marshal their numbers and we are not going to treat them with kid gloves at all. They are out there talking about having the super majority and they are struggling in the Chamber. Go out there and call your people. Step out of the Chamber and call your Majority. Look at all the empty seats. Look here. Empty seats. Why? We are not in government. Look behind me, we are not in government. Empty seats all around, why? I know the President is not in town but the Vice President is. I do not know if it is the case that the Majority Chief Whip is struggling to reach some of the Members of Parliament because of their eminent Presidential election. [Uproar]

Mr First Deputy Speaker: Hon Minority Chief Whip and Hon Members, when an issue is raised on the floor of the House, I believe we should deal with the issue and restrain ourselves from speaking about tangential matters.

Mr Annoh-Dompreh: Mr Speaker, I have withdrawn that.

Mr First Deputy Speaker: Hon Members, my attention has been drawn—

Mr Annoh-Dompreh: Mr Speaker, can I conclude?

Mr First Deputy Speaker: When the Speaker is speaking, all other persons must listen to the Speaker in silence. That is what the rules say. Hon Members, the attention of the Speaker has been drawn to Article 102 and Standing Order 64. Then, immediately, I raised an issue that we should use this as

an opportunity to deal with it. Why? Article 102 says that;

“A quorum of Parliament, apart from the person presiding, shall be one-third of all the Members of Parliament.”

Now, if we look at Order 64(2), it says;

“Where the person presiding is a Deputy Speaker or a Member, that person shall be counted as part of the quorum.”

Now, if we look at this provision, and the Constitutional provision, there is a problem there. I believe the Standing Orders, are crafted based on the interpretation given by the Supreme Court in the case of *Justice Abdulai v the Attorney General*. All that the Majority Chief Whip is saying is adding credence to the issue raised by the Deputy Minority Whip, that by Standing Order 64, when the attention of the Speaker or a person presiding is drawn to the absence of quorum, the procedure is spelt out in Order 64(4).

2:40 p.m.

Hon Members, I intend to follow Order 64(4)(a) which says that:

“The person presiding shall

- (a) direct the Clerks-at-the-Table to cause the bell to be rang;
- (b) continue the business of the House for a period of ten minutes;
- (c) direct the Clerks-at-the-Table to conduct a head count of members present; and

(d) if there is still no quorum, suspend the sitting of the House for a period of not more than one hour.”

So, when a procedure is set down for a right to be exercised, it accords with common sense and reason to follow the procedure in exercising the right.

On that note, I will direct the Clerks-at-the-Table to ring the bell as we continue with the proceedings of the House.

Mr Ayariga: I think you should hold on for a moment, Mr Speaker. That is because when he got up and caught your eye and raised these issues, he did not stop at raising the issues. He went on several tangents, raising irrelevant matters. Mr Speaker, I know there is a rumour in town that—

[Expunged by order of Mr Speaker.]

Alhaji Habib Iddrisu — rose —

Mr First Deputy Speaker: Hon Habib Iddrisu, are you up on point of order? Why are you rising?

Mr Ayariga: Who does not know that in this House—

Mr First Deputy Speaker: Hon Majority Leader— Hon Habib Iddrisu, why are you on your feet?

Alhaji Habib Iddrisu: Mr Speaker, you guided the Majority Chief Whip when he was going on a different tangent that he should not go on that tangent. So, Mr Speaker, with respect, let us go by the provisions that you have quoted. And from

what we know of what he is saying, there is nothing like that on our Side.—

[Expunged by order of Mr Speaker.]

Mr First Deputy Speaker: Hon Habib, why are you complaining about the very thing that you are doing? Majority Leader, please conclude. Yes, let me hear the Hon Second Deputy Speaker.

Mr Andrew Asiamah Amoako: I was going to say that the Majority Leader has come out with a serious joke. So, I am probably asking him to withdraw too. But, listening to my Brother, Hon Habib Iddrisu and the tangent he is also taking, I do not know whether I can put in that application that we ask the Majority Leader to withdraw. It is a serious joke.

Mr First Deputy Speaker: Majority Leader, may you please conclude then, I will give my direction.

Mr Ayariga: Mr Speaker, I do not think that the issue of our quorum is being sustained. We know that the Rt Hon Speaker had an event and invited Leadership, and we all went there. Since then— A lot of MPs are in their offices and as we can see, they are trooping in so that we can conduct Business, so, I plead with my Colleagues on the other Side.

Even I— Mr Speaker, had gone as far as Adjen Kotoku to tour the onion market where a lot of our people from the north bring in the onions and sell to those of us who live in Accra here. They had some issues, so, they invited me to come and look at it. I went there, and it is the reason why I am a little late myself.

So, I plead with Colleagues on the other Side that we should stand down the issue of quorum so that we can conduct Business. Our Colleagues are coming in.

Mr Amoako: Mr Speaker, I made a passionate appeal. My application is that both the Majority Leader and the First Deputy Minority Whip—their comments for me, even though we may take it lightly —

Mr First Deputy Speaker: I will accede to your request and ask the *Hansard* to have those comments expunged from our records as if they do not exist.

Mr Annoh-Dompreh: Mr Speaker, on that score and the application made by the Hon Second Deputy Speaker, I am happy you have acceded to that request and also duly directed. So, to that extent, we on this Side will want to unreservedly withdraw the application related to quorum and also to remind our super Majority that indeed, they need us.

Mr First Deputy Speaker: Hon Annoh-Dompreh, if you want to tow that tangent, I am inclined to direct the Clerk to ring the bell for 10 minutes.

Mr Annoh-Dompreh: Mr Speaker, I am your Friend, but these days, the way you treat me—Even today, I visited you in the office.

Mr First Deputy Speaker: Yes, I am treating you with kid gloves.

Mr Annoh-Dompreh: I am saying that the reality is that they need us to do Business; that is a fact. I am happy these comments have been withdrawn. But they

should be reminded that they need the Minority on any day to do Business. I am hoping that they will appreciate this fact and that we can work together. Leader, that is all I want to say.

So, Mr Speaker, the application made in respect of Article 102 and then Order 64, we hereby withdraw.

Mr First Deputy Speaker: Would you say the application is otiose in view of the numbers in the Chamber?

Mr Annoh-Dompreh: Mr Speaker, no. We withdrew it before they got their numbers. Mr Speaker, it is withdrawn. I see the Majority Whip actively getting their numbers. But the application has been withdrawn already. The man says he will not fight again, so who are they going to fight?

Mr First Deputy Speaker: But you are not the applicant per the rules.

Mr Annoh-Dompreh: Mr Speaker, we work in tandem.

Alhaji Habib Iddrisu: Mr Speaker, just like my Chief Whip said, based on the appeal of the Majority Leader, and I can see that Ministers are leaving their ministries to come to the Chamber: the Minister for Finance, Minister for Energy and Green Transition, Minister for Roads and Highways and the Attorney-General and Minister for Justice are here. So, Mr Speaker, it is withdrawn, since they have started coming and the Majority Leader has appealed to us to withdraw. So, we can proceed.

Mr First Deputy Speaker: But is it not true that the application is taken over by the numbers currently at the Chamber?

Alhaji Habib Iddrisu: Mr Speaker, we have withdrawn the application.

Mr First Deputy Speaker: Majority Leader is the application struck out as withdrawn? Any indication?

2:50 p.m.

VOTES AND PROCEEDINGS AND THE OFFICIAL REPORT

Mr First Deputy Speaker: Hon Members, let us do the item numbered 5, Correction of *Votes and Proceedings*, of Wednesday, 4th February, 2026.

Page 1...8 —

Hon Asamoah?

Dr Fred Kyei Asamoah: Mr Speaker, I would like to seek your guidance on page 8 (c), “A delegation from the Korean Industrial Centre from South Korea”. Mr Speaker, if the Table can double check, because there are a couple of South Korean Industrial Centres, as to which one visited us, if there can be some clarification and specify —

Mr First Deputy Speaker: Well, the correction of the *Votes and Proceedings* has to do with not capturing what happened on the floor of the House. The communication

that came was how it was captured. There was no differentiation. So, whatever is on page 8 of the *Votes and Proceedings* was the correct position of what transpired in the House. I read the communication, and I can vividly recall that that was how it was captured. So, whatever is here depicts exactly what happened on the floor of the House yesterday.

Page 9—

Yes, Hon Kingsley Nyarko?

Prof Kingsley Nyarko: Mr Speaker, with respect to page 9, the item numbered 8 — Statements, paragraph (b), the Hon Member for Abuakwa South, Dr Kingsley Agyemang, the “Agyeman” here ends with ‘n’. If you look at the *Order Paper* for yesterday, it had the same spelling, but on his console, there is a ‘g’, so I do not know whether this is correct or what is captured in the *Votes and Proceedings*, and yesterday’s *Order Paper* is the right one.

Mr First Deputy Speaker: Is the Hon Member in the House —

Prof Nyarko: On his console, it ends with ‘g’.

Mr First Deputy Speaker: You indicated that that was the way it was captured on the *Order Paper* for yesterday.

Prof Nyarko: Yes.

Mr First Deputy Speaker: So, I am trying to find out from the Hon Member whether what is on the console is wrong or what is in the *Order Paper* is wrong.

Prof Nyarko: Yes, you are right.

Mr First Deputy Speaker: So, Table, take note and take it up with the Hon Member.

Prof Nyarko: Mr Speaker, I am told that his name in the *Votes and Proceedings* has a ‘g’, but we can still check.

Mr First Deputy Speaker: Very well. The Table should cross-check.

Page 10—

Yes, Hon Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, with respect, let me crave your indulgence and take you to page 8. I was on my feet, but you could not see me. Page 8, the item numbered 6, line 4, “the President travelled on Saturday, 1st February 2026”. Per the calendar, something fundamentally should be wrong with that date. 1st February should be Sunday, but if indeed the President travelled on Saturday, then that should be 31st January instead.

Mr Speaker, if you kindly indulge me once again, on page 1, it is the “Minutes of the First Sitting of the First Meeting...”. It should instead be the Second Sitting of the First Meeting.

Mr First Deputy Speaker: Kindly take note. We then move to page 10...11—

Prof Nyarko: Mr Speaker, just a minor observation I have made on page 10, the item numbered 9—Presentation of Papers (iv), “Ghana National Action Plan on Business and Human Right”. If you look at the *Order Paper*, it has the same caption. I suspect it should be “Human Rights”, but I am just seeking your guidance, whether “Human Right” is correct or it should be “Human Rights”.

Thank you.

Mr First Deputy Speaker: Well, Table, kindly take note.

Page 12...13—

Prof Nyarko: Mr Speaker, on page 13, under “Supplement”, Business Statement, “*Opening*”, “The Committee met on Wednesday, 3rd February...” yesterday was Wednesday, 4th, today is Thursday, 5th, so I am thinking—

Mr First Deputy Speaker: Table, cross-check the correct date as well as the day.

Page 14—

Mr Afriyie: Page 14, item numbered 2 (x), may I propose that we delete the word after “Mr”, and insert “Michael” before Kwasi Aidoo. The attempt to write Michael was wrongly spelt.

Thank you.

Mr First Deputy Speaker: Table, kindly take note. Thank you very much, Hon Member.

Page 15—

Hon Kingsley Nyarko?

Prof Nyarko: Mr Speaker, I may be wrong, but I need your guidance on this. On page 14, the Committee on Youth and Sports, the stadia that were visited, the third one is Accra Sports Stadium. I thought it used to be Ohene Djan Sports Stadium. I do not know whether—Because Kumasi is now Baba Yara, I remember. But I do not know whether there was a mistake or if it was changed.

Mr First Deputy Speaker: Table, kindly check the correct name. Whether it is Accra Sports Stadium or Ohene Djan Sports Stadium.

Hon Members, any corrections on page 15?

Mr Afriyie: Mr Speaker, just a minor correction. The item numbered 3(i) “Mr Horen Quashigah”, his designation is “Deputy Director”, but the right rendition of the ministry is the Ministry of Sports and Recreation. The ‘s’ in front of “Sport” has been omitted.

Thank you.

Mr First Deputy Speaker: Table, take note and cross-check. Hon Members, in the absence of any further corrections, the *Votes and Proceedings* of Wednesday, 4th February, 2026 —

Mr Michael Kwasi Aidoo: Thank you, Mr Speaker. On page 15, the item numbered 2, my name, “Michael”, is spelt “M-I-C-H-E-AL”.

Mr First Deputy Speaker: Same has been corrected by Frank Afriyie.

Mr Aidoo: He said something different from what I am saying.

Mr First Deputy Speaker: Is it not the correction of the same name?

Mr Aidoo: He was talking about the Mr, but then I am talking about the “A-E-L”.

Mr First Deputy Speaker: He said that after “Mr”, we should correct the name to “Michael”. That was what I heard.

Mr Aidoo: Alright, thank you.

Mr First Deputy Speaker: Or Frank Afriyie, your correction was that after Mr, we do the correction—

Mr Afriyie: Exactly so, Mr Speaker.

Mr First Deputy Speaker: So, the same has already been done.

Hon Members, the *Votes and Proceedings* of Wednesday, 4th February, 2026, as corrected, is hereby adopted as the true record of proceedings.

Hon Members, the *Official Report* of Tuesday, 16th December, 2025, is for your correction. Yes, Prof Kingsley Nyarko?

Prof Nyarko: Mr Speaker, on the front cover, under Papers, I see Reports of the Committee on Economy and Development on the Bank of Ghana Amendment Bill, 2026. That Bill was considered last year. So, I am not sure whether—

3:00 p.m.

Mr First Deputy Speaker: Hon Member, you are right; it was considered in 2025.

Prof Nyarko: Then we go to column 12 for the consequential correction, because when you go to column 12, it still has 2026.

Mr First Deputy Speaker: Hon Member, you are right. Consequentially, same should be corrected. Thank you.

Hon Members, any further correction?

In the absence of any further correction, the *Official Report* of 16th December, 2025, as corrected, is hereby adopted as the true record of proceedings.

Yes, Hon Majority Leader, any indication?

Mr Ayariga: Mr Speaker, if I could apply to vary the order of Business so that we take the item numbered 13, that is, the Consideration Stage of the Legal Education Reform Bill, 2025. I intend to make an application to you to refer the proposed amendments to the —

Mr First Deputy Speaker: Well, I will subject your application to vary the order of Business to the Minority view so that when we get to the Consideration Stage, then you make the substantive application.

The application is to take the item numbered 13 at page 3 of today's *Order Paper*.

Mr Annoh-Dompreh: Mr Speaker, we are not opposed to the application.

Mr First Deputy Speaker: Thank you very much.

Legal Education Reform Bill, 2025 at Consideration Stage. Yes, Hon Majority Leader, we can now take your application.

Mr Ayariga: Mr Speaker, given the number of amendments proposed, about 72 of them, I will apply that you refer the amendments to the Winnowing Committee so that they can look at it and then report back to the House.

Mr First Deputy Speaker: Yes, the application is to refer the numerous amendments to the Winnowing Committee.

Mr Annoh-Dompreh: Mr Speaker, it is understandable and a popular call, so we are not objecting to it.

Mr First Deputy Speaker: Hon Members, the application is accordingly granted. The Legal Education Reform Bill, 2025 is referred to the Winnowing Committee. I urge upon the Winnowing Committee to take a second look at the amendments and do the needful, do the integration and bring the refined Bill to the House for consideration. I so direct.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, I will also apply for the variation of the order of Business so that we take the item numbered 19, which is the Second Reading of the 24-Hour Economy Authority Bill, 2025.

Mr First Deputy Speaker: Yes, the application is to take item number 19 on page 14 of today's *Order Paper*.

Mr Annoh-Dompreh: Mr Speaker, with respect, we are not objecting, but to just remind the Hon Majority Leader that the item numbered 9, if you may reference, has been on the *Order Paper* for some time, and today, I saw Hon Collins Dauda here. Same applies to the item numbered 12, the Report of the House Committee. The Chairperson of the House Committee, the Hon Majority Chief Whip is also here. I do not know if it is part of the plan to take this Report or to reschedule it to tomorrow. But we are not objecting to the Second Consideration of the 24-Hour Economy Authority Bill, 2025. We can go ahead and take the item numbered 19. I am only worried about the items numbered 9 and 12 that have been lying for a long time.

Mr First Deputy Speaker: Very well, that is a legitimate concern, but let us first of all take the item numbered 19, that is, Motion 19. The Attorney-General and

Minister for Justice, you may now move the procedural Motion numbered 18 first.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, my recollection is that the Motion was advertised yesterday. So, we still need to move for abridgment of time. It is two days at least.

Mr First Deputy Speaker: The rules now say three Sitting days. So, Attorney-General and Minister for Justice, you may move the Motion numbered 18 first.

MOTION

Suspension of Standing Order 104(1)

Attorney-General and Minister for Justice (Dr Dominic Akuritinga Ayine): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the Motion is given, the Motion for the Second Reading of the 24-Hour Economy Authority Bill, 2025 may be *moved* today.

Mr First Deputy Speaker: Hon Members, the procedural Motion numbered 18 has been ably moved. Any seconder?

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor): Mr Speaker, I rise to second the Motion.

Mr First Deputy Speaker: Yes, Hon Adutwum?

Mr Yaw Osei Adutwum: Mr Speaker, I wish to take you back to item number 13—

Mr First Deputy Speaker: Hon Member, the Motion on the Floor is Motion numbered 18.

Hon Members, the Motion moved and seconded.

*Question put and Motion agreed to.
Resolved accordingly.*

Mr First Deputy Speaker: Now, we move to consequential Motion numbered 19.

Yes, Attorney-General and Minister for Justice?

BILL — SECOND READING

24-Hour Economy Authority Bill, 2025

Attorney-General and Minister for Justice (Dr Dominic Akuritinga Ayine): Mr. Speaker, I beg to *move*:

That the 24-Hour Economy Authority Bill, 2025 be now read *a Second* time.

Mr First Deputy Speaker: Hon Members, Motion ably moved. On this note, I will call on the Chairperson of the Committee to present the Report of the Committee.

Chairperson of the Committee (Mr Shaibu Mahama): Mr Speaker, I am exceedingly grateful for the opportunity.

Mr Speaker, I present to you the Report of the Committee on the 24-Hour Economy Authority Bill, 2025. I ask that the *Hansard* captures the entire Report while I go to the conclusion.

Introduction

The 24-Hour Economy Authority Bill, 2025 was laid in Parliament by the Deputy Attorney-General and Deputy Minister for Justice, Dr Justice Srem-Sai on Wednesday, 3rd December, 2025 in accordance with Article 106(1) of the 1992 Constitution.

Pursuant to Article 106(4) and Order 238 of the Standing Orders of Parliament, the Rt Hon Speaker referred the Bill to the Committee on Constitutional and Legal Affairs for consideration and report to the plenary.

Deliberations

The Committee met on Friday, 9th January, 2026, with the Attorney-General and Minister for Justice, Hon Dr Dominic Akuritinga Ayine; the Deputy Attorney-General, Dr Justice Edem Srem-Sai; the Chief Director, Mrs Fati Bodua Seidu; officials from the Office of the Attorney-General and Minister for Justice; officials of the 24-Hour Secretariat; Mr David Addo-Ashong, Legal Counsel and Senior Partner; Mr Kyeretwie Opoku, Coordinator; and Mr Augustus Goosie Tannoh, Presidential Advisor.

The Committee expresses its profound gratitude to the Hon Minister and all officials present for honouring the invitation and assisting in the Committee's deliberations.

Reference Documents

The following documents were referred to by the Committee during its deliberations:

- i. The 1992 Constitution of the Republic of Ghana;

- ii. The Standing Orders of the Parliament of Ghana;
- iii. The Exemptions Act, 2022 (Act 1083);
- iv. The Public Financial Management Act, 2016 (Act 921);
- v. The Internal Audit Agency Act, 2003 (Act 658);
- vi. The Companies Act, 2019;
- vii. The Ghana Enterprises Agency Act, 2020;
- viii. The Ghana Shippers Authority Act, 2024;
- ix. The Interpretation Act, 1960; and
- x. The 24-Hour Economy Authority Bill, 2025

Background

The 24-Hour Economy and Accelerated Export Development Programme is a national economic transformation strategy aimed at enhancing productivity, promoting inclusive growth, and establishing a coherent and consistent framework for long-term national development with bipartisan support. The Programme represents a deliberate government intervention designed to address persistent structural weaknesses within the country's production economy and to reposition Ghana on a sustainable growth trajectory.

Ghana's current economic structure is characterised by a heavy reliance on imports and a disproportionate expansion of the service sector relative to the productive sectors of agriculture and manufacturing.

National GDP data indicate that economic growth has been driven largely by services, rather than by direct production. This imbalance is unsustainable, as productive and service sectors must grow in tandem to support a resilient economy.

The Programme seeks to reverse this trend by reducing the country's dependence on the export of low-value raw materials and on the importation of expensive finished and intermediate goods. Its objective is to strengthen domestic value addition, enhance competitiveness, and accelerate export development in order to make the national economy more self-reliant.

While the country has made notable progress in improving productivity in certain areas, it continues to lag in the development of critical skills particularly digital and technological competencies required by modern economies.

The Programme adopts a holistic, value-chain-based approach, addressing challenges across multiple sectors through coordinated, multi-sectoral interventions at both policy and operational levels. It further emphasises national mobilisation of institutions and communities to drive broad-based economic transformation.

Currently administered by a Secretariat within the Office of the President, the Programme requires statutory backing to ensure effective implementation and sustainability.

Accordingly, the Bill provides for the establishment of the 24-Hour Economy Authority and sets out the institutional and structural framework necessary to address longstanding structural challenges within the economy. It further provides strategic

direction for accelerated export development, with the overarching aim of reducing import dependence and strengthening Ghana's economic resilience.

Object of the Bill

The object of the Bill is to establish the 24-Hour Economy Authority to ensure the integrated, sustainable transformation of national systems for economic production, supply chain, marketing and labour power development and to provide for related matters.

Summary of Provisions

The Bill consists of a total of twenty-eight clauses.

Clause 1 of the Bill establishes the 24-Hour Economy Authority as a body corporate. This followed by provisions covering the object and functions of the Council. (Clauses 2 to 3 of the Bill).

The establishment of the Governing body of the Authority, its duties and liabilities of members of the Board, tenure of its members, meetings among other related matters are set in Clauses 4 to 12 of the Bill.

The next set of provisions deal with the administration of the Authority. The administration of the Council is dealt with in clauses 13 of the Bill. Provisions regarding the appointment of the Chief Executive Officer, appointment of other staff, and secretary to the Board are set out in Clauses 13 to 15 of the Bill.

Clause 17 provides for the Internal Audit Unit of the Authority in accordance with section 83 of the Public Financial Management Act, 2016 (Act 921).

Clauses 18 to 24 of the Bill relate to financial provisions. These Clauses make provision for financial matters including funds of the Authority, borrowing powers, accounts, audit, tax exemptions and reports.

The last set of provisions deal with miscellaneous matters including the power of the Minister by legislative instrument to make Regulations for the effective implementation of the Bill, modification of existing enactments, interpretation and transitional provisions. (Clauses 25 to 28 of the Bill).

Observations

The Committee made the following recommendations during the deliberations:

Accelerated Export Programme

The Committee was informed that the Programme is intended to strengthen Ghana's national capacity to export and to address persistent trade imbalances that have constrained economic growth. It was further indicated that the Authority, through the 24-Hour Economy and Accelerated Export Development Programme, will prioritise the expansion of exports over imports by systematically enhancing domestic productive capacity and export competitiveness.

In response to inquiries regarding the long-term implementation of the Programme, the Committee was advised that the Accelerated Export Development Programme will be anchored on three mutually reinforcing pillars, to be implemented concurrently in order to achieve sustained and systemic impact. The first pillar focuses on production systems and is designed to increase export revenues

through value addition to domestic raw materials.

The second pillar centres on the development of supply chain and market systems, with emphasis on the provision of reliable energy, security, and other enabling infrastructure necessary to support continuous, 24-hour production. The third pillar focuses on labour development and addresses the systems through which the country develops, upgrades, and sustains its labour force, recognising human capital as the foundation of long-term economic transformation and productivity growth.

The Committee acknowledged that historical weaknesses in these production-related systems have resulted in significant value leakage from the economy during successive production cycles, thereby contributing to recurring structural challenges and constraining national development. The Committee therefore noted that the design of the Programme is intended to reverse this trend by strengthening domestic value retention and building a more resilient and export-oriented economy.

Private Sector Participation

The Committee learnt that the Programme is structured to be delivered primarily by the private sector and is intended to be private sector-driven. It was explained that, although successive governments have articulated the objective of positioning the private sector as the engine of economic growth, limited concrete action has been taken to realise this objective. In addition, given prevailing fiscal and resource constraints, it was noted that any transformative national development agenda of this magnitude

cannot be financed or executed solely on Government's balance sheet.

Accordingly, the Programme is designed to be driven by private sector balance sheets, with Government assuming a facilitative role aimed at enabling both domestic and foreign private sector participation and investment across the identified priority areas.

The Committee was further informed that the Secretariat is undertaking efforts to mobilise capital through the banking sector to finance critical value chains under the Programme. The secretariat would similarly promote and support small and medium-sized enterprises, which constitute the largest source of employment in the national economy.

In addition to commercial financing, the Programme is expected to attract funding from private and institutional sources, including development banks, pension funds, multilateral development partners, and private foundations, rather than relying on direct allocations from the national budget.

The Committee expressed satisfaction that the Programme is to be implemented through the direct entrepreneurial activities of organised private citizens acting through cooperatives, companies, industry associations, and community-based organisations, rather than through public sector delivery mechanisms. The Committee noted that this approach is likely to have a positive impact on revenue generation in addition to the creation of significant employment opportunities for citizens.

Development of Human Capital

The Committee observed that the fundamental thrust of the 24-Hour Economy is job creation, with human capital development identified as a central pillar of the Programme. Emphasis is placed on strengthening technical and vocational education and training (TVET), science, technology, engineering, and mathematics (STEM) programmes, as well as enhancing the capacity of engineering faculties across the country, in order to develop a skilled and productive workforce aligned with the needs of a modern, export-oriented economy.

The Committee expressed concern over adverse attitudes towards discipline, productive work and decline in individual responsibility towards society.

The Programme is therefore designed not only to create employment opportunities but also to address these behavioural and societal challenges by fostering a renewed culture of productivity, responsibility, and collective action in support of national development.

Proposed Amendments

During its deliberations, the Committee proposed amendments to strengthen the provisions of the Bill which has been incorporated into the Bill.

3:10 p.m.

Conclusion

Mr Speaker, the Committee concludes that the 24-Hour Economy and the Accelerated Export Development Programme provide a comprehensive framework to strengthen Ghana's

productive capacity, reduce trade imbalances and enhance export competitiveness. Anchored in production systems, supply chain market development, and labour development, the programme's private-sector-driven approach, supported by public facilitation and diversified financing, is both pragmatic and necessary.

The Committee further notes that the programme focuses on job creation, skills development and fostering a culture of productivity is clinical for the sustainable economic transformation. The establishment of the 24-Hour Economy is essential for effective coordination and long-term implementation.

Consequently, Mr Speaker, the Committee recommends that this House adopt its Report and pass the 24-Hour Economy Authority Bill, 2025 in accordance with Article 106 of the 1992 Constitution.

I so submit, Mr Speaker.

Question proposed.

Mr First Deputy Speaker: Yes, Hon Boamah-Nyarko.

Mr Isaac Boamah-Nyarko (NPP—Effia): Thank you very much, Mr Speaker, for the opportunity to comment on the Report on the 24-Hour Economy Authority Bill.

Mr Speaker, the 24-Hour Economy is a campaign promise made by the National Democratic Congress (NDC) during the 2024 election campaign. Come 2025, there were a lot of concerns about the implementation of this particular policy. On the part of the Minority, calls were made for the Government to submit a policy paper

that would direct us as to the real ways in which the 24-Hour Economy is going to be implemented. It is interesting that, one year on, we have now received the policy and the Bill that are supposed to promote the 24-Hour Economy.

Mr Speaker, having looked at the report of the Committee, a lot of teething and interesting questions arise. First and foremost, the recommendation is to establish an Authority to govern the 24-Hour Economy. And the question is, what is the rationale and the basis for establishing an Authority to oversee the 24-Hour Economy Policy? Mr Speaker, establishing authorities is not limited to implementing one policy statement. Authorities are supposed to be established with the main purpose of running a particular programme or agenda over a period of time. Now, regarding the 24-Hour Economy that will establish this Authority, the question is: what is the Authority supposed to do?

Mr Speaker, if we look at the Report that was submitted, it talks about three pillars. Pillar 1, according to the Report, focuses on the production system. Pillar 2 deals with the development of the supply chain, and Pillar 3 deals with labour development. These are all areas that are already being dealt with by either the Ministry of Trade, Agribusiness and Industry or the Ministry of Youth Development and Empowerment. So why are we duplicating the functions of these ministries with the creation of an Authority? We all know the expenditures that go into establishing an Authority. We have seen in this House the creation of the Ghana Medical Trust Authority, the Sports, and so many other Authorities over the past year. But this particular 24-Hour Economy Authority that is being proposed, Mr Speaker, I find it very challenging because it is going to duplicate the work that is

already being done by the Ministry of Trade, Agribusiness and Industry and the Ministry of Youth Development and Empowerment.

Mr Speaker, the Secretariat, according to the Report, is also supposed to mobilise capital through the banking sector to finance critical value chains under the programme. Why would the Authority that is supposed to be established be given a mandate to mobilise capital to finance the critical value chain under the programme? I find it also very alarming and interesting because, as we speak, the financing of government projects is at the behest of the Ministry of Finance. And so, once again, it is very problematic that the direction of this particular 24-Hour Economy is being looked at.

Mr Speaker, if we look at the development of human capital, again, as the Report raised, it says that it is going to be anchored on job creation, which is supposed to be done by Ghana Technical and Vocational Education and Training (GTVET) and Science, Technology, Engineering and Mathematics (STEM) to develop the skills. GTVET and STEM are already established institutions that have their own programmes. So why are we creating another 24-Hour Economy Authority that is supposed to use the same TVET-established STEM programme to develop skills? This is already there.

Mr Speaker, for me, if not for purposes of achieving a political goal or objective or trying to play to the Public Gallery that for whatever reason the 24-Hour Economy Authority Bill, 2025 has been passed or a policy document has been submitted, the entirety of this particular 24-Hour Economy is already being done in Ghana by different

sectors of the ministries, departments and agencies. It is a duplicative role. We are taking taxpayer money that could be used for other developmental objectives of this country to establish an Authority and use it to pay CEOs. It will be used to pay board members and other officers that already have the frameworks within our government architecture to deliver on this mandate.

It is a policy or campaign promise. It is the Government's responsibility to deliver and redeem it. So, nobody would have the funds for them to do it. But to channel funds through other purposes or vehicles, such as establishing Authority and to use taxpayers' money that could be used to develop other essential sectors of this economy just to establish an Authority for this purpose, I find it very unnecessary, Mr Speaker.

To conclude, Mr Speaker, the Report never spoke about the "1-3-3" shift. The document never spoke or gave direction that the 24-Hour Economy is going to run the shift whereby various specific areas are going to run eight-hour shifts. Or that one particular job is going to create three jobs.

3:20 p.m.

That particular promise that they gave on the 24-Hour Economy is missing in the Report before us.

Mr Speaker, to end, I am of the humble view that the Report is before us, but I do not see why we should use the money of the taxpayer to establish another authority to burden the taxpayer in paying for Chief Executive Officers (CEOs) and Board Members whose functions already are being handled by various Ministries, Departments and Agencies.

Mr Speaker, without more, I will say that the Government is running from its own shadows, and now the chickens have come home to roost. So, they should go ahead and do the 24-Hour Economy but they should not burden taxpayers by establishing an authority to run it.

Mr Speaker, I thank you for the opportunity. [*Hear! Hear!*]

Mr First Deputy Speaker: Thank you so much. Hon Members, I am not to take part in the debate, but I will ask a rhetorical question.

We have the Ministry of Agriculture—

Very well. I am asked not to ask the question. I will give the floor to Mr Adongo.

Mr Isaac Adongo (NDC — Bolgatanga Central): Mr Speaker, those who started asking the question from day one, that “where is the 24-Hour Economy?”, are today praying that this Bill never happens.

Mr Speaker, this Authority is a law. I do not know whether somebody wants us to legislate the “1-3-3”. I am just struggling to understand how a lawyer would expect that we should put in the law that a 24-Hour Economy should be a “1-3-3”. Certainly, that beats my imagination. There are different variants of 24-Hour operations. One can decide to do a “1-2-2” and one can decide to do a “1-3-3”, but that does not mean that it is still not a 24-Hour Economy. So, at the end of the day—[*Interruption*]—Mr Speaker, I listened to them, so why are they jittery? We have just started, and they are already struggling. They should just keep quiet and listen.

Mr Speaker, we were in this country where we were already building schools, but we still passed a law and set up an Authority, the Ghana Education Trust Fund (GETFund). Was it because we were not building schools? We were in this country when our district assemblies were developing our communities, but we came here and set up development authorities. Were we not building toilets that they were building with the authorities? So, what do they mean by the fact that an activity is already being done?

Mr Speaker, if we want to undertake a policy that is inter-sectoral, we need a coordinating mechanism to ensure that all the agencies that are participating in implementing that authority or that activity work together and get coordinated. That is what this Authority is going to do. Because when we say 24-Hour Economy, it is not the same as agriculture, and it is not the same as industry. It is a mainstream activity that we find almost in every sphere of life.

So, we find the 24-Hour Economy in agriculture, the industry, and in services. As a result of that, we need to coordinate all those activities that we need to create an enabling environment for those agencies and institutions to be able to implement a 24-Hour Economy and that is what we are going to do, and they are beginning to shiver. Because somehow, they thought that the 24-Hour Economy was going to be their Ghana Beyond Aid that never had a policy.

They thought that the 24-Hour Economy was going to be like their Free Senior High School that never had a policy. They are trying to think that the 24-Hour Economy was going to operate like their One District, One Factory (1D1F) that never had a policy, and their digitalisation that never had a policy. Today, we are walking the talk.

Today, we are implementing a policy backed by a coordinating mechanism that will ensure that whatever we want to do is well thought out, implemented and funded, and that is where the New Patriotic Party (NPP) will remain in opposition for the next 30 years because of the 24-Hour Economy.

Mr Speaker, unfortunately, it appears people did not even read the Memorandum that came with the Bill. If people had read the Memorandum that came with the Bill, they would have been clear what the Cabinet and Government of Ghana wants to do with this Authority, and it is not our fault that they do not read. But please, I would ask them to go back and read the Memorandum that accompanied the Bill so that they do not embarrass themselves before the people of Ghana. They do not have to come and make arguments that are not supported by the facts. The Bill itself has a Memorandum which explains what the Government wants to do, and if they are minded, they will go and read it.

Mr Speaker, what this 24-Hour Economy Authority Bill is thinking of doing is to ensure that we create an environment that allows the private sector to take the commanding heights in the implementation of this 24-Hour Economy. We want to make sure that at this time, when the Government has already set the environment that promotes business, interest rates are dropping like they have never seen before, inflation was all over the place, and the exchange rate today was something that they dreamt for thousands of years, and they could never do it.

So, this is the time that businessmen have confidence in the economy. This is the time that businessmen can raise money at a cheaper cost to implement the 24-Hour Economy. This is the time when it is

cheaper to import capital equipment from abroad because the exchange rate is lower.

Mr Speaker, at this point, it is very clear that my Hon Colleagues do not understand when the 24-Hour Economy Authority is talking about human capital development. It does not mean that we do not have education in Ghana, and that we are now going to set up Science, Technology, Engineering, and Mathematics (STEM). What it simply means is that one must work with industry to ensure that our training institutions bring out the calibre of human resources that we need, and STEM is one of the key drivers of that agenda. That does not mean that we are implementing STEM because there was no STEM. It does not mean that when we talk about science, we do not have science education already, but we are trying to make sure that science education is utilised to implement the 24-Hour Economy.

Mr Speaker, it is important for people to read and not express ignorance when they have not read the matters that we are discussing here.

Mr Speaker, it is also very clear that by the time we finish passing this Bill, we would have an enduring coordinating mechanism that will plan, organise, and make sure that the funding of the 24-Hour Economy Authority is provided to achieve the objectives for which His Excellency the President promised the people of Ghana. He promised the Big Push, and he has delivered it. He promised to reset the economy, and he has reset and fixed your mess. He promised a 24-Hour Economy, and he is here with a Bill to set up an Authority to implement the 24-Hour Economy.

Mr Speaker, what else do they want? We do not expect them to be happy because this

will keep them in opposition for the next 20 years, and it is the reason they are scared.

Mr Speaker, the Accelerated Export Development Programme is meant to ensure that even as we are using gold to create the forests that we need, and we are processing gold with refineries, we are also making sure that the 24-Hour Economy delivers the volumes that we need to export and generate the resources to fund this economy.

Mr Speaker, the 24-Hour Economy has come to stay. The 24-Hour Economy will develop an Authority.

Mr Speaker, in the wildest dream that NPP ever comes back, I would not be surprised if my good friend would lobby to become the Chief Executive of that Authority, and yet today, he is here pretending that he is against it.

3:30 p.m.

Mr Speaker, I now understand why they wanted to raise the issue on Quorum; they knew what was coming. While he was talking, I was quiet. There is a saying that, “if you cannot fight them, you simply join them”. We have more seats, come and join us. It is not about shouting; it is about listening and listening to wisdom. That is what I did when I was listening to the Hon Member. It is the reason I noticed that he did not read the memorandum. If I had not listened to him, I would not have known that he was speaking out of ignorance. So, he should listen to me and learn something meaningful, so that we can improve this Bill.

Mr Speaker, I want to encourage my Hon Colleagues that they should be counted. They should rise and support this Bill, so

that we deliver a 24-Hour Economy, we improve their constituents, we give their constituents jobs, so that at the end of the day when they receive calls from their constituents for jobs, they will not run away, because 24-Hour Economy will assist them deliver those jobs to the people.

Mr Speaker, with these few words, I would like to thank my Hon Colleagues, but also to thank His Excellency the President for keeping faith with the people of Ghana, and for not living like others who promised and never came to this House. He is here to make sure that the people of Ghana know what he is talking about, and to deliver a programme that will develop this country as it has developed, just like we found with the Ghana Gold Board (GoldBod).

They were against the GoldBod, and walked out. In the end, the GoldBod is saving Ghana. We hope that they do not walk out on this one. Please, do not walk out on this 24-Hour Economy Bill like they did to the GoldBod. This is because this will be a game changer. We know them, they like to walk out. So, My Hon Colleague, please do not walk out. I can see him wearing his glasses. When we bring this Bill, do not walk out, because this will save us. Mr Speaker, thank you very much.

Mr First Deputy Speaker: Yes, Hon Stephen Amoah?

Dr Stephen Amoah (NPP — Nhyiaeso): Mr Speaker, I thank you for this opportunity and I thank those who are trying to, in an attempt to fulfil most of the campaign promises that were not preceded with any research or collected data with any integrity—doing it just for people to think they said it and they are. Even though they are dysfunctional to the performance of our

Republic, they are making an attempt, in a way.

Mr Speaker, I think it is time we dealt with some of these policy clichés that have not helped us as a country in a way. The question I always ask is, are we sure that we only just want come to power because, to some of us, either as individuals or as groups, it is all about enterprising, making money, having power, and flexing, showing our shoulders and bare chest to the public? I think we need to do away with these — *[Interruption]* — I used a word and Mr Speaker asked me to retract, so I will not use it again — these dysfunctional strategic positions that have been very drift to us.

Mr Speaker, with your permission, I beg to read the object of the Bill:

“The object of the Bill is to establish the 24-hour Economy Authority to ensure the integrated sustainable transformation of national systems for economic production, supply chain, marketing, and labour power development and to provide for related matters.”

Mr Speaker, I want to ask them, what do they mean by 24-Hour Economy? It entails business operations, public services and agriculture, running these areas continuously 24/7, across day and night. Where my Brothers are coming from, and the emphasis they are placing on all these policies, is that they want us to operate a shift programme that will offer jobs to the masses, to Ghanaians, and also build our economy sustainably and attain the long-term economic growth and stability. When it comes to the public service, security and health, we are already running 24-hours, we are running shifts. So, their emphasis is on the economic development, that is, building manufacturing factories that will employ

thousands of Ghanaians who will run eight-hour shifts three times a day or work in three phases. What have they done so far to attain that goal? Mr Speaker, this is a strategic drift. It is impossible. It is just a fallacy. It is not going to work anyway.

In the first place, they should give us an idea, a picture of a manufacturing framework that they have researched and appraised for us to believe in this policy. We live in this country. I do not wish them bad. If it is good, it is for this country. But I am telling them and the entire Ghanaian community, it is not something they have thought through. I am not saying it is not a good thing. The 24-Hour Economy my Brothers from the NDC Side are talking about, they have no idea about what they want to do. I am being honest with them. If we go to most of the developed economies like China, the European countries, Latin America, and Northern America, we see manufacturing industries and the ecosystem are so effective and efficient that thousands of young people from that country work. Is that what they want to tell us?

Mr Speaker, this is all political gimmicks and propaganda to deceive voters. I think we should have a new paradigm shift. We need to redefine our corporate focus as a country, and the reasons we are in politics. We should be getting tired of some of these propaganda, communist inferior tactics, and machineries that they are dishing out to the people.

Mr Speaker, we have to come to another issue that surprises me. Once again, they want to do this to help build a very productive economy framework, that is, dealing with our dwindling fiscal space, or policy framework. We run a negative effective tax rate economy. We run a debt-inclined economy. One of the reasons is that

we are not able to control our expenditures effectively. We are not dealing with the correlation that we need between our expenditure control and our GDP growth. We have a lot of institutions that are already overlapping, and that are already duplicated in terms of functions and structures.

We already have all of them. Why are here trying to set up another one? Are we not tired of abusing and misusing state resources in the name of politics and creating jobs for the boys? Is that what we want to do for Ghanaians? The young people out there, look at them. Only a few of them even get jobs to do. Why are we continuing this recycling of unfortunate, inimical policies that are destroying this country? [*Hear! Hear!*]

Mr Speaker, I am surprised that my Brother, Mr Adongo, and my Chairperson are talking about interest rate inflation and other things. Today, I want to ask them to invite any professor in this world to come. We are tired of this propaganda. What has NDC done for the past 12 months? What have they done? It was in this House that my Brother, Dr Ato Forson, came and read their own Budget, and they stated all the primary macro indicators in this House.

The GDP was growing 5.6 per cent before they took over. Inflation had been reduced from 54.1 per cent to 22.9 per cent before they took over: primary balance, reserve, everything. We were running a defensive sector economy. If they do not understand what is called a defensive economic market sector, I am explaining to them today. The systematic risk index of our market is far less than one. So there is a lag period. Ghanaians are enjoying what New Patriotic Party (NPP) Government did. Stop lying to them.

Can they calculate any of their contributions as a percentage of our GDP today? They should tell us. We are tired of lies and the deception and the propaganda. I am not blaming them for not doing anything. They are building their first year. They are doing rearrangement, calibration and configuration. We agree. But they have not done anything. The NDC Government has not done anything yet. We are yet to feel the impact of anything they are going to do. They should stop lying to Ghanaians. What have they added to the economy?

Mr First Deputy Speaker: Hon Member, withdraw the words, “stop lying”.

3:40 p.m.

Dr Amoah: Sorry, Mr Speaker. I have done that. Mr Speaker, I have withdrawn it.

Mr Speaker, they talk about exchange rate. What are the primary macro indicators? When it comes to independence, what are the independent factors or variables of exchange rate currency performance? One, it is supply and demand.

By December and January when they took over, we had got over US\$1 billion in our accounts because we domesticated cocoa syndication. This is the first time this is happening in the history of this country; I stand to be corrected.

Because we have held free, fair and peaceful elections, that has rebuilt and restored the confidence of the investors. Because the American Government had entered into trade war with the Asian partners, now they are talking as if they have done something. We do not even know the amount in United States Dollars being circulated in our system. Do they know?

We have three different rates? We have Bank of Ghana (BoG) rates, we have forex bureau rates and black-market rates. They are going about lying and behaving like we are in control of our economy—
[*Interruption*] They are misleading—

Mr Speaker, look around this Chamber. Respectfully, look at yourself, look at me. Even the spectacles you and I are wearing were imported. Everything here has been imported. Who has control over the exchange rate? They are only enjoying what they took over. They have not done anything yet. I am not blaming them.

Ghanaians should begin to praise us, except that the impact was felt late and they would have lost the election. They should stop engaging in propaganda. They are talking about a 24-Hour Economy—
[*Interruption*] Our Brothers from the National Democratic Congress (NDC) are constantly engaged in the use of communist inferior tactics as a political tool. I am telling them today that, this whole thing about the 24-Hour Economy has got no substance. It is a sham; It does not do us any good. It is propaganda and it not going to give any results; it is cos 90. It is deceiving the ordinary Ghanaian and it has no future.
[*Hear! Hear!*]

Now, they are saying it has come to stay. It is not a matter of the Policy staying, but it is whether it will deliver the result and provide the needed incentives we need as a sovereign country. If one raises a child who grew up to 100 years but never contributes nothing to society anything, and is a drug addict, who causes one to spend on him and he becomes a liability on the state—Is that what they want?

I would rather prefer a child who would be 40 years old, but can offer our society and country something for which we can refer to him as an asset. They should not develop a liability for Ghanaians. The fact of the matter is that they never thought through the 24-Hour Economy, conducted research or get any data back in it. They do not know the future of 24-Hour Economy.

In any case, there was a time that I asked 22 of them and they could not even define. All of them were giving different definitions. How could one Policy have multidimensional definitions? They should stop deceiving Ghanaians.

Mr Speaker, to conclude on what I am saying, I ask my Brothers from the NDC and the government to go and rethink. Because this document, contains nothing. It is like medicine without a potent medicinal element. It is like taking water when one has an infection; it is nothing.

Mr Speaker, all I want to say is that, they should withdraw all these things, go back— They do not have to abuse the fact that they have the numbers. They do not have to abuse the fact that they can pass anything they want; posterity will ask them. The next generation would ask them. What did they use their numbers to do because they have power? This 24-Hour Economy, even though it is not a bad policy, they are not prepared and it has nothing good to offer us. There is nothing in it; it is empty.

The Authority they want to establish— It has not gotten anywhere for them to think about the Authority; I am surprised. Why are they jumping the gun? Because they have numbers? What is the ulterior motive behind this?

Mr Speaker, I would like to end here. But I am advising them. If they take my advice, one day—allow me to speak Twi, *ɔmo bɛto boɔ abɔ me*. [*Hear! Hear!*]

Thank you, Mr Speaker, for this opportunity.

Mr First Deputy Speaker: I will give the floor to Mr Governs Kwame Agbodza.

Mr Kwame Governs Agbodza (NDC — Adaklu): Mr Speaker, I thank you for the opportunity to contribute to the Motion regarding the 24-Hour Economy Authority Bill, 2025.

Mr Speaker, I was looking for my very good Friend, Dr Stephen Amoah, to congratulate him for the vigorous campaign he mounted in defense of his candidate towards the New Patriotic Party (NPP) presidential elections. I also want him to take the results he got in good faith. But did I hear him say that we do not even understand what we are doing?

Dr Amoah, it appears your constituents also did not even know what you were talking about. This is because your candidate lost in your Constituency—[*Laughter*]*—It appears his constituents did not understand all the dancing and vigorous campaign and all what he was talking about—[Laughter]*—So, they voted against his candidate.

Mr Speaker, sometimes I agree with them when they say that as political actors, we should be principled. This is very important, so that the country does not think that any time we do things, we do not think deeply about it.

Mr Speaker, recently I heard Dr Amoah arguing that he was supposed to occupy a

position, but they did not give it to him—[*Uproar*]*—they should hold on, I would go on to the Policy—*

Mr First Deputy Speaker: All of you should resume your seats. Mr Agbodza, hold on. All of you should resume your seats. Hon Members, let me indicate that we have all spent more than a year here. We need to conduct Business within the Rules. If you have something to say, catch the eye of the Speaker—[*Hear! Hear!*] You would be called to raise your issue. It is disorderly to just get up and shout. Mr Agbodza, you have the floor.

Mr Agbodza: Mr Speaker, I heard my Colleagues from the other Side say there is no need to set up the 24-Hour Economy Authority. The same people who found it necessary, despite the fact that we had Ghana Education Trust Fund, Ministry of Education, to set up Development Authorities to build a six-unit classroom. When the Adaklu Assembly was already building Kumasi Ventilated-Improved Pit Latrines (KVIPs), they gave that right to another Authority called the Middle Belt Authority. Indeed, that is not what we are doing.

Dr Amoah, indeed, you did not actually understand the definition of what the 24-Hour Economy is. Let me give you—[*Interruption*] He is now asking me to tell him what the 24-Hour Economy is. Dr Amoah, let me take you—

Mr First Deputy Speaker: Dr Amoah, we listened to you in silence. It is true that in your submission, you said they do not know what the 24-Hour Economy is. You asked four people and they gave you different definitions. He is on that point that you have raised; so, let us listen to him.

3:50 p.m.

Mr Agbodza: On page 12 of the Bill, under interpretations, it says;

“... 24-Hour Economy, an accelerated development programme, means a cross-sectorial economic development programme that seeks to modernise, reorganise, and restructure the productive sectors of the economy to achieve amongst other things ...”

Mr Speaker, he obviously did not read this, so he put those things out. I read the Bill and the Memorandum. It is a very good thing and that is why—at least he said something. That in his view, the policy is not wrong. But in his view, it is good policy, but he thinks that we do not know what we are doing. At least he knows that the policy is good and this is why I am coming to tell him one of the good things about the policy.

Mr Speaker, the 24-Hour Economy Policy is not a project where there is inauguration and an office set up. The budget is about coordination. Once we see the definition of this, we would understand what it means.

Mr Speaker, I also heard him say that what we promised was to have entities running 24 hours, and he is not sure if any private enterprise is doing that. The 24-Hour Economy is already in motion. The object of the Bill, I read from paragraph 5;

“The object of the Bill is to establish a 24-Hour Economy Authority to ensure the integration, sustainable transformation of national system for economic production, supply chain, market and labour power development, and to provide related matters.”

Mr Speaker, to have a clear synergy between the supply chain, we need good roads in this country. The whole point of the “Big Push” is to serve as a catalyst to address these things. So, the 24-Hour Economy is not yet coming; it is already being implemented. Let me tell them this, there are contractors working under the “Big Push” who are currently working 24 hours to make sure that we meet these objectives. [*Hear! Hear!*] I can show him where they are. The last time we were here, they said that the “Big Push” only creates menial jobs. When we have civil engineers, quantity surveyors and many people working for the rest of the “Big Push” project, they cannot say that the job of a civil engineer is not necessary. So indeed, thousands of jobs are already being created under this. Even after the building, there will be maintenance contracts that will be carried out on this.

Mr Speaker, I just want Hon Colleagues to understand. Since Hon Stephen Amoah says that he is not against it, this is what they do. Let me tell them, when we were sitting on their Side, we opposed things but they should tell me one of the things we opposed that did not come to pass to confirm that we were right. We do not oppose just for the sake of opposition, but they are in a haste to oppose for nothing and that is why they get it wrong. I am giving them my simple understanding of it. They should be very careful what they oppose. The last time I came here, we talked about Accra-Kumasi Expressway, a few of them jumped on it and said they were not in favour of it. At least, the proponent of that opposition came back to rationalise his position to say that he is no longer against it. By the way, the Accra-Kumasi Expressway is coming on, whether they like it or not. [*Hear! Hear!*] Get ready for it.

Mr Speaker, the 24-Hour Economy will create jobs and spur growth in our country. I agree with my Hon Colleagues that we should be careful what we are trying to do under this policy. I agree with them. We should not just rush and do anything. We should take their views also on board. But they should not just oppose it and say that we do not know what we are doing because this is one of the smallest Bills that we have taken in this House.

But it is quite detailed in terms of the understanding of it. I encourage my Hon Colleagues to support this Bill. This is would not be just another Quasi-Autonomous Non-Governmental Organisation (QUANGO) that is set up to create jobs for the boys. It will be a catalyst that will spur development in our country and I want to encourage all Hon Colleagues to support this Bill. When it comes to the Consideration Stage, we bring all the views we have to make it a rich Bill that will stand the test of time.

Mr Speaker, thank you for the opportunity.

Mr First Deputy Speaker: Leadership, kindly give guidance as to how many more we should take.

Mr Jerry Ahmed Shaib: Mr Speaker, I was just trying to negotiate with my Hon Colleague on the other Side. We were thinking that we can do three from each Side before Leadership.

Mr Speaker, this is 24-Hour Economy.

Mr First Deputy Speaker: Including those who have spoken?

Mr Shaib: No, they have spoken already. I am talking about outstanding. We have three outstanding; they have three outstanding and then Leadership.

Mr Speaker, respectfully. This is 24-Hour Economy; it is not touted. Everybody has—

Mr First Deputy Speaker: No, we have the policy debate that will come. The policy was laid and referred.

Mr Shaib: Mr Speaker, Hon Samuel Abdulai Jinapor is ready.

Mr First Deputy Speaker: Well, Leaders, agree on something and let me implement. Is that the sense of the House? They say three more from each Side.

I will give the Floor to the senior man, Hon Kwame Anyimadu-Antwi?

Mr Kwame Anyimadu-Antwi (NPP—Asante Akim Central): Mr Speaker, in all honesty, I have gone through the Bill and I have sat through and I have read the Report of the Committee and the best conclusion I can say about this is much ado about nothing. I do not see the head and tail. When we read the Memorandum, it talks about three pillars and the three pillars give an impression that we would have something substantial to live on.

Mr Speaker, I would say and advise the Attorney-General and Minister for Justice that since he is the Government's lawyer, as was said by a certain woman in this country, that this my brother must be bold and advise that this Bill must be withdrawn, be looked into and, if possible, presented again.

Mr Speaker, I may want to refer you to some portions of this Report for us to

understand and carry the House along. For instance, page 3, paragraph 2 says;

“Ghana’s current economic structure is characterised by a heavy reliance on imports and a disproportionate expansion of the service sector relative to the productive sectors of agriculture and manufacturing. National GDP data indicate that economic growth has been driven largely by services rather than by direct production. This imbalance is unsustainable as productive and service sectors must grow in tandem to support a resilient economy.”

Mr Speaker, words are used here, but, if we look through the Report, I do not see the marriage between the services that Ghana offers and what this Bill seeks to achieve. It goes on, I read;

“The programme seeks to reverse this trend by reducing the country’s dependence on the export of low-value raw materials and on the importation of expensive finished and intermediate goods. Its objective is to strengthen domestic value addition, enhance competitiveness and accelerate export development in order to make the national economy more self-reliant.”

4:00 p.m.

Mr Speaker, I would have thought that this is something that would have been left to the Ministry of Food and Agriculture. I do not see anything new that this 24-Hour Economy policy is bringing.

Mr Speaker, there have been various definitions. Even this afternoon, Senior Members of this House were attempting to define a 24-Hour Economy. We have not understood the 24-Hour Economy up till

date. I will go further to the object of the Bill. It says,

“The object of the Bill is to establish the 24-Hour Economy Authority to ensure the integrated, sustainable transformation of national systems for economic production, supply chain, marketing, and labour power development and to provide for related matters.”

Again, words are used. In this country, we had Planting for Food and Jobs, and we had Planting for Export. I do not think that the innovative idea that is coming and has been brought to this House, is different from what the former government, that is, the Akufo-Addo and Bawumia Government did, so far as this planting for jobs and exports are concerned.

Mr Speaker, I do not see the marriage between the three steps that this Bill is proposing. Again, I have thought that it was supposed to be a Government programme, but it goes the way the Akufo-Addo-led Government did with One District, One Factory (1D1F). When we spoke about 1D1F the idea was that it was supposed to be a private initiative. Again, they turned around to talk about the fact, and this is in this report, that it must be private. If I may point out, at page 8, the last paragraph to the next page says,

“In addition to commercial financing, the Programme is expected to attract funding from private and institutional sources, including developmental banks, pension funds, multilateral development partners, and private foundations, rather than relying on direct allocations from the national budget.”

It is not surprising that I did not see much in the Budget. So, if the Government is

planning to use the private sector to support this initiative, I am afraid that we are heading nowhere than failing the country.

Mr Speaker, I would advise that I do not see the linkage, apart from the fact that we have established a structure that there is going to be a chief executive, accounting department, deputy executive and other things. Apart from the structure, which is normal, I do not see anything that is being proposed in this Bill, and that is why I would pray to the Attorney-General and Minister for Justice that he should be bold, think about this, advise the Government, and withdraw this Bill, and, if possible, rework on it and resubmit it to the House. Thank you, Mr Speaker.

Mr Alamzy Nikyema Billa (NDC — Chiana-Paga): Mr Speaker, this Report is very innovative, and I am sure Ghanaians will be happy with it.

Mr Speaker, the 24-Hour Economy refers to an economic system that takes into consideration working around the clock, where we have 24 hours a day, seven days a week. I want to remind my Hon Colleagues on the other Side, that this was a political promise, and Ghanaians bought into it very well. The concept emerged as a response to the growing demand to move away from the traditional working hours. In today's world, this reflects the shift of societal patterns.

Today, the consumer behaviour that we have is not like before. The consumer has become so demanding that the traditional hours cannot contain us. The 24-Hour Economy encompasses the various industries, which include the retailing industry, hospitality industry, healthcare industry, transportation industry, the entertainment industry, the agricultural industry and so many more.

Mr Speaker, this is driven by globalisation. This is talking about technological advancement and the need for convenience for our people, so, I wonder why my Hon Colleagues on the other Side have a problem with it. It is all about convenience for our people.

Mr Speaker, I want to remind them that the driving force is not National Democratic Congress (NDC). The drivers of the 24-Hour Economy today are the rise of online shopping and the flexibility of working hours that workers demand. With the 24-Hour Economy, people can now work, shop, access service any time of the day and even in the night. If they do not want this, what do they want?

Let me first of all state what the 24-Hour Economy Authority Bill will bring about, so that if there is time I will elaborate on them. It will bring about improved access to health service. It will bring about increased employment opportunities for our people. Let us take recruitment into consideration. Look at how many people are applying for jobs and how many people we are going to employ. The 24-Hour Economy is going to make sure that we employ most of our people so that they can also be gainfully employed and benefit from it. Mr Speaker, it will also enhance the economic growth. They left an economy that was on its knees, but I am sure with 24-Hour Economy it is bouncing back and will definitely stand.

I would not conclude without trying to tell my Brothers on the other Side that greater convenience for our people should be our concern. Today, the world has moved from the traditional pattern. If one wants to buy a product in the night, he should be able to get it. If a person wants to access service in the night, he should be able to get it. That is why the 24-Hour economy is not only

important to myself, it is not only important to NDC, it is not only important to New Patriotic Party (NPP), but it is important to all Ghanaians.

The support shifts will enhance emergency response. Today, we have lost most of our people because of emergency response. We call the ambulance then they tell us that they are off. We get to the hospital and the only doctor will not be there because it is night. With 24-Hour Economy, there will be a doctor there in the morning, there will be a doctor in the hospital in the afternoon, and even at midnight, there will be a doctor.

Mr Speaker, I have a lot on my mind to say but because of the time constraint, I would urge everybody to put aside our political lens and accept the 24-Hour Economy Policy. Thank you very much, Mr Speaker.

4:10 p.m.

Mr Samuel Abdulai Jinapor (NPP — Damongo): Thank you very much, Mr Speaker, for the opportunity to contribute today. Thank you very much, Mr Speaker, for the opportunity to contribute to the debate relating to this Report. Mr Speaker, it is important that we from this Side of the House make the point that we believe that a 24-Hour Economy is possible. It is possible indeed. If we go to China today, many aspects of their national economy run on a 24-hour basis. Those who are familiar with the printing industry of China know that, when elections are being held in several countries, that sector functions on a 24-hour basis.

Mr Speaker, even here in Ghana, during the Christmas season, caterers and those who operate within the hospitality industry,

in many cases, run on a 24-hour basis. They hire caterers for eight hours in three shifts, making 24 hours. Mr Speaker, so we do not suggest by any stretch of imagination that a 24-Hour Economy cannot be built.

Mr Speaker, it is also important that we are honest in the public life of our country, we are honest in politics, we are honest in governance, particularly when we are dealing with one of the most important and disturbing issues confronting our country, unemployment, and even more importantly, when we are dealing with unemployment as it relates to the Ghanaian youth. Today, everywhere in Ghana, the biggest issue is unemployment. Young men have finished school, but they cannot find jobs. So, it is a big issue. Therefore, let us confront and discuss this matter dispassionately and with candour.

Mr Speaker, I refer the House to page 6 of the Report, paragraph 7.1, titled Accelerated Export Programme. When you read that whole paragraph, the point that is being made is that this Authority is being set up to ensure that our economy promotes exports so that we can have a 24-Hour Economy, which will create jobs for the people on account of export promotion. Mr Speaker, in this country, we have a whole institution, the Ghana Export Promotion Authority (GEPA), whose sole mandate and responsibility is to promote exports. The question that I believe the Ghanaian people, particularly the youth of our country, will ask is, why create another Authority for export promotion when we have a whole authority, GEPA, dedicated to promoting exports?

Mr Speaker, we have the Ghana Free Zones Authority, the Ghana Investment Promotion Centre (GIPC), which are responsible for promoting investment, and

that will create jobs. Mr Speaker, so the first point I would like to make is that this proposed Authority is a complete duplication. It is becoming clear that our Friends want to buy time and want to continue to give the youth of our country some false hope that some 24-Hour Economy is about to be birthed, which will then generate jobs for the youth of our country.

Mr Speaker, I began by saying candour and honesty in politics and governance are absolutely important. We do not need another Authority to promote exports and thereby create a 24-Hour Economy to deal with the unemployment situation in our country. We have GEPA already. Mr Speaker, let me refer the House again to page 7 of the Report, and with your permission, I quote:

“The second pillar centres on the development of supply chain and market systems, with emphasis on the provision of reliable energy, security...”

Mr Speaker, the Report is telling this House and telling the country that a 24-Hour Authority is to be established to provide reliable energy security in order for us to have a 24-Hour Economy and create jobs for the youth of our country. Mr Speaker, there is a whole Ministry, the Ministry of Energy and Green Transition, whose whole mandate is to ensure reliable energy security.

So, the question again that the Ghanaian people will ask, that the unemployed youth will ask, do we need an Authority in order to be able to establish a reliable energy security to build a 24-Hour Economy and to generate jobs for the unemployed youth of our country? Mr Speaker, the clear answer is no, because there is the Ministry of

Energy and Green Transition. Mr Speaker, let us also, as I say, be fair to the facts.

Mr Speaker, this is serious business being conducted in this House. The fundamental question is, what did President Mahama and the NDC promise the Ghanaian people and the unemployed youth of our country? With that, let me refer the House to the NDC manifesto, specifically page 22 of the NDC manifesto. This is what they promised the country, this is what they promised the unemployed youth of our country, this is what they campaigned on, and put out multiple adverts on this promise. The whole campaign of the NDC in the 2024 election was anchored on this promise, and I quote:

“The 24-Hour Economy is a deliberate policy intervention by the incoming NDC administration to stimulate economic growth by creating an enabling environment for businesses and public institutions to operate 24/7, in three shifts of eight (8) hours each.”

Mr Speaker, emphasis is on three shifts of eight hours. They go further to indicate that the Driver and Vehicle Licensing Authority (DVLA) will operate 24 hours, Customs will operate 24 hours, the Ghana Ports and Harbours Authority (GPHA) will operate 24 hours, and the Passport Office will operate 24 hours. So, if DVLA were operating 24 hours today, it would mean that the unemployed Ghanaian youth could work in three shifts at DVLA, an eight-hour shift. They can do that today.

Mr Speaker, with the greatest of respect, I want to submit that we do not need an Authority to fulfill your promise of ensuring that DVLA, Customs, GPHA, Passport Office, and all these public institutions, which were enlisted in their own manifesto, operate 24 hours of three shifts of eight

hours. They could have done that within 100 days of assuming office, because they exist. Mr Speaker, what is even more worrying is that the NDC Government has spent a whole year putting together a policy document, and this is their flagship programme.

In 2016, President Akufo-Addo's flagship programme was Free SHS. By September 2017, Free SHS had been launched, was in full gear, and indeed, Free SHS was operational from September 2017. Mr Speaker, how did they implement their flagship programme?

4:20 p.m.

The Government has spent a whole year in putting together a policy document, and this is their flagship programme. Mr Speaker, in 2016, President Akufo-Addo's flagship programme was Free Senior High School (Free SHS). By September 2017, Free SHS had been launched, it was in full gear, and indeed, Free SHS was operational from September 2017.

Mr Speaker, how did they implement their flagship programme? They appointed a National Coordinator for the 24-Hour Economy, Hon Goosie Tanoh. I see he is here, but let me admit that I admire him a lot. I have to put that on record. The Coordinator came to tell us that they need US\$400 million to operate the 24-Hour Economy. Mr Speaker, for their flagship programme, they dedicated 7 per cent of the US\$400 million, and they have even not been able to fulfil the 7 per cent of the US\$400 million that they committed.

Mr Speaker, let me conclude by indicating that it has taken them one whole year to put together a policy document, and indeed, when they themselves committed 7

per cent of the US\$400 million required to operationalise a 24-Hour Economy, even the 7 per cent, they have not fulfilled it.

Mr Speaker, I want to conclude by saying that the two biggest issues confronting our country continue to be unemployment and cost of living. Across the length and breadth of our country, the biggest issue in my Constituency of Damongo, from Kojokura to Seyiri, from Langatere to Kidendelapa, is youth unemployment. Young men and women in this country cannot find jobs. You made a commitment to implement your flagship programme of 24-Hour Economy, and today, the 24-Hour Economy, one whole year down the road, they are here telling us we should create another bureaucracy, another institution, another authority. Ghanaians are tired of institutions and tired of bureaucracies and tired of talk. The Ghanaian youth require action and jobs now.

Mr Speaker, this Authority is just going to be a job for the men. It is just going to be an authority where we would have another CEO, three deputy CEOs, corporate affairs manager, the people President Mahama has still not found jobs for, he will then find jobs for them, buy a few Land Cruisers for them, give them salaries and give them allowances. This Authority will not affect the suffering unemployed youth. It will not affect the unemployed youth in from Bolgatanga, to Keta, to Bosome Freho and across the length and breadth of our country. It will not.

Mr Speaker, I want to conclude by submitting, and I do so forcefully, that 11 months into the NDC Administration, their flagship programme of 24-Hour Economy, 1-3-3 formula, three shifts for the unemployed Ghanaian youth, eight hourly shifts, the only job that is running 24-hour

today, that has three people doing the job, is the Office of the Speaker of Parliament.

Mr First Deputy Speaker: Why are you trying to speak for 24 hours? Kindly conclude.

Mr S. A. Jinapor: Mr Speaker, the only job that is 1-3-3 is the job of the Speaker of Parliament, where you have Rt Hon Alban Bagbin doing one shift, and you, Hon First Deputy Speaker, does the second shift, and the Hon Second Deputy Speaker does the third shift. Even, in any event, that is not 24 hours, and that is not eight hourly shifts. You do not do eight hourly shifts. That is another gimmickry. This is another deception. This is just to buy time. This is just to give false hope to the unemployed. You promise them employment, you promise them 24-hour economy, you promise them 1-3-3, 11 months down the road you have failed to deliver. Ghanaians are tired of talk, they want action. Implement it and implement it now.

I thank you, Mr Speaker. [*Hear! Hear!*]

Mr First Deputy Speaker: Hon Zuwera Ibrahimah, you have the floor.

Ms Zuwera Mohammed Ibrahimah (NDC — Salaga South): Thank you very much, Mr Speaker.

Mr Speaker, as we consider the Report on the 24-Hour Economy Authority, I am dumbfounded that my Colleagues on the other Side are trying to suggest that we should not have an Authority for the 24-Hour Economy. We were all in this Chamber in the Eighth Parliament, when our Friends on the other Side touted the Free Senior High School programme (Free SHS), and for four years we sat here. In fact,

Mr Speaker, one day they made us sit here and they said the Bill was on its way, we should wait, it was coming. We sat here from *anopa* to *anadwo*, from *dasafe* to *dedere*, the Bill never came, up to today, these people, this is what they did with the Free Senior High School.

Mr Speaker, and I am very surprised that my learned Brother, who is running away from the Chamber, made reference to the Free Senior High School and suggest that within three months the NPP Government had implemented it. Mr Speaker, you and I know the story of the Free Senior High School very well. It was chaotic, it was characterised by demonstrations, Conference of Heads of Assisted Secondary Schools (CHASS) strikes, no food, gari and palm oil, we saw it all. This is what happens when you implement a programme without a policy, without thinking through it. Mr Speaker, fashioning out policy and programmes to run a country is not a three-month business, and they should not be proud of that record.

Mr Speaker, since the NDC Government came into power on 7th January, 2025, have you heard of a single strike from any senior high school complaining about feeding? Have we heard about any strike actions, any demonstrations, school children complaining that they have not been fed? This is what you get when you provide good governance. This is what you get when you provide governance that invests time in fashioning out policies that will have enduring practicality. Not just coming to do propaganda and sacrificing the future of our children.

Mr Speaker, export promotion and export development are two distinct things. They are never the same. And that is why the 24-Hour Economy says it is productivity,

competitiveness and inclusive growth. If you read the preface to the 24-Hour Economy, and His Excellency President Mahama said, we are going to consume what we produce, and when we export, we export with value. We are cutting out the export of raw materials.

Mr Speaker, this week, today, this morning, I woke up and coming to work, I felt proud as a Ghanaian. My only regret was that I did not see the news item before I left home. I would have come here in my *fugu*. His Excellency President John Dramani Mahama has given expression to the productivity and export of finished Ghanaian products by arriving in Zambia in his beautiful Ghanaian *fugu*. Mr Speaker, to imagine that Zambians decide that based on that they are going to wear our *fugu*, that is export of developed products. Export of finished products.

The 24-Hour Economy markets, imagine each market has a *fugu* developing plant. The number of *fugu* that would be produced and exported to Zambia and other places in the world. This is what we mean when we talk about the 24-Hour Economy. We are not talking about export promotion. We are talking about export development. We will develop the products; we will develop what we have and export it so that we gain value on our produce.

4:30 p.m.

Mr Speaker, I heard my Brother questioning the 24-Hour Economy Programme. He is not aware, and maybe he should have asked me, but the Minister for Transport and the Driver and Vehicle Licensing Authority (DVLA) are building DVLA offices in every district in this country, including my own good Salaga South. And those offices are going to

employ the youth and Ghanaians looking for jobs. If, at the end of the day, we employ them and they require a 24-hour or 8-hour shift service, that is exactly what we will provide. We will never run away from that campaign promise.

Mr Speaker, today I am working in my municipal hospital, and I am asking for quarry dust from the Upper East Region. I am told that the dust must travel throughout the night because, when they travel during the day, the heat and weather affect the tyres. That is what 24 hours means. That enough security will be provided so that our trucks, goods and services can be conveyed 24 hours across the country, safely.

In my Constituency, Salaga, there is a community called Bunkwa that produces the best yams in the country. Fortunately, the Minister for Roads and Highways is here. In the Budget, we were told that 1,000km of roads are going to be built to farming areas and communities so that goods and farm produce will be moved to the market centres. So, if a 24-hour economy exists in Salaga and we bring all the yams there and all the importers come to Salaga and buy the yams around the clock, Mr Speaker, that is a vibrant economy for the people of Salaga.

So, if anyone sits here in this house and tries to suggest that we should not have an authority because some other authorities already exist, to what extent did those authorities provide service to affect the local people in this country? This is a policy that is drilling down to the people of this country. It is not going to be a headquarters sitting in Accra, and people do not know what is happening. A 24-hour economy will be represented in every district.

Mr Speaker, I do not know that there is an export promotion office in Salaga. But I know, as we speak, and I have seen the prototype of the 24-hour market: hospitals, fire stations, police stations, everything is in there. Pharmacies and clinics are to provide service to the good people of this country around the clock. And that is what sensitive leaders do; leaders who think about the people. President Mahama had the option yesterday to arrive in Zambia in a Louis Vuitton suit but he wore the fugu from Daboya, and I know when he comes back, he is going to wear a fugu from Tamale.

So, this is what we mean by export development and promotion. And we thank His Excellency President Mahama for showing the way. By the grace of God, we will continue to wear our Ghanaian-made products, as we will produce them here. We will consume what we produce and so our factories will work 24 hours; our security services will work 24 hours; our hospitals will work 24 hours.

Mr First Deputy Speaker: Hon Member, conclude.

Ms Ibrahimah: And our markets will work. We salute all our market women in this country. They should look forward to the 24-hour economy market.

Thank you very much, Mr Speaker.
[Hear! Hear!]

Mr First Deputy Speaker: Hon Jerry Ahmed, will you be yielding the Leadership to someone behind you?

Mr Jerry Ahmed Shaib: Mr Speaker, I shared a list with you, and as I agreed by —

Mr First Deputy Speaker: Hon Member, we agreed on three for each Side,

and the three included Hon Anyimadu-Antwi, Hon Jinapor, and Leadership. Now, the list did not include Hon Anyimadu-Antwi, but being a senior, he had the floor. So, it means that I must move to Leadership. That is why I am asking whether the front will take it or you yield to somebody behind you.

Mr Shaib: Mr Speaker, respectfully, that was your discretion. We agreed here that it would be Hon Kabiru, then Hon Kojo Oppong Nkrumah.

Mr First Deputy Speaker: We only agreed on the number.

Mr Shaib: Yes, it was supposed to be three on each Side and one at Leadership.

Mr First Deputy Speaker: The list that you gave me had Hon Jinapor, Dr Kabiru, and Leadership. But in practice, when the most senior is on his feet, my hands are tied. So, will you yield to Hon Kabiru? Yes?

Mr Habib Iddrisu: Mr Speaker, this is a very important matter we are discussing. Hon Kojo Oppong Nkrumah is the Ranking Member of the Committee on Economy and Development. When he was making the list, you could see that our senior Colleague, Hon Anyimadu-Antwi, was not included, but we agreed it was supposed to be three on each Side and Leadership. And in your wisdom, you concluded that he is senior and was on his feet.

Mr First Deputy Speaker: But that does not change having three on each Side.

Mr Habib Iddrisu: Mr Speaker, we have Dr Kabiru on the list, and Hon Kojo Oppong Nkrumah, who is the—

Mr First Deputy Speaker: Hon Member, I just asked a simple question. On this note, will the Leadership yield to Dr Kabiru?

Mr Habib Iddrisu: No, Mr Speaker, Dr Kabiru will speak, as well as Hon Kojo Oppong Nkrumah.

Mr First Deputy Speaker: Leadership of the Minority, you have the floor.

Mr Kojo Oppong Nkrumah (NPP — Ofoase Ayirebi): Mr Speaker, thank you for the opportunity to contribute to this Report that has been laid before the House.

I first want to lay a proviso before I discuss four issues from this Side of the House.

First, Mr Speaker, is the fact that this Bill was brought to us on 3rd December, 2025. This Bill, the 24-Hour Economy Authority Bill, is supposed to be based on the 24-Hour Economy Policy. At the time this Bill was brought to this House, the policy document was not before this House. In fact, the policy document itself was brought yesterday, on 4th February, 2026. So, Mr Speaker, Parliament has considered this Bill without the benefit of the policy document, and this is what we discussed earlier, that we are building the first floor before the foundation.

Mr Speaker, today we will cooperate and work with our Hon Colleagues, and we mentioned to them that we are not opposed to this Bill. But we would like to implore them that going forward, the remaining policy documents must come to this House before the Bills come, so that the consideration is done in tandem.

Mr Speaker, let me deal with the four substantive issues that we want to raise on this Side of the House. First is the fact that we are of the view, respectfully, that a 24-Hour Economy Authority is totally unnecessary for the purposes of delivering a 24-hour economy and we say this with great respect. Mr Speaker, six of the biggest cities that operate 24-hour economies, New York, Tokyo, London, Bangkok, Dubai, Berlin, none of them started off with a 24-hour Economy Authority. In fact, it is only London that has a commission, years after the fact, to attempt to support the functioning of a 24-hour economy.

What this Bill does, contrary to what it advertises to the youth in this country, is that the Government promised a 24-hour economy, and they have brought the law for the 24-hour economy. What this Bill actually does is set up a bureaucracy, an authority with a chief executive, an internal auditor, hundreds of staff, and a board. They are going to ask for a budget and spend. But with the greatest of respect, this Authority does not deliver a 24-Hour Economy in any way.

4:40 p.m.

So, Mr Speaker, if anybody is under the illusion that what the Government has done is to bring a Bill that will give life to the 24-Hour Economy, we would like to serve notice, and the notice is hereby served that this Bill does not deliver a 24-Hour Economy. It only sets up an Authority, a new bureaucracy, which will not deliver a 24-Hour Economy.

Mr Speaker, if it is about the Accelerated Export Development Programme (AEDP), as has been mentioned by my Hon Colleagues, there is already the Ghana Export Promotion Authority (GEPA), fully

funded, working and opening trade houses in other parts of the world. This is not the body that will accelerate export development. In fact, this ends up being a duplication. We do not want to say it is just going to create jobs for the boys who have not been appointed in the Government so far; we would not say that. If it is about AEDP, it is just a duplication; it is neither going to create a 24-Hour Economy nor accelerate exports.

Mr Speaker, some of the earlier Hon Colleagues on the other Side claimed that they were shocked that we were suggesting we had not seen what they promised was reflected in this Bill, and we are shocked that they are shocked because when they advertised the 24-Hour Economy, they had a very clear unambiguous definition for the millions of Ghanaian youths to hear. They said they were going to introduce a system that will allow people to work around the clock, “1-3-3” shift. We remember the launch of their manifesto when His Excellency the President, then a candidate, had the clock behind him saying “1-3-3” meaning 1 job, 3 staff, 3 shifts.

Mr Speaker, we have read this Bill from clause 1 to clause 28, and there is no mention of an around-the-clock working cycle; there is no mention of it here. If there is any Ghanaian youth out there who labours under the apprehension that what the Government has brought is about a 24-Hour working cycle, please read it; It is not in it. Mr Adongo attempted to give us a variation that the 24-Hour Economy could mean a 1-3-3 shift or a 1-2-2 shift, whichever way they keep it, it is not in this Bill.

So again, the claim that this Bill is going to enable people to work around the clock, increase productivity and create more jobs,

this Bill does not respond to that. It is a fallacy.

Mr Speaker, let me go to the issue of agencies. In their manifesto, they actually listed agencies that they were going to have work for 24 hours. Such as the Driver and Vehicle Licensing Authority (DVLA), Ghana Customs Service, *et cetera* has been mentioned. None of these agencies is mentioned in this, but if indeed this Bill is to compel Government agencies to work around the clock, they should be listing them here.

In fact, Mr Speaker, if we read the functions of the Authority that they have listed, please permit me to read clause 3,

“Functions of the Authority:

- i. Promote the optimisation of volume, variety, and quality of products produced in the country for domestic consumption and export;
- ii. Promote the development of the micro, small, and medium-scale enterprise sector;
- iii. Promote the role of the micro, small, and medium-scale enterprise...”

The National Board for Small Scale Industries (NBSSI) was doing that.

Are these the 24-Hour Economy?

The closest we will find is in clause 3(k), and it reads:

“propose the incentive regime applicable to companies operating in the 24-Hour

economy value chain, including fiscal and monetary incentives;”

What is the Ministry of Finance doing? What is the Ministry for Trade, Industry and Tourism doing?

So, Mr Speaker, this Authority they want to create, with the greatest of respect, is totally unnecessary if their purpose is to enable the economy function for 24-Hours and allow people to work around the clock. The “1-3-3” shift they spoke about is nowhere here. The agencies they have mentioned politically on this platform are nowhere in this Bill.

Mr Speaker, the Minister for Roads and Highways said thousands of jobs have already been created under the 24-Hour Economy. He said that a few minutes ago. But out of respect for the rules, we did not want to rise and challenge him. We would have been pleased if he had given us examples of those thousands of jobs that have been created under the 24-Hour Economy already. This is a House of records. How can he say that today there are thousands of jobs that have already been created under the 24-Hour Economy? Then why are their youths complaining that no jobs have been created?

Mr Speaker, thousands of jobs have been created? That is a palpable untruth. He went ahead to say that there are already contractors who are working 24-Hours in Ghana. I would have been happy if he had named one. We would have gone there at 2 a.m. with our cameras to find out if they are really working 24-Hours around the clock. Let us not do this.

Mr Speaker, the real reason for which they are promulgating this Authority, and we have come to that view, is just to buy

time. From January 2025 to February 2026, the 24-Hour Economy has become a hoax, and they know very well that it is not going to bear fruit. So, what they are doing is creating an impression in the minds of Ghanaians that we are now creating an Authority and that the Authority is working and would now be starting. It is not coming anywhere.

What they have put in this document will not create a 24-Hour Economy.

My last two points, Mr Speaker. I was shocked that, after all the criticism of the 1D1F policy; that that policy was not coherent because it was relying on the private sector. I was shocked to read in paragraph 4, page 2, of the Memorandum to this Bill.

Mr Speaker, page ii, line 8 reads:

“Furthermore, the programme is delivered by the direct entrepreneurial efforts of organised private citizens acting through their well, as well as community-based organisations, acting through their collectives, cooperatives, companies, and other industry associations, as well as community-based organisations, rather than the public servants.”

Mr Speaker, what they are actually saying is that if one is hoping that the public sector is what will deliver a 24-Hour Economy, we should forget it; they are waiting for the private sector. Because the claim was that they were going to ensure that public organisations were working 24 hours. Now the Bill comes before us, and they say they are waiting for the private sector. This is disappointing news to the millions of youths who believed the promises that they made.

4:50 p.m.

Mr Speaker, now we come to the conclusion that if this is what it is all about, then the One District One Factory (1D1F) was a whole lot better than this 24-Hour Economy Bill which they have brought before us.

Mr Speaker, the National Development Planning Commission (NDPC) of the Republic of Ghana, not me, has reported that at least 150 functioning factories were left at the end of 2024. Not me, the NDPC reports it. It is in the annual progress report of the NDPC. They may want to quarrel with them, not me. They did not require an Authority to do this. The same Ministries that were functioning were the ones providing the incentives. If all that we are going to do is to create this bureaucracy, pay all these moneys, and now wait for the private sector to come, then, Mr Speaker, we are doing ourselves a big disservice. It is their policy. They have decided this is how they want to implement it. We will not be opposed to it. We will help them to fine-tune the Bill, but we caution them in good faith that if this is what they hope will deliver a 24-Hour Economy, this will not. They still have time to reconsider and come up with something that can deliver.

The last time we had a conversation, and I will conclude here, we drew their attention to a bill they were passing, the Ghana Gold Board Bill, 2025, that if they mixed some of the provisions in it, “regulator” and “operator”, they would be in trouble. Mr Speaker, “*Fofie anto Atta*”. We have seen the trouble that has come, and now we are waiting to take the Motion for the Parliamentary Enquiry. Our prayer is that this does not become another such incident where they will refuse to listen, only for us a few months down the line to find

ourselves in a place where we have passed the Bill, we have created Authority, people have been paid, they have bought cars, and no 24-Hour Economy has been created. Mr Speaker, with these few words, we will support their Report, and we will help them to pass their Bill. But we pray that they help to fine-tune it so that it delivers what they promise.

I thank you, Mr Speaker, for the opportunity.

Mr First Deputy Speaker: Yes, Majority Leadership? Hon Majority Leader, you have the floor.

Majority Leader (Mr Mahama Ayariga): Thank you very much, Mr Speaker. I think a lot has been said about the policy to create a 24-Hour Economy in our country. I think in the arguments of both Sides of the House, we can at least agree on a number of things. The first is that our economy needs major transformation. That I think there is agreement. We are confronted with a crisis of unemployment, especially among our youth. That, I think, there is also some consensus, and that we must do something radical to give hope to the youth, to give hope to the population, and to enable the private sector to accomplish the hope that has been created.

Mr Speaker, the 24-Hour Economy and the Authority that has been established to implement it is not the vehicle that will create a 24-hour economy. It is a coordinating secretariat that will coordinate the activities of all the other sectors who, when they function and function properly, will deliver a very productive sector, and will deliver employment. That is the whole idea. That is why it says that the whole 24-Hour Economy is founded on three pillars. One is production systems development

transformation. Let us take just this one pillar and try to understand what it means when we say production systems development transformation. Let us take the agricultural sector. The NPP introduced some agricultural policies. What happened? We did not see transformation of the agricultural sector. What accounted for it? We were trying to develop the agricultural sector through peasant farmers, smallholder farmers, without irrigation, without the requisite machinery, without effectively establishing the link between input financing and then also off-taker markets. Now, we looked at it and we decided that we need to transform the entire production system. So, for instance, in the agricultural sector, what has succeeded in most economies in this day is large-scale commercial agriculture. Large-scale commercial agriculture is a well-organised business requiring huge capital investments, huge machinery, highly qualified skilled labour and a lot of technology. So, the production system has to be transformed. We cannot achieve our objectives without transforming the production system.

The NPP attempted. What did we see? Fertiliser, few input supplies, and *et cetera*, without attempting to transform the entire production system, uprooting the old system. That is why a production system development transformation is crucial. This applies to many other sectors.

So, what we call the Authority, is simply a secretariat, which is in existence already in the Office of the President. There is a secretariat. But the reason we want to vest it with the Authority status is because this is a secretariat that is going to superintend and work with Ministers and sector Ministries. And so, we cannot have a simple secretary of a secretariat trying to superintend over

Ministers. That is why it is being vested with the authority of an Authority. That is the whole idea. The Secretariat exists already. The NDC did not wait till today to establish a vehicle for the implementation of the 24-Hour Economy. The institution exists. We are changing its legal character in order to give it the relevant powers that will be needed for it to be able to achieve its objectives.

The policy document is not just coming to Parliament. The policy document was inaugurated on 2nd July, 2025. Mr Speaker, a policy document must not necessarily come to Parliament. No. Where in this country, in the governance history of this country, has it become compulsory that when a Minister develops their policy document, he should bring it to Parliament? But the Hon Member requested for it, and that is why I took the pains to bring a copy to be laid and to make copies available to us. But it is out there.

They have been copiously making reference to NDPC reports. A lot of the reports that they have been writing are not documents of this Parliament. They are lying there. We all go and buy the documents and we read them. They are in libraries. So, when the President goes to inaugurate the policy underpinning the 24-Hour Economy, as a diligent Member of Parliament, the first thing them do is to make sure that they take steps to get their own copy so that they are well informed. So, I am not surprised that I have heard some of the arguments that are being made today because it is clear that some people did not make time to read the policy documents. That is why I took pains to bring copies and make the copies available to us. Now we would have to focus on the development of supply chain and market systems.

5:00 p.m.

Let me say that, when they say it is not necessary, indeed, it appears to me that they are even arguing against a position that their own regime advocated for. I recall in this House that there were several Message on the State of the Nation addresses during which President Akufo-Addo decried what he called the Guggisberg Economy, referring to the economy created by Governor Gordon Guggisberg. I think somewhere in 1920, when he was governor, where our economy was fundamentally just an export economy, exporting only raw materials and not finished products.

So, he made it one of his major objectives to pursue a programme of industrialisation. That has been the basis of the One-District One-Factory Policy. So, there was an attempt, except that the attempt did not pay attention to systems. We constructed factories to process tomatoes where there were no tomatoes. Because we had not paid attention to the transformation of the production system of tomatoes. We constructed factories to process watermelon where there was no watermelon—*[Interruption]*—Because we had not paid attention to the production system transformation. So, watermelon was not produced, tomatoes were not produced—

We have all sorts of factories dotted in all the bushes that are not producing anything because we did not pay attention to the transformation of the production systems and the value chain system. That is why we are establishing the 24-Hour Economy Authority, so that it can pay attention to systems, that is, production systems development transformation, development of supply chain and market systems, and the development of labour. These when put

together will enable an economy that will operate 24 hours.

It would be naive to imagine that on the heels of the very bad economy that they handed over to us, the day after, this economy will become a 24-Hour operating economy. It will be naive to have that imagination. That the economy that was overburdened with debt, to the extent that the entire international financial system had written us off, the economy that was burdened with inflation at the rate that they left it, the economy that was burdened with exchange rate at the rate that they left it, the economy that was burdened with interest rate at the rate that they left it, where the private sector could not have access to capital to expand, how was it humanly possible, that anybody taking over an economy like that, will within a year transform that economy into an economy that is working 24 hours.

Mr Speaker, the fundamentals need to be addressed. It is obvious that in the last 11 months, we have demonstrated capacity. We have brought inflation down to zero digits. We have reduced interest rates. We have reduced the debt. The debt to Gross Domestic Product (GDP) has reduced drastically. Ghana has been given excellent ratings by all the international rating institutions.

This economy is ready to be transformed into a 24-Hour Economy. That is why we are now establishing the Authority that will implement the 24-Hour Economy. That is why I urge all of you today to vote, so that we will have the Second Reading, adopt the Report, go through the Consideration Stages and where there are changes to be made, we will make the changes and we will establish the 24-Hour Economy. We will take on board all their questions. Let me

indicate that, we still stand by the fact that the Gold Board—I will not sit down without addressing this, which they raised. We do not see any problem with the Gold Board, absolutely nothing.

On Tuesday, when Osahen Afenyo-Markin raised the issue, I gave him a befitting response. Yes, it is said that US\$214 million is perceived to be unaccounted for. I say perceived because, the BoG has its audit system. The system will audit itself and then present a report. We will see what has happened. Assuming, without admitting that there is even a problem of a loss of US\$240 million.

I did the analysis and the mathematics; I did not use Fufulso Primary School Mathematics. I used Ofoase Ayirebi Primary School Mathematics. I established beyond reasonable doubt that by the implementation of the Gold Board Policy, we had benefited by additionally raking in US\$3.8 billion.

The volume of gold that small-scale miners gave to the Government of Ghana increased in value by US\$3.8 billion in one year, compared to the volume of gold that small-scale miners sold under the NPP Government. So, if we gain US\$3.8 billion and we are perceived to have lost US\$214 million—they should do the mathematics. Why would I jettison a policy like that?

Mr Speaker, we are well-guided in every step that we take. That is why I want to assure Members that in establishing the 24-Hour Economy Authority, we are equally well-guided. On that note, I urge Colleagues to vote in favour of the Motion that we take this through a Second Reading, adopt the Report and proceed to the Consideration Stage.

Thank you very much, Mr Speaker.
[Hear! Hear!]

Question put and Motion agreed to.

24-Hour Authority Bill, 2025,
accordingly read a Second time.

Mr First Deputy Speaker: Yes, Majority Leader, any indication? Are we moving the Motion numbered 20?

Mr Ayariga: Mr Speaker, we can take the Motion numbered 20.

Mr First Deputy Speaker: Yes, Attorney General and Minister for Justice, take the Motion numbered 20.

MOTION

Suspension of Standing Order 169(1)

Attorney General and Minister for Justice (Dr Dominic Akuritinga Ayine): Mr Spekaer, I beg to *move*:

That notwithstanding the provision of Order 169(1) of the Standing Orders which requires that when a Bill has been read a second time, the Bill shall pass through a Consideration Stage which shall not be taken until at least two sitting days have elapsed, the Consideration Stage of the 24-Hour Economy Authority Bill, 2025 may be taken today.

Mr First Deputy Speaker: Motion ably moved. Any seconder?

Chairperson of the Committee (Mr Shaibu Mahama): Yes, Mr Speaker, I rise to second the Motion.

Mr First Deputy Speaker: Hon Members, Motion moved and seconded. It is for the consideration of the House. Hon Members, this is a procedural Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: The 24-Hour Economy Authority Bill 2025 at Consideration stage.

Mr Jerry Ahmed Shaib: Mr Speaker, we are hoping that we will have copies so that we could peruse, support or otherwise. We do not have copies—[Interruption] I have checked my pigeon hole. It is not there. We do not have copies. Please let us have copies, so we can proceed.

Mr First Deputy Speaker: Hon Majority Chief Whip, I will suspend for just five minutes to enable copies to be distributed to Members.

5:06 p.m. — *Sitting suspended.*

5:10 p.m. — *Sitting resumed.*

BILL — CONSIDERATION STAGE

24-Hour Economy Authority Bill, 2025

Clauses 1 and 2 ordered to stand part of the Bill.

Clause 3 – Functions of the Authority

Mr Shaibu Mahama: Mr Speaker, I beg to move, opening phrase, after “shall” *insert* “in collaboration with relevant agencies”.

Mr First Deputy Speaker: Hon Member, what will be the new rendition?

Mr S. Mahama: The new rendition is, “To achieve the object under section 2, the Authority shall, in collaboration with relevant agencies.”

Mr Jerry Ahmed Shaib: Mr Speaker, this just to bring to your attention that looking at clause 3 (d), there is “increased collaboration among producers...” Does it not still talk about some sort of collaboration?

Mr First Deputy Speaker: Well, his amendment is to the opening phrase, that is “To achieve the object under section 2, the Authority shall, in collaboration with relevant agencies”, then the (a), (b), (c), (d) will come.

Question put and amendment agreed to.

Mr S. Mahama: Mr Speaker, I beg to move, paragraph (e), line 2, *delete* “in partnership with cooperative and corporate sectors”. The new rendition will be “support, facilitate and develop job creation and decent work.”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Hon John Darko?

Mr John Darko: Yes, Mr Speaker, on clause 3 (g), which reads that “the Authority shall revive the national culture of community, self-organisation and mobilisation.”, it looks to me that this particular provision is not measurable. If we are looking at the functions of an Authority, I believe that the functions must be measurable. Looking at this particular provision, how is the Authority going to revive the national culture of community, self-organisation, and mobilisation? So, I

suggest that this be taken out so that the new rendition will take away the sub-clause (g).

5:20 p.m.

Mr First Deputy Speaker: So, your proposal is to delete (g)?

Mr Darko: Mr Speaker, yes.

Mr First Deputy Speaker: Then do so, so that I can put the question.

Mr Darko: Mr Speaker, I propose that we *delete* clause 3(g).

Mr First Deputy Speaker: It is for the consideration of the House.

Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, I will urge my good Friend to abandon his amendment. Indeed, if he were a student of ordinary level, he would note that in the early 80s, there was this programme called the National Mobilisation Programme. This was a programme that galvanised everybody in this nation. It was about nation-building and self-help. Everything about it was about the nation. That is the revival we are talking about. So please, let us get back to history and get to know who we are as Ghanaians and who we were before today. That is the culture we want to inculcate in the people. We want to revive that culture of self-help, self-mobilisation, and improvement in our well-being. That is why this clause ought to stay.

Mr First Deputy Speaker: To read it properly together, it will be:

“To achieve the object under section 2, the Authority shall, in collaboration with relevant agencies, revive the

national culture of community self-organisation and mobilisation...”

That is what the full rendition will mean.

If you insist, I will put the question on your amendment.

Mr Darko: Mr Speaker, I insist because the explanation given by my Hon Colleague on the other Side gives me more reason this should be removed. That the 24-Hour Economy Authority is supposed to revive a 1980 policy. What are they talking about?

Mr First Deputy Speaker: Hon Members, I am putting the question—

Mr Dafeamekpor: Mr Speaker, I disagree with the proposal to have clause 3(g) deleted. I see his difficulty. It is about the revival. Community self-organisation and mobilisation is not dead, so instead of revival, we could say facilitate. This is because communities still engage in self-help projects, in communal labour, in self-mobilisation to undertake even construction projects. So, the essence of what we are doing is to say that this Authority will facilitate, will encourage people to self-mobilise.

Mr Speaker, my proposal would be to *delete* “revive”, and *insert* “facilitate”. It will read:

“To achieve the object under this section, the Authority shall, in collaboration with relevant agencies, facilitate the national culture of community self-organisation and mobilisation.”

Mr First Deputy Speaker: Hon Members, the proposal of Hon John Darko is to *delete* (g) in its entirety. That is what I want to put the question on. So, we can only

come to the amendment of the Majority Chief Whip if this provision is allowed to stay. Then there can be a further amendment to it. Unless Hon John Darko wants to abandon his amendment. If he insists, I will have to put the question.

Mr Darko: Mr Speaker, with respect, please let us put it to a vote so that posterity will see what they did to this Bill.

Question put and amendment negatived.

Mr Dafeamekpor: Mr Speaker, my humble proposal is to *delete* “revive” and *insert* “facilitate”. Mr Speaker, revival suggests that the community mobilisation spirit is dead. It is not. So, my proposal is that it will facilitate. The facilitation means any community that will be willing to engage in mobilisation and community engagement, the Authority will be ready to facilitate —

Mr First Deputy Speaker: Chairperson of the Committee, the proposal is to *delete* “revive” and substitute it with “facilitate”.

Mr S. Mahama: Mr Speaker, that is not fatal.

Question put and amendment agreed to.

Mr First Deputy Speaker: The proposed amendment by the Majority Chief Whip to *delete* “revive” in clause 3(g) and *insert* “facilitate” so that a new rendition will read:

“To achieve the object under section 2, the Agency shall, in collaboration with relevant agencies, facilitate the national culture of community self-organisation and mobilisation.”

I will put a question on the entire clause 3.

Yes, Hon Dr Kabiru Mahama?

Dr A. K. T. Mahama: Mr Speaker, I am proposing that in clause 3(b), we *delete* “sector” from the current rendition. The current rendition reads:

“3. To achieve the object under section 2, the Authority shall, in collaboration with relevant stakeholders;

(b) promote the development of the micro, small and medium-scale enterprise sector.”

And I am proposing that we *delete* “sector” and *insert* “s” to the enterprise so that the new rendition will be to “promote the development of micro, small and medium-scale enterprises.”

Mr First Deputy Speaker: In drafting singular means plural, why do we add “s”?

Dr A. K. T. Mahama: That is alright. Just to *delete* and leave it at “enterprise”.

Mr First Deputy Speaker: Hon Members, the proposal is to *delete* “sector” from clause 3(b). Chairperson of the Committee.

Mr S. Mahama: Mr Speaker, it is not fatal.

Mr First Deputy Speaker: Very well.

Question put and amendment agreed to.

Dr A. K. T. Mahama: Mr Speaker, I propose in clause 3(d) the deletion of increased collaboration among producers in the country and providers and replacing it

with promote so that the new rendition will read:

“To achieve the object under section 2, the authority shall promote affordable finance, technology, data increases and management services.”

This is because of the preamble that has already been created with the amendment that was proposed by the Chairperson of the Committee.

Mr S. Mahama: Mr Speaker, may I ask him to repeat what he said? I did not hear that.

Mr First Deputy Speaker: What he is saying is that in clause 3 (d), instead of increased collaboration, you use the word promote collaboration. I think the basis is that in (a), you used the word promote, in (b), you used the word promote, in (c), you used the word promote, in (f), you used the word promote, and in (k), you used the word promote. So, he is also seeking to *delete* “increase” and insert “promote”.

5:30 p.m.

Mr S. Mahama: Mr Speaker, I think there is already collaboration among producers in the country. This clause seeks to say that we want to up that collaboration, hence, the word “increase”; it is not a substitute for “promote”.

Mr First Deputy Speaker: Yes, Dr Kabiru.

Dr A. K. T. Mahama: Mr Speaker, I get the spirit of the proposal by the Chairperson of the Committee, and I get the sense he is trying to convey. But if we use the word “increase”, we are even introducing

absurdity. How do we assess increase in collaboration? We could say “enhance”, because we admit that collaboration is already ongoing, but we want to intensify or strengthen that collaboration. I think that those words could suit better than the word “increase”. To use the word “increase” in that context is going to be a bit problematic, in terms of even trying to evaluate what we want to do in the context of what the Authority seeks to do and that is the why I am urging that we can have a re-look at the word “increase” collaboration in this context, and use a better substitute. “Promote” is a good word, “enhance” is another word, but “increase” is certainly problematic.

Mr First Deputy Speaker: Yes, Chairperson of the Committee.

Mr S. Mahama: Mr Speaker, I am amenable to using the word “enhance”.

Mr First Deputy Speaker: Very well. Come out with a new rendition and I will put the Question.

Dr A. K. T. Mahama: Mr Speaker, so the new rendition will read,

“to achieve the object under section 2, the Authority shall, in collaboration with relevant stakeholders, enhance collaboration among producers in the country and providers of affordable finance, technology, data services and management resources”.

Dr Abdul-Rashid Hassan Pelpuo: Mr Speaker, from the sense I am getting out of the pronouncement of the Chairperson, I think the “promotes” is a better substitute for “increase” than “enhance”. “Enhance

means an existing situation that you want to make sure you keep. It might not be “increase”.

Mr First Deputy Speaker: I really do not see the difference between “enhance” and “increase”.

Dr Pelpuo: Yes, but “enhance” cannot be the good term.

Mr First Deputy Speaker: I agree with you; the appropriate terminology is “promote”.

Dr Pelpuo: Yes.

Mr First Deputy Speaker: Chairperson of the Committee, “promotion” should have been the right word. Well, I am not to take part in the debate.

Mr S. Mahama: Mr Speaker, I am amenable to using the word “promote”.

Mr First Deputy Speaker: Yes, Dr Kabiru Mahama?

Dr A. K. T. Mahama: Mr Speaker, the new rendition will then be,

“to achieve the object under section 2, the Authority shall, in collaboration with relevant stakeholders, promote collaboration among producers in the country and providers of affordable finance, technology, data service and management resources”.

Mr First Deputy Speaker: Hon Members, the proposal is to *delete* “increase” and substitute “promote”.

Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, “promotion” is not conveying the sense of this clause. We speak of two levels of collaboration here. In the preamble, it is “inter-agency collaboration”. Then, in the subclause, we speak of the “stakeholder collaboration”, which is already in existence. So, it is not about promotion. We want to broaden it. That is the sense. It is to broaden the stakeholder collaboration. So instead of “promote”, we can actually use “broaden”.

Mr First Deputy Speaker: Hon Majority Chief Whip, you know the consistency rules in drafting. If your argument should hold, then we will have a problem with the use of the word “promote” in (a). We will have a problem with the use of the word “promote” in (b). We will have a problem with the use of the word “promote” in (c). So, for consistency—

Mr Dafeamekpor: Mr Speaker, not at all. We introduced “collaboration” in the preamble and in clause (d) because we speak of the two layers. And this was the explanation the promoters gave. The first layer is interagency collaboration. The second layer is that there is already in existence a collaboration between the stakeholders, producers and all that. But the essence is to broaden it; it is to increase it. But there is a problem with the use of the word increase. But I recall that the essence was to broaden the collaboration at that level.

So, if you have a problem with “increase” and the Chairperson is amenable, it has to be broadened, because in (a), (b), and (c), we have not introduced “collaboration” anywhere. So, promotion conveys the essence of the House. But to introduce “increase” in (d), is a problem. To broaden

the collaboration is what I gather from the discussion that they intended.

Mr First Deputy Speaker: You see, Hon Majority Chief Whip, “to achieve the object under Section 2, the Authorities shall, in collaboration with relevant agencies”, that is the first collaboration, relevant agencies. And in doing that particular collaboration, you promote the collaboration among the producers. So, the first and the second layer in terms of collaboration is very clear. Because the promotion that you are going to do among the producers must be in collaboration with the relevant agency.

Mr Dafeamekpor: Which is the second layer of collaboration. Mr Speaker, we are amenable, so we can reintroduce “promote”.

Mr First Deputy Speaker: So, the proposal is to delete, “increase” and substitute “promote”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Dr Kabiru Mahama?

Dr A. K. T. Mahama: Mr Speaker, I am proposing an amendment to (h). I am proposing the deletion of the phrase “for the rapid synergistic expansion of different kind of production”, so that the new rendition will read simply as,

“to achieve the object under Section 2, the Authority shall, in collaboration with relevant agency, support the designation and development of strategic economic corridors”.

To add the end goal of what that support will achieve is basically going into the

realms of outcome of that particular function and ending it at corridors would make it a bit tidier for the purposes of the functions of the Authority.

So, this is my proposal, Mr Speaker, thank you.

Mr First Deputy Speaker: Well, do you not agree that the rest of the clauses are bringing the reason for the support?

5:40 p.m.

Dr A. K. T. Mahama: Mr Speaker, are we saying that when that support leads to any other desirable outcome, other than what has been stated here, is to say that the Companies Act is, for lack of a better word, *ultra vires*? I am making this point because we want to have an Authority—

Mr First Deputy Speaker: Well, you were not here when we drafted, but the principle of *ultra vires* is no more.

Dr Mahama: Mr Speaker, I understand that when it comes to a company, the principle of *ultra vires* is no more. But in the context of this Bill, we are only envisioning a specific end goal. I am saying that we should not clip the hand of the Authority so that in the performance of their role, that specific end goal would be within their prism of attention.

But when we limit it to the designation and development of strategic economic corridors, it ends the matter, and that end goal of synergetic expansion of different kinds of production would come, and other outcomes would come as a result of the performance of this particular company.

Mr First Deputy Speaker: Yes, he is even saying a different kind of production.

Well, I do not agree with you, but let me hear from the Chairman of the Committee.

Mr S. Mahama: Mr Speaker, may I urge my younger Brother to abandon the proposed amendment? There is a qualifying phrase to the support that is proposed. So, the support is for the designation and development of strategic economic corridors. But what is it meant for? For the synergetic expansion of various types of production. It just qualifies what that support is meant for and so, Mr Speaker, I will encourage him to abandon it and leave the rendition as it is.

Mr First Deputy Speaker: You see, with the argument that you are making, the kind of support that they are giving is not for transportation. I am just giving you an example. It is for the synergetic expansion of different kinds of production. That is why this particular provision is very important. But you are asking that they should leave it for others. The law is clear on what you should be giving the support to. So, the law is not giving you the opportunity to use it for anything else.

Dr A. K. T. Mahama: Mr Speaker, I agree. But we hear before this House the different illustrations of what the 24-Hour Economy is supposed to do. The argument by the people on this Side has convinced us of what the economy is supposed to do.

Mr First Deputy Speaker: So, you would see that the functions of the Authority are not limited to one; there are various. But in terms of this age, they are gearing it towards a specific field. So, there is nothing wrong if the specificity is specified in the law.

Dr A. K. T. Mahama: Mr Speaker, I am not saying there is something wrong if they

qualify it with one specific end goal. But I am only arguing that we give the authority an opportunity to have other end goal questions, especially when we raise an important point about transportation.

Mr First Deputy Speaker: Have you looked at (e)?

Dr A. K. T. Mahama: I have, Mr Speaker.

Mr First Deputy Speaker: What does it say?

Dr A. K. T. Mahama: It says that, Mr Speaker, support, facilitate and develop job creation and decent work.

Mr First Deputy Speaker: Hon Majority Leader, let me hear you.

Mr Ayariga: Mr Speaker, I will urge the Hon Member to abandon the proposal. The reason is that one of the ideas behind the 24-Hour Economy is to develop specific production corridors. So, for instance, that whole stretch from the Volta Region into the Oti Region up to the Savannah Region, we have the Akosombo Dam and the Volta Lake there. It provides an enormous opportunity for that whole area to be transformed into a major agricultural corridor. But for that to succeed, a number of agencies and policies working in a certain synergistic way need to be mobilised to produce the results.

For instance, one starts by trying to develop a rail line, all right? Now, when one does the rail line to Akosombo, one needs to now develop the lake transport system, let us say to Bupe, and several other infrastructures need to be able to give that corridor the opportunity to actually develop an integrated production system. The clause

simply states that it supports the designation. So, the Authority will say that they are designating this as the Volta Economic Development Corridor. Once they designate it as such, what is the objective? The objective of designating it as such is for the rapid synergistic expansion of different kinds of production.

So, the synergy, the mobilisation of institutions and the systems that will enable the corridor to develop. If we took out the second part of the clause, it might just be like we are simply designating a place. If we designate, go back and sit down, how do we achieve the objective? That is why I plead with him to abandon the proposal.

Dr A. K. T. Mahama: Mr Speaker, I abandon the proposal, and we can make progress, please.

Clause 3 ordered to stand part of the Bill.

Clause 4 — Governing Body of the Authority.

Mr Jerry Ahmed Shaib: Mr Speaker, clause 4 (1c) is not definitive. It is very general. It says that:

“Five other persons with specialised knowledge and experience in matters relevant to the functions of the Authority, nominated by the President, are at least two of whom are women.”

That is the only specific definition, but if we are saying matters relevant to the functions of the Authority, that is, for me, vague.

Mr First Deputy Speaker: What is your proposal?

Mr Shaib: Well, Mr Speaker, I am just thinking that just like—So, for instance, if Korle Bu Teaching Hospital is looking for a lawyer, it should indicate that it needs one. I am bringing this to your attention so Hon Members can deliberate on it.

Mr First Deputy Speaker: Yes, Majority Leader.

Mr Ayariga: Again, as indicated, this is not a function that relates to a specific sector. This is a coordinating function that may need economists, finance experts, or engineers. It is now up to the President, whose vision is to create a 24-Hour Economy, to establish an Authority to advance that vision. So, he is being given the opportunity, given that it is his vision and he has an idea of what he wants to achieve and the kind of expertise he needs to populate a board.

In the past, we had always been specific by stating either a representative of the Bar Association, a representative of the Ghana Football Association, or a representative of the Food Vendor Association. Then we tie our hands, and without meaning to underrate the intelligence of anybody, they will just send us anybody. They may just want to take somebody who is worrying them in the office, out of the office, and send him to this board to come and populate their board. That person comes, and he cannot even help the Board achieve its objectives

5:50 p.m.

So, in this case, the President says, this is your Board and you are clear in terms of your objectives. So, you choose the people that you think can best perform the functions. I do not think the rendition is faulty in any way because the objective is

clear, "...that five other persons..." so, the number is specific, and that is what is important. Even their qualifications are implied, which is that "...specialised knowledge and experience in matters relevant to the functions of the Authority..." Meanwhile, Parliament has already defined the functions of the Authority. The clause 3 that we just approved defines the functions of the Authority. So, the President is being asked to mobilise people with relevant skills and expertise in the execution of the functions of the Authority. So, I do not see what else is needed to advance the objective. I think it should be allowed to stand.

Mr Shaib: I think the Hon Majority Leader has even given me a better explanation with reference to why I am soliciting for these specific roles be indicated. If we are already aware that there are functions, we should know those who will be assigned to play those functions, rather than say that "... matters relevant to the functions of the Authority..."

Mr Speaker, here, it does not even really bring any qualification. It still brings a general qualification. So, we do not even know if the first person has to be a farmer with a certain number of degrees or a certain number of qualifications. All we would now see is that the place would be populated with people just because somebody in his mind —

Mr First Deputy Speaker: Hon Members, the power to appoint under Article 70 is vested in the President. All these words are there to just guide the President in making the appointment. That is all.

Mr Shaib: Mr Speaker, I am very minded on this matter. Against the

backdrop that we all know that the President has the power to appoint.

Mr First Deputy Speaker: Yes.

Mr Shaib: But the President will not go and appoint people who do not have the requisite qualification for a certain function.

Mr First Deputy Speaker: Yes, so that is why we are guiding.

Mr Shaib: Yes, and that is why it is always the case that those responsibilities or functions are given specific details. That it has to be—Mr Speaker, for instance —

Mr First Deputy Speaker: So, what is your proposed rendition?

Mr Shaib: Mr Speaker, I am only making a general observation.

Mr First Deputy Speaker: We do not make a law like that. If you do not have a proposed rendition, I will put the Question on Clause 4.

Clauses 4 and 5 ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, in the legislative process, we are supposed to propose amendments, deletion or addition.

Clause 6 — Duties and liabilities of a member of the Board.

Mr Shaibu Mahama: Mr Speaker, sub-clause 2, paragraph c, *delete* "to avoid making use of" and *insert* "not to use".

Mr Speaker, the new rendition will be:

“not to use information acquired by virtue of the position of that Member so as to benefit that member or to the detriment of the Authority without authorisation”.

I so move, Mr Speaker.

Mr First Deputy Speaker: Hon Members, the proposal is to *delete* “to avoid making” and *insert* “not to”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Hon Members, does it mean that we cannot vote? I would put the Question on the entire clause 6.

Mr Poku-Adusei: Mr Speaker, I would like to propose yet again to clause 6 (2)(c). In my view, I do not think anybody should have the authorisation to use information they have acquired to the detriment of the Authority, and in that regard, I propose that we *delete* “without authorisation”. So, the new rendition will be “...not to avoid making use of information...”

Mr First Deputy Speaker: “...not to avoid...” has been deleted.

Mr Poku-Adusei: Mr Speaker, I am saying that the new rendition should be:

“not to use the information acquired by virtue of this position of that member so as to benefit that member or to the detriment of the Authority.”

It should not have the situation where you cannot —

Mr First Deputy Speaker: There are lawful situations where you would have to

use the information. That is why “without authorisation” is important.

Mr Poku-Adusei: The issue with “...to the detriment of the Authority”.

You should not be permitted to use information.

Mr First Deputy Speaker: Yes, if the law allows.

Mr Poku-Adusei: To the detriment of the Authority?

Mr First Deputy Speaker: Yes, if the law allows.

Mr Poku-Adusei: But why should we permit the law to harm us? The law is there to protect us, Mr Speaker. The word here is a very strong word. Therefore, if I use it today and you question me tomorrow, I will tell you that I have the authorisation to use the information to the detriment of the Authority.

Mr First Deputy Speaker: There are instances where you can lawfully use the information even if it will be to its detriment. So, in that case, you are authorised so to do. This thing features in most of our laws.

Mr Poku-Adusei: No, it does not.

Mr Speaker, let us look at it carefully.

Mr First Deputy Speaker: So, what do you want to be the rendition?

Mr Poku-Adusei: The rendition should take away “without authorisation”. But this is purposeful. This means that one can go and take authorisation and come and use the

information to the detriment of — If one is caught in it, it is alright. But if you are saying that one can go and take authorisation and come and use the information, albeit to the detriment of the Authority, then you are creating an avenue to abuse it.

Mr John Darko, you are a practitioner —

Mr Poku-Adusei: I am a practitioner myself.

Mr First Deputy Speaker: All right. So, as a practitioner. They have filed a notice to produce, and the law says do not produce. You would have to go to court to justify that within the meaning of the law, you are not supposed to produce —

Mr Poku-Adusei: But then you are —

Mr First Deputy Speaker: Let me finish. When the Speaker is speaking, you listen in silence. The judge, having listened to the person, and having looked at the law, says that the information must be produced. What do one do?

6:00 p.m.

Mr Poku-Adusei: Mr Speaker, I am sorry, I did not get your analogy, if it can be repeated.

Mr First Deputy Speaker: The analogy is that there is a matter pending, and you have the information which you are not supposed to disclose. But they have filed a notice to produce, served on you. You have to go to court with the law, that based on these circumstances, you are not supposed to produce the information. The judge, having listened to you, has still indicated that there is a need for you to produce, so

you are hereby ordered to produce the information.

Mr Poku-Adusei: Mr Speaker, that is an entirely different scenario and I will tell you why. A pronouncement of the court is different from what is contained in a statute. The law is there for the court to interpret. If we say that it is the court that has ordered us to produce, we are not producing because we have an authorisation, we are producing because we have been so ordered by the court—

Mr First Deputy Speaker: So, who do you think will have to give that authorisation to you to produce?

Mr Poku-Adusei: No, it should not be given to me to produce. It is the court that has ordered me to produce.

Mr First Deputy Speaker: There are circumstances where you will be authorised to give the information, but what is happening is that without authorisation, one cannot. But when in the circumstances you are authorised to produce the information, you must go and produce the information. Let us take this Parliament as an institution. A person has an information in Parliament as the Clerk to Parliament.

Now there is a matter pending based on which the Clerk has to be authorised by the Speaker give out that information, and the Clerk is so authorised by the Speaker to do. In that case, the person can give the information based on that authorisation. So, without the authorisation, the person cannot give the information. That is the purpose “without authorisation” is serving here.

But if we delete it, it means that on no occasion can one be authorised to give the information.

Mr Poku-Adusei: Mr Speaker, this Act is talking about something entirely different from your position. With the greatest respect, what this is saying is to say that give the information to the detriment of Parliament. I use the Parliament scenario. We are here, and we are creating an Authority from inception. We have the opportunity to put in laws that will protect the establishment. In putting out the law, we are arguing that or we are saying that we are giving a situation where a person has the authorisation to give information to our detriment.

The word is “the detriment”, the qualification. This is to our detriment. So, we are saying that the information is to our detriment, and one can have a situation where one has authorisation to go and kill oneself or to go and do something that will harm oneself. But we are the authors of the law, so we should not give that opportunity from the inception that one can go and seek authorisation and go and use information that will come and harm the authority that we are creating.

So, I think with the qualification that “to the detriment of the authority”, there should be no situation where one has authorisation, where it is to the detriment of the Authority. But if it is in general, I will agree with. But if it is to the detriment, we know this is going to be detrimental to the Authority—

Mr First Deputy Speaker: It means that if the Hon Member says they should delete “without authorization”, then we will just go and say that giving this information is to my detriment, so I will not give it.

Mr Poku-Adusei: Mr Speaker, there is a remedy to cure that. That is why the Right to Information (RTI) and the court are there that one can be actually compelled to now

give that information that will be detrimental to the Authority. I do not see the—

Mr First Deputy Speaker: We are talking about the same thing, that there are circumstances where you will be compelled to go and give the information. You understand? What circumstances will compel you to go and give the information? It means that in those circumstances, you are being authorised by the circumstances to go and give the information.

Let me hear the Hon Dr Kabiru Mahama.

Dr A. K. T. Mahama: Mr Speaker, I want us to look at his concern from the point that the information that we are talking about is for the private benefit of the person. It is very important because in that particular provision, we are saying that using the information for the private benefit of the person, to the detriment of the company or the Authority. And that is where we need to tie the private benefit to the concern he is raising, that the law should not make provision. The use of information for private benefit *ab initio* is illegal. That is the first thing. Now we are saying that a person can use it for his private benefit to the detriment of the company when there is authorisation. Mr Speaker, let me read it, and if we do not see, “...not to use of any information acquired by virtue of the position of that member so as to benefit that member or to the detriment of the Authority without authorisation.”

Mr First Deputy Speaker: Yes, because of the “or”, we have to read the provision disjunctively. I agree. Two scenarios are being created. One is for your benefits. Two is to the detriment of the company. Whether it is for a person’s benefits or to the detriment of the company, when the person

is authorised to do so, they have to do it. That is what the rendition is talking about. That is my understanding. The information may be to your benefits. If you have the authority to give it out, that one, you are exonerated. Yes, so you are not to use it for your benefit unless you are authorised so to do.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, let me give a plausible scenario that we can be dealing with. We notice that the board membership is made up of persons with specialised knowledge and experience in matters relevant to the functions of the Authority. These tend to be consultants and experts. By virtue of the work that they will be doing on the board, they will access information.

They will come across information that they could use for their own private business. What the clause is seeking to do is to say that they are not allowed to use information that they have acquired as a result of their functions for their private business unless they have authorisation. That is leg one. Leg two is saying that they should not use the information to the detriment of the Authority. Leg two does not necessarily create an authorisation arrangement.

It is inconceivable that the Authority will grant anyone authorisation to use information that would be to its detriment. *[Interruption]* No. What Mr Speaker is drawing the Hon Member's attention to is that he should read the word "or". See, the word "or" makes the authorisation applicable to the first leg. *[Interruption]* So, what the Hon Member is suggesting is that we relocate the expression "without authorization". We relocate it before the "or", so that "without authorization" only

pertains to the use of the information for personal benefit. But then when it comes to the detriment of the authority, there should be no authorisation. For once I will agree with the Hon Member. *[Laughter]*

6:10 p.m.

Mr First Deputy Speaker: Hon Members, if you make it sacrosanct, it means that on no account can you be asked to give information, because giving that information is to the detriment of the institution, so I am not going to give it at all. If you talk about authorisation, authorisation may not be voluntary. There are circumstances where you would, by necessity, have to give this information.

So, what is the court order doing? It is authorising you. Is the court order not authorising you? You can be ordered by even the head of the institution to go and do it. It is all the basis of which you are doing it, without necessarily violating the law. Do you understand? Other than that, in the circumstances like that, if there is a punishment for it and you disclose the information in those circumstances, you can – let us even look at it in terms of the security of the state. There are instances where a person would be called upon and lawfully, they would have to disclose some information. So, the person is under the authority of the law to do so and that is why the person has done it. So, the whole law is telling us that if the person does not have that kind of authority, he cannot disclose the information.

Well, Majority Leader, I will propose that we defer the consideration of this Bill for the Winnowing Committee. So far, we have done only two amendments and we are at clause 5.

Mr Ayariga: All right, Mr Speaker. If you counsel is that we should refer it to the Winnowing Committee, I have no objection. We can refer it to the Winnowing Committee and by tomorrow we will bring back a Report that incorporates the issues.

But as we can see, these are all amendments by the Chairperson of the Committee, which is the Committee's work. I really do not know what the Winnowing Committee will do about a recommendation by a Colleague Committee.

Mr First Deputy Speaker: Well, Hon Leader, with the way that it is going, I would direct that everybody should take a look at the Bill, and all those who have concerns should go and address their concerns at the Winnowing Committee.

Mr Ayariga: No, Mr Speaker. Let me just say that I think that he is raising an issue about how he understands it, given the way that it has been rendered. He wants it rendered in such a way that it says clearly that a person cannot use it for their personal benefit without authorisation. Also, he wants it indicated clearly that a person cannot give out the information to the detriment of the Authority.

Mr Speaker, your analogy relating to court orders – court orders compel all of us. In fact, court orders compel the Authority to provide the information. So, if there is a court order, then there is no issue of authorisation. It is compelling because the Constitution says that we must all obey court orders. So, it is simpler if we just go by his recommendation, because court orders ordinarily compel us to provide the information and one must disclose the information.

Mr First Deputy Speaker: Hon Majority Leader, if you bring it to practical terms, you would realise that, let us say you are the Majority Leader and the court order is directed to you, Leader of Government Business, but the information is within the domain of Hon Hottordze. You would realise that pursuant to that particular court order, you are going to authorise Hon Hottordze to go and disclose the information to where the information is needed.

So, there are elements of exercise of authorisation in the chain. If we delete without authorisation, from there we create a practical problem on the ground. You are a managing director of an institution, a court order is served on you seeking for an information or somebody's right to information and your subordinate is not expected to disclose the information, but you will have the authority to order or instruct or give authority to that subordinate to go and give the information. So, if you delete "without authorisation", you can create a problem. And we have done this severely in many laws.

Mr Ayariga: Mr Speaker, I can understand that when a court order is served on, let us say, the managing director of the company to come and disclose certain things, there may be a need for authorisation from the board by the managing director, to go and disclose those pieces of information; that is as an internal matter. The organisation is bound by the orders of the court, but then the specific individual who will need to go and disclose must also show from their internal paper trail that he would raise a memorandum to his bosses to say he was summoned in court, asked this question that requires him to produce this information about the organisation, so they should provide clearance for him to go and

then provide the information. That is the context in which –

Mr First Deputy Speaker: Let me clarify it. Let me give another scenario. Let us say there is an order served on a bank to do ABCD. The disclosure of the information may be to the detriment of the bank. Now, a decision will be taken that Hon Ayariga who is the employee working on that particular schedule, should go and give the information. He is not the one ordered by the court to do so. So internally, he must be authorised to go and give that information, whether it is to the detriment of the bank or not to the detriment of the bank. What do we call it? Is it not an authority given to that particular employee to go and disclose?

Mr Poku-Adusei: No, there is not that type of authorisation here. This is a use of information. The fact must be made clear here – no amount of internal authorisation will supersede a court order; it is as simple as that, and that is fundamental. So, the order from court and the authorisation —

Mr First Deputy Speaker: Let us say it is not an order of the court. Security intelligence is requesting information and you are an employee of an institution seized with the information, but that information needs to be disclosed and your superiors are contacted. How would your superiors get you to disclose that information?

Mr Poku-Adusei: The point we are making is that, if that information is sought after, it is detrimental to the Authority.

Mr First Deputy Speaker: You cannot tell security intelligence that that information is detrimental. So, because it is against the interest of the state, you will not disclose it.

6:20 p.m.

Mr Poku-Adusei: But this has been determined by the Supreme Court just last week.

Mr Speaker, in a matter taken to court in the case involving the Attorney-General and Mr Kwabena Adu-Boahene which borders on disclosure, where they picked and chose information that they want to disclose. They say that, by the order of the court, if one is ordered today to produce and this is even by the rules of the court, that was requiring the production of the documents, and they were selective, they sought to do what they wanted based on relevance. The court said that, no, if it is mandatory then it is mandatory.

The point I am trying to make is that anything that is to our detriment, we should not—That is why it is even in the 1992 Constitution that one is not permitted to even take one's own life. So why should one be allowed to do something detrimental?

Mr First Deputy Speaker: You are not getting the argument. Under the Securities and Intelligence Act, 2020, if they demand information from you, that law allows you to give the information. So, you are a front desk officer, and the information relates to a front desk, and under that law, your superiors are contacted that this information is needed. They have sat down to take the decision that there is a need for you, the subordinate, to go and disclose that particular information, and your superiors have authorised you to go and give the information. So, in that circumstance, it does not matter the nature of the information. Once you are authorised, you are giving the information without the authority, and you will not be caught by this very provision that is being stated here.

Mr Poku-Adusei: Mr Speaker, I understand clearly what you have said but because of what you have just said, I think it is in the best interest of this House to even defer this clause. This is because what you are talking about is clearly an exception. That provision must be made in this clause to cater for it, so let us defer it and make progress.

Mr First Deputy Speaker: Without the authority there, it means that there are exceptions to the rule. That is, you are not supposed to do something. However, when you are authorised to do so, you can do it. That is what the clause is saying.

Mr Poku-Adusei: Mr Speaker, with the greatest respect, exceptions are not created in vacuum. We can just say that, except where the matters border on national security. They have to be specific. If they are creating an exception, they have to be specific. Exceptions are not created in a vacuum; without authority. You pick this, then you are giving the discretion to the Authority to decide what is an exception, and what is a special case. So clearly, if you want to go in there —

Mr First Deputy Speaker: Hon Members, to defer this to the Winnowing Committee, you must go there with different laws that we have passed with the same rendition.

Mr Dafeamekpor: Mr Speaker, with the use of “authorisation”, it appears that they have a certain fixated meaning of authorisation. I am saying “it appears”.
[Interruption]

Please, I listened to the Hon Member quietly. Without authorisation simply means without permission. If you look at some court orders, it is couched as follows:

“By the order of this court, you are hereby authorised, ordered, or directed.”

So, the word “authorisation” simply means permission. You are permitted to provide the information. There is a very enlarged meaning placed on authorisation, but their argument limits authorisation to a certain limited meaning. The intendment of this House is that if we are permitted to use the information, even though it is to the detriment of the Authority, we should proceed to do so. The Hon Member has a problem and that is what he has been saying.

Mr First Deputy Speaker: Hon Member, move your amendment, and let me put a Question.

Mr Poku-Adusei: My amendment is that:

“Not to use information acquired by virtue of the position of that member so as to benefit that member without authorisation or to the detriment of the Authority...”

Question put and amendment negatived.

Mr Dafeamekpor: Mr Speaker, clause 6, (2)(c), second line, after “member”, I am proposing that we *delete* “so as”. So that it reads:

“...not to use information acquired by virtue of the position of that member to benefit that member or...”

The “so as” sounds *rusak*.

Mr First Deputy Speaker: That sounds good.

Question put and amendment agreed to.

Clause 6 as amended ordered to stand part of the Bill.

Clause 7 — Tenure of Office of Members of the Board

Mr Boamah-Nyarko: Mr Speaker, looking at clause 7(4), it says:

“A member of the Board, other than the Chief Executive Officer, who is absent from three consecutive meetings of the Board without sufficient cause ceases to be a member of the Board.”

Mr Speaker, I propose that we *delete* “other than the Chief Executive Officer”, to read:

“A member of the Board who is absent from three consecutive meetings of the Board without sufficient cause ceases to be a member.”

Mr Speaker, I make that proposal because the Chief Executive Officer is already a member of the Board. Any time he is absent, he would have given a cause for his absence —

6:30 p.m.

Mr First Deputy Speaker: Hon Members, with all due respect, sometimes in the legislative process it is advisable to put beside you, other legislations passed by this House and when you read the *Hansard*, you would realise the purpose for which the legislation is the way it is. This is clearly a repetition from other legislations and the reason is that some of the positions on the board are institutional representation. Now the law creates a position for Chief Executive to be a member of the board. If you say the Chief Executive has absented three times without a reasonable excuse

therefore, he is not going to be a member of the Board, however, he remained Chief Executive of the board, what happens? That is why for institutional representation, they try to create some exceptions in the law. So, like the whole clause 7 is a standardised provision in every law.

Mr Boamah-Nyarko: Mr Speaker, this practice of saying that this is how it is in other laws, and so if we are passing new laws and we have issues, we cannot make comments on and change them, Mr Speaker, I beg to differ. My position is that we are looking at tenure of office of members of the board and we are making provision on basis upon which a member will lose his membership on the board. The Chief Executive, whether he is coming to the board as an institutional representative or not, is still a member of the board, and the clause is saying that, to be a member of the Board, you cannot absent yourself three times without sufficient course. I am saying that the Chief Executive Officer is held accountable on the same basis and that the Chief Executive Officer cannot absent himself without sufficient course for three times. So, this rendition to exempt the Chief Executive Officer, we are suggesting that the Chief Executive Officer can absent himself for three consecutive times without just course and still be a member of the board. That for me is erroneous.

Mr First Deputy Speaker: That is exactly what the law is saying, and the reason for the law saying what it is saying is that, let us take it—It has happened in a particular district. You are a member of the assembly by virtue of you being a Member of Parliament. So, let us say you are even a full member and there is a law that says if a member of the district assembly absents himself three times without reason, they cease to be a member of the district

assembly. However, your membership of the district assembly is by virtue of you being a Member of Parliament. So, tell me—

Mr Boamah-Nyarko: The President should sack him. If one does not attend board meetings for three times without sufficient course, what is one's use as Chief Executive Officer? It means that one has lost it and the President should sack them from office. Board members should take meetings or board seriously. Mr Speaker, this is the House of Parliament and we are passing the law and we cannot give exceptions to Chief Executive Officers to absent themselves without due course. It means we as Parliament are creating that exception for them to abuse it. I disagree.

Mr First Deputy Speaker: Let me hear from Hon Kwame Anyimadu-Antwi before I come to Hon Richard Acheampong.

Mr Kwame Anyimadu-Antwi: Mr Speaker it is true that from the laws, we have created this as a standard provision, but I see some sense in what he is saying, especially, when this is the Board for the 24-Hour Economy and the Chief Executive Officer sits somewhere and does not attend meetings for three consecutive times, Mr Speaker, something needs to be done. I think I agree with him that the Chief Executive Officer has no business staying at the office; the President must sack him.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, what happens if the person is not sacked and he continues to be a Chief Executive Officer of the board?

Mr Anyimadu-Antwi: I think the next provision should provide that the President should sack the person. If they choose not to attend a meeting for three consecutive

times, then they need to be punished. This is the 24-Hour Economy Authority Bill.

Mr First Deputy Speaker: So, because it is the 24-Hour Economy Authority Bill, what is happening in other laws should not happen here?

Mr Anyimadu-Antwi: No, Mr Speaker, this is a flagship programme for the Government and I do not see how any Chief Executive Officer should play with the 24-Hour Economy.

Mr First Deputy Speaker: Can I hear from you, Hon Richard Acheampong?

Mr Richard Acheampong: Mr Speaker, thank you very much for the opportunity.

On the face of it, my good Friend is making a very good point, but the issue is that the CEO is there by virtue of his office and he is there to provide technical support to the board. Assuming he is taking off the board and like the Hon Member said, and he is not sacked, who will provide that technical support to the board? Are you going to nominate another person as a board member? He calls for meeting and he is always there. There is no way a CEO — Yes, the board chairperson, but he is going to provide the technical support. So, it is impossible to have a CEO who would absent themselves from board meetings for three consecutive times. So, that exception should be given to the Chief Executive Officer.

Mr First Deputy Speaker: Hon Member, this is not even applicable to only a CEO. In some of the laws for instance, ministers are members of boards and the minister is a member of the board by virtue of being a minister. When the person is removed as a minister, automatically, they

are not members of the board. The person who is appointed as a minister will continue to be a member of the board. Now in this situation, you do not have control of who should be a minister. That is entirely in a different hand.

So, we refer to all those people as institutional representation, therefore, if the institution is asking that one should represent, it is that institution that can remove. That is why we normally put a proviso that this particular clause should not affect people who are there by virtue of the position that they occupy. But if after all this explanation, you still insist, propose your amendment and let me put a question on it.

Mr Shaib: Mr Speaker, by God's grace, some of us have had opportunities of being CEOs. And we also know that there can be boardroom wars, and we are also very well vest about the fact that board meetings are called by the board chairperson. When they call the meetings, they do not actually need a concurrence of the CEO to call the meeting.

In cases where the board chairperson, perhaps, is having an issue with the CEO, this can bring a whole lot of issues. What is the big deal? Why are we trying to protect the CEO? That is why at every board meeting, the Chief Executive Officer is given notice of the meeting, so the CEO now cannot come and say that he was not given notice of the meeting, and that is why he absented himself. For one to absent themselves three times, what does it mean? Is it dereliction of duty or is it because it is 24-Hour Economy Authority, so we have three CEO; one will come in the morning, one will come in the afternoon, and the other will come in the evening?

6:40 p.m.

Mr First Deputy Speaker: Hon Ahmed Shaib, we have concluded that he should make his proposal so we can take a decision on it.

Mr Boamah-Nyarko: Mr Speaker, and Hon Members on the other Side, I think, reflecting on each other, my senior Brother, Hon Acheampong, agrees to a large extent with what we are proposing. I am saying, and it is an appeal to us, and I have said this on record, that every Bill that is passed in this House is passed for posterity. We could pass laws and have a different understanding and when it comes to other laws, new ideas come every day. A Chief Executive Officer, by law, should not be given the opportunity to miss three consecutive board meetings without cause and still be protected by the law that we, in Parliament, are passing this, and say that it is a good law.

So my proposal again, Mr Speaker, under clause 7(4), "other than the Chief Executive Officer," should be *deleted*, for it to read,

"A member of the board who is absent from three consecutive meetings of the board without sufficient cause ceases to be a member of the board."

It should include everyone. Mr Speaker, I so move.

Mr First Deputy Speaker: Hon Members, that is the amendment on the floor. Yes, Hon Sulemana?

Alhaji Yusif Sulemana: Mr Speaker, I want to support the contribution of my Colleague. If indeed the Chief Executive Officer is a board member, why should he be treated separately from the other board members? If they are all board members,

the same rules apply. In any case, if anyone should be present at all meetings, it should be the Chief Executive Officer. In most cases, the Chief Executive Officer also serves as the board's secretary. I think the clause, as it stands, should not be supported. Rather, my Colleague's amendment should be considered.

Thank you.

Mr First Deputy Speaker: Hon Sulemana, you raise a very good point. I have cited an example showing that, by law, you are a member of the assembly. The conditions of the assembly should apply to you. The law makes you a member of the assembly because you are a Member of Parliament. In this case, you are a member of the board because you are the Chief Executive Officer. Do you understand? You are a member just because you are a Chief Executive Officer. If tomorrow you are not a Chief Executive Officer, you are not a member of the board. In the same way, if tomorrow you are not a Member of Parliament, you are not a member of the assembly.

So, if we create the law this way, we will have instances where we continue to be a Member of Parliament, but you are not a member of the assembly when the law says so. You will continue to be a chief executive, but you are not a member of the board because the law says so. That is why, jurisprudentially, that proviso is created. That is why, the Majority Chief Whip—on this note, I want the Bill to go for winnowing. There, you will have the opportunity to explain this to Members. Other than that, we will make a very bad law.

Mr Dafeamekpor: Mr Speaker, I agree with you that we should defer the rest of the

considerations of this Bill to the Winnowing Committee to tidy up and return to the House. So that Members who have issues can join us at the Winnowing Committee for us to take them.

Mr First Deputy Speaker: So, you are just there because the law says you should be there.

Alhaji Sulemana: Mr Speaker, we are learning from you, but with the scenario you cited, we have boards with institutional representatives. Those representatives are there because they belong to some institutions. On any day they cease to be Members of those institutions, they cease to be Members of the board. But the same law applies to them.

Mr First Deputy Speaker: So, when you are making this particular provision, you exempt all the institutional representations. That is why when we look at other laws that we have passed, all the institutional representations, all those who are members of the board by virtue of the position that they occupy, are exempted.

So, probably at winnowing, you look at the various laws and the argument that ensued on this Floor in arriving at those decisions, then you can come to a conclusion.

Alhaji Sulemana: That is all right. If it is going to apply to the other institutional representatives, then it makes sense. If not, I do not think that it should stand the way it is. Thank you.

Mr First Deputy Speaker: Hon Members, there is a Bill coming before us which is the Legal Education Reform Bill. Clause 6 talks about the term of office, but if we look at clause 6(4), it says that,

“A member of the board other than the registrar, who is absent from three consecutive times of the board without sufficient cause, ceases to be a member of the board.”

I am just giving you the perspective of another Bill that we have here, dealing with the same provisions. This means that the registrar is just a member by virtue of occupying the registrar’s position. So long as he remains a registrar, he will be a member of the board. That is why in this Bill, he is also being exempted so the registrar in this Bill is coterminous with that of the chief executive.

Mr Dafeamekpor: I think we have agreed that we will refer this Bill to the rest of the council. The Speaker is only guiding the House; he is not debating.

6:50 p.m.

Mr First Deputy Speaker: I am not debating; I am only guiding the House.

Dr A. K. T. Mahama: Mr Speaker, the example you gave is different from what we are dealing with. Because in the case of the Legal Education Reform Bill, the registrar is not part of the quorum. But in the case of this Bill we are considering, you have made the CEO a member of the board and part of the quorum, and he must be present for the quorum to be determined.

If we read clause 4, it says that the quorum for the meeting of the board is five members, including the chairperson and the chief executive officer. At all times, he has to be at the board meeting.

Mr First Deputy Speaker: So then what you will have to do is to make your point when we get to that particular provision.

Dr Mahama: No, we have past there.

Mr First Deputy Speaker: Yes, that is what you will have to do.

Dr Mahama: No, Mr Speaker, what I am saying is that that has already been conceded, because we are dealing with a clause —

Mr First Deputy Speaker: Hon Members, if that is the way, I do not have a problem. I will put the question.

Hon Majority Leader, you were on your feet, can I hear you on this?

Mr Ayariga: Mr Speaker, I think you should stand down that clause for further consultations. Then we can move to the other ones that are less controversial and have them passed. Let us stand down that clause so that we can engage.

Mr First Deputy Speaker: Hon Members, one rule that guides us is consistency. So, clause 7 is stood down. We move to clause 8.

Clause 8 — Meetings of the Board

Dr Mahama: Mr Speaker, clause 4, line 2, *delete* “including the Chairperson and the Chief Executive Officer”, and *insert* “of the Board”. Mr Speaker, the new rendition would be, “The quorum for a meeting of the Board is five members of the Board.”

Mr First Deputy Speaker: Are you proposing the deletion of “...including the Chief Executive Officer...”

Hon Members, the proposal is for the consideration of the House.

Mr Boamah-Nyarko: Mr Speaker, I think my very good senior on the other Side, guided by clause 7 that has been stood down, was very quick in making sure that —

Mr First Deputy Speaker: Hon Member, this proposal has been on the Order Paper for some time, before the argument.

Mr Boamah-Nyarko: Thank you very much, Mr Speaker, for the guidance. But I am only saying that it is consistent with clause 7 that has been stood down, because if the Chief Executive Officer necessarily has to be part of the quorum, and then he absents himself three consecutive times, then it means that we are actually closing the 24-Hour Economy Authority because of one Chief Executive Officer.

So, I support the rendition so proposed.

Mr First Deputy Speaker: That is why, when reference was made to this clause, when we were talking at clause 7, I said hold it so that when we get to clause 8, which talks about the inclusion in the quorum, then we can deal with it.

Mr Boamah-Nyarko: I was going to make an argument relating to it, but you have stood clause 7 down. So, let me just concentrate on what is before us under clause 8, and I am saying that I am in all force with the proposal made by my Senior.

Thank you.

Clause 8 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: So, with this proposal, do we go back to clause 7,

because the reason is that a compulsory member —

Mr Ayariga: Mr Speaker, I do agree with you. One strong argument that was used to buttress the proposed amendment in clause 7 had to do with what was corrected in clause 8. So, I think that we can stick to tradition and maintain clause 7 so that it is consistent with all previous legislation.

I equally feel strongly that we should not treat Chief Executives differently from Board Members in terms of the workings of a Board, but we know that Board Members may not necessarily be as busy as Chief Executives. Chief Executives, by virtue of the work that they do, may not be available for a lot of board meetings. Also, I do not think we should be so worried about this rendition because, without probable cause, I believe that a Chief Executive will always find cause to give to the Board as to why they are absent. So, let us maintain the rendition and then move on.

Mr Boamah-Nyarko: Mr Speaker, I think the Majority Leader have made a very fantastic submission and that is consistent with our position. That the Chief Executive would almost always have a cause to be absent from a board meeting. Particularly, even if he is travelling, by convention, he would have sought the approval of the Board Chairperson. For any reason, if he is sick and cannot attend board meetings, he would have notified the Board, and so this House should be very — We should not loosen up the import of the laws that we pass.

We do not pass it for nothing. So, once we know that the Chief Executive would almost always have sufficient cause to be absent, there is no reason that particular clause 7 should make provision that he can

absent himself without cause for three consecutive times and still be admitted as a member of the Board which could even lead the Board Chairperson to write to His Excellency, the President, who appointed him, that he is not fit to become a Chief Executive of the organisation. So, Parliament should be guided, and as you said, that might have been our practice.

I have read other laws that have been passed by this House that never had that provision. So, it is a new development maybe, that came through the Eighth or the Ninth Parliament. I have not seen those laws.

When I considered the Bills for the Road Fund and the others, I did not see those provisions in there.

Mr First Deputy Speaker: Well, Hon Member, on that note, with all due respect, I would beg to differ. Since 2016, there has been no law passed by this House on tenure of office that does not have that provision.

Mr Boamah-Nyarko: Mr Speaker, that is why I was careful in choosing my words to say that I have not seen. I never said it has not happened. So, if that is even so, that is why we, as the Ninth Parliament, with this new development, and the reason to make sure that Chief Executives, most importantly, take board meetings seriously. The Chief Executive should even be the one who should always be present to guide the Board —

Mr First Deputy Speaker: What you are talking about and the law are two different things. On one breath, you said the Board should recommend to the President to remove the Chief Executive, but this law is

talking about automaticity. Where they automatically cease to be a member of the Board.

7:00 p.m.

Mr Boamah-Nyarko: I said that because if our concern is that the Chief Executive would lose his membership of the Board and still be a Chief Executive, what then becomes of his inclusion as a representative of the institution on the Board? That is why I am saying that by the time he has shown such incompetence—because if he absents himself three times without cause, I do not think that person deserves—even if serious Board Members, or external people who are supposed to come and guide in policy direction, we are imposing a responsibility on them that if they lose three board meetings without cause, they should lose their position, a higher duty is supposed to be brought to bear on the Chief Executive.

So, the Chief Executive should be struck harder than ordinary board members. I only made that reference that that incompetent Chief Executive, by the time he absents himself three times from the board, a board chairperson or the board would have even moved a resolution or made a recommendation to the President that the Chief Executive is not fit for purpose. So, let us just stay in this when it comes to (7).

In this context, Mr Speaker is guiding us that that has been the position of our laws over time, but today, we are reviewing that particular provision as a House to see if certain amendments can be made to that particular provision so that we raise the bar. It is raising the bar of duty for Chief Executive Officers, and not to cover them for their incompetence. Now we are talking about the 24-hour economy which is supposed to be the flagship programme of

His Excellency the President, and the Majority of this House, are telling us that we should allow a Chief Executive to absent himself three times without cause and still be Chief Executive. Is that what we want?

Is that what the Majority want? That a Chief Executive could absent himself for three times without cause and still be Chief Executive? Is that the reset?

Mr First Deputy Speaker: Let me hear the Chairperson of the Committee. I will come to you.

Mr Dafeamekpor: Mr Speaker, it is totally needless for the Hon Member to say that “Majority, is that what you want?” Please, I am saying that when we come to Consideration Stage, we may have—*[Interruption]*. I am saying the Majority Leader agrees with the proposition the Hon Member is making, so he should not create the impression that the Majority is against what the Hon Member is saying. The Hon Member should not do that, please.

Mr First Deputy Speaker: Hon Members, my experience in this House is that when it comes to a Consideration Stage of a Bill, we make the law to govern the people of Ghana. So our contributions should be devoid of the use of some political language. We should take note of this and move along that side. We do not take a position because of politics, we take a position because the law will be in the interest of Ghanaians.

So, Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, having listened to the arguments, I think we have to look at some practical things in the corporate world. The structure of the company is the board of directors, and the

Chief Executive Officer of the company reports to the board of directors. The reason we had argued many times before settling on this is the fact that until the Chief Executive Officer is taken away from that position, it is not the number of meetings he has attended that would debar him from attending and reporting to the board. He is a functional director who reports to the board. He is not any ordinary member who reports directly to the board. That is why that position of a Chief Executive Officer of a company remains a member, but with or without attending a meeting of the board, that does not debar him from being a member of the board. These reasons were canvassed many years ago until we settled on the fact that the Chief Executive Officer remains.

The clause is not to say that when they do not attend three times, but it is just to say that until the President removes him, until he ceases to become a Chief Executive Officer, he remains a member of the board. Whether he attends or does not attend five meetings without cause, does not take him away because he is the one who reports to the board anyway. It is not an accountant. It is not a production manager who reports to the board. That is the structure of the corporate world we have. These were some of the reasons for which we found it necessary to say that except the Chief Executive Officer, who by virtue and until his position is taken, remains a member of the board. So, the number of meetings of non-attendants notwithstanding, he remains there.

Mr Ayariga: Mr Speaker, while we were having this deliberation, I just went through one or two previous Bills that we have passed in this House. I observed that we have hardly ever tried to make this distinction. Generally, we outline the

members of the board and we include the Chief Executive, but when it comes to attendance, it is neutral. It says any board member that does not attend three consecutive meetings without course is deemed to have to leave the board. So, I think, Mr Speaker, adding this obligation is because I believe that a Chief Executive will always be able to establish a cause, a reason why he is unable to attend a board meeting. So, to spend so much of our parliamentary time on such a matter, I think that we should accept the recommendation.

Mr First Deputy Speaker: Well, we will defer it; we can make progress.

Before then, permit me to recognise visitors in the Public Gallery.

Hon Members, the World Lottery Association leadership, as part of a one-day official working visit to Ghana and the National Lottery Authority, have decided to pay a visit to Parliament to observe proceedings. The delegation is made up of Mr Andreas Kotter, World Lottery Association President; Mr Lucas Espocito, Executive Director, World Lottery Association; Mr Francois Pelland-Pautrot, Events Coordinator.

Hon Members, on your behalf, I welcome all of them to the Parliament of Ghana. Please, may you have a fruitful visit to Parliament.

[Leadership of the World Lottery Association were introduced.]

Mr First Deputy Speaker: The Second Deputy Speaker should get ready to take the Chair.

Yes, I want to put a question on Clause 8.

Mr Boamah-Nyarko: Yes, Mr Speaker, let us proceed. Thank you.

Mr First Deputy Speaker: Hon Members, I have observed something. I do not want to believe that it is true.

Question put and amendment agreed to.

Clause 8 ordered to stand part of the Bill.

Clause 9 — Disclosure of interest

Mr John Darko: Mr Speaker, if we look at 9 (1) (b), I believe that in paragraph (b), the word “is” should be deleted. It reads that

“a member of the board who has an interest in a matter for consideration shall— (b) **be** disqualified.”

“Be disqualified”, “not is disqualified”. We cannot say “shall is”. Instead of “is”, we should replace it with “be”.

“...be disqualified from being present at or participating in the deliberation of the board in respect of that matter.”

7:10 p.m.

Mr First Deputy Speaker: So, what is your proposed amendment?

Mr Darko: Mr Speaker, my rendition is to *delete* “is” and *insert* it with “be”, that is clause 9 (1) (b). It will read, “shall be disqualified from being present at or participating in the deliberation of the Board in respect of that matter.”

Mr First Deputy Speaker: But we have since departed from the use of “shall be” because “shall be” is futuristic and we always draft in the present; that is the drafting rule. If you like, I can defer it to the

drafters. I will not argue with you on this one, but I will defer it to the drafters to use the appropriate drafting language.

Mr Darko: Well, if it is going to go to the drafters, then we admit that there is something wrong with it because obviously we cannot say “shall is disqualified”.

Mr First Deputy Speaker: Clause 9 (1) says:

“A member of the Board who has an interest in a matter for consideration shall

(a) disclose in writing the nature of the interest and the disclosure shall form part of the record of the consideration of the matter; and

(b) is disqualified from being present at or participating in the deliberations of the Board in respect of that matter.”

Mr Darko: Mr Speaker, unless we are reading from two different documents, because I have this that was given to me by the Clerk-to-Parliament, and then this was also given. I am reading from this document which also has “shall”.

Mr First Deputy Speaker: So, are you holding two Bills?

Mr Darko: It was given to us.

Mr First Deputy Speaker: Hon Members, this is the Bill that we are using. Do you have a copy? I am just asking Hon John Darko. This is the Bill; do you have a copy?

Mr Darko: Mr Speaker, when we came here —

Mr First Deputy Speaker: It is a simple question. If you do not have a copy, get a copy of this.

Mr Darko: Mr Speaker, this is what Table Office gave to us.

Mr First Deputy Speaker: Hon Members, sometimes we do not do this for the records.

Any proposed amendment to clause 9?

Clause 9 ordered to stand part of the Bill.

Clause 10 – Establishment of committees

Mr S. Mahama: Mr Speaker, no proposed amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment to clause 10?

Mr Darko: Mr Speaker, I am just looking at clause 10 with respect, just for guidance. I am sure this one is correct. Mr Speaker, if we look at clause (1), it says: “The Board may establish committees consisting of members or non-members of the Board...”. On that particular one, I just want to be sure whether the framers actually want a committee that can have non-members of the board. It is strange to me.

If we are going to have a committee that has some members and non-members, that is always the practice. But a situation where there will be non-members forming a committee, I believe it might be a problem. Even in terms of reporting, how non-members can form a committee and report to the board would be a problem. If we can take that out and make it “members and non-members to form a committee”, then I

believe that can work. But as it stands now, Mr Speaker, this one has to be corrected.

Mr First Deputy Speaker: What is your proposed amendment?

Mr Darko: Mr Speaker, I propose that, “The Board may establish committees consisting of members and non-members to deliberate on matters and make recommendations to the Board.”.

Mr First Deputy Speaker: So, by your proposal, a committee cannot be made of members and non-members?

Mr Darko: Looking at this, it gives the impression that we can have a committee that is only non-members of the Board.

Mr First Deputy Speaker: Yes, that is exactly what is being communicated. “The Board may establish committees consisting of members or non-members of the Board or both...”. So, it means that there are instances where the Board will form a committee made up of purely members of the Board, made up of purely non-members of the Board, or both.

Mr Darko: Mr Speaker, it is solely the non-members of the board that is agitating my mind. It is a sub-committee of the Board that is being established. How do we establish a Board sub-committee without a member of the Board representing? I believe that at least a member of the Board should be part of that sub-committee.

Mr First Deputy Speaker: Well, again by practice, I have seen only one clause missing. The clause that is missing is that a committee made up of non-members are advisory only. That is the usual rendition that we put in. But by practice, the Boards are not prevented from forming a committee

of non-members to come and advise the Board. The Board is not prevented from forming a committee made up of members and non-members, or only members.

Mr Ayariga: Mr Speaker, it is possible to have a board set up a committee within the organisation that is not made up of board members. They can establish that. If it is a technical matter, that they want technical advice on or even if it is a matter they want investigated and they think the board members may be prejudiced, *et cetera* – In fact, they may even bring in non-staff and set up a committee. So, if we are so stringent and fixated on this issue because it is a committee set up by the Board, then it must have members of the board, that will not be giving room for innovation.

7:20 p.m.

I believe that it should be possible for a Board to set up a committee that is made up of non-members of the Board. They will report back to the Board. The Board will exercise its discretion to either accept or not accept the report of that committee. In the same way, they may just be members of the Board, and then they may need to incorporate non-members who have certain expertise in certain matters. Except that the law says that in that case, the chairperson of that committee must be a Board member. So, I think we should leave it that way. It should be possible to do that.

Mr Boamah-Nyarko: Mr Speaker, I would want to seek some clarification from the Leader in terms of what he submitted. Well, we are moving forward, and so it should be possible. Traditionally, every committee of a Board, whether with members or non-members, would need a member of the Board to be part of and chair. That has been the traditional concept of

constituting the Board. This is because, at the end of the day, that subcommittee should be — unless they are setting up an ad hoc committee then because of the purpose, have complete non-members. I do not have a challenge with the way we want to go.

The little clarification I wanted from the submission made by the Leader is with (2), which says that “A committee composed of members and non-members of the Board shall be chaired by a member of the Board”. In the event that the Board is made up of all non-members —

Mr First Deputy Speaker: Hon Boamah-Nyarko, we have a committee made up purely of members of the Board. They did not talk about the chairmanship, because whoever chairs will be a member of the Board. Now, we have a committee made up of non-members of the Board. They did not talk about the chairmanship, because the chairperson can only be one of them who will not be a member of the Board. It is only where it is made up of members and non-members that the law is telling you it must be chaired by a member of the Board. So, this is very clear and explicit. Or is it not clear?

Mr Shaib: Yes, I just want to support you. It is clear. This is the way they are usually carried out. These are committees of the Board, and so where there is a different understanding, as my respected Leader said, then that is where they can say that it has to have a particular set of people. But if not, this is the way it is.

Question put and amendment agreed to.

Clause 10 ordered to stand part of the Bill.

Clause 11 ordered to stand part of the Bill.

Clause 12 —Executive Oversight

Mr Boamah-Nyarko: Mr Speaker, “Executive oversight”. “(1) The Authority is responsible to the President.” I do not even understand this particular provision. They have established a Board, the Board would have an authority that has been provided, and then we are saying that the Authority is responsible to the President. I am having difficulty with that rendition, so I would like to seek clarification from the Chairperson of the Committee. What does it mean to say the Authority is responsible to the President? If he could explain before I make further —

Thank you.

Mr S. Mahama: Mr Speaker, is it the English language that he does not understand, or the legal language? “The Authority is responsible to the President”? Before this Authority, the Secretariat of the 24-Hour Economy was responsible to the President. That is the same way this law was created; now called the Authority is responsible to the President.

Mr Poku-Adusei: Mr Speaker, on what he just said, when we go to the Memorandum of this Bill at page iv, clause 12 provides for Executive oversight. If I may read:

“Under the *clause*, the Authority is responsible to the President, who may in writing, designate a minister or any other person to perform functions assigned by

the President. The Minister or the person designated is required to carry out the directives of the President.”

What the Chairperson of the Committee is saying is different from what this provision is stating. So, they have to be clear. Is it to do with the Secretariat that he is explaining, or what they have provided in the Memorandum so that we get the understanding? Because they provided a Memorandum to this Bill that we are considering, and when we ask for clarification, he gets up by first asking us whether we understand the English language.

Mr First Deputy Speaker: Hon Member, help the House to agree with you. You can refer to the specific provision in the Memorandum, and then relate it. Then you carry the entire House along.

Mr Poku-Adusei: Mr Speaker, I think if we go with clause 12 of the Memorandum, as it is explained, then we do not have any challenge. It is on page iv

Mr First Deputy Speaker: If you read clause 12, it says:

“Under the *clause*, the Authority is responsible to the President, who may in writing, designate a minister or any other person to perform functions assigned by the President. The Minister or the person designated is required to carry out the directive of the President.”

That is what you are talking about. Let us go back to clause 12 and address your concern.

Mr Poku-Adusei: Mr Speaker, Clause 12, which my Colleague raised, states: “The Authority is responsible to the President.”

Then we asked the Chairperson of the Committee to provide clarity. In the clarity that was provided, he totally departed from the Memorandum, and we heard it. This is a House of records. So, I want to find out if we should take his explanation or what the Memorandum says.

Mr First Deputy Speaker: What clarity has he provided?

Mr Poku-Adusei: He said that the 24-Hour Economy has already created a Secretariat, and the Secretariat is responsible to the President. But when you read clause 12, it is clear that the Authority itself is directly responsible to the President, and in the President exercising that function—Now there is a provision there for the designated Minister to carry out the functions on and on. So, we want to hear from him whether his explanation is what he would truly want or take all what the memorandum provides, because the man does not talk about anything secretariat.

7:30 p.m.

Mr First Deputy Speaker: Do you have a problem with what is contained in the Memorandum and the clause?

Mr Poku-Adusei: No.

Mr First Deputy Speaker: You only have a problem with the explanation of the Chairperson of the Committee?

Mr Poku-Adusei: Yes.

Mr First Deputy Speaker: All right. Clearly, when you are making a law and you have a problem with the provisions of the law, the provisions of the law which is in writing, takes primacy over whatever explanation that will be given. So, if you

have a problem with the provision as it is, raise it.

Mr Boamah-Nyarko: Mr Speaker, I asked the question because this is a law we are enacting, and for every Executive oversight, the President, in coming to this House, should clearly know which Minister or Ministry he wants to drive the 24-Hour Economy. But as at the time this Bill was brought, there was no Executive clarity as to which Minister the 24-Hour Economy Board is going to report to. Then it means that there is already confusion in the mind of the President—

Mr First Deputy Speaker: Hon Boamah-Nyarko, why are you making me speak so much today?

Mr Boamah-Nyarko: Because we are passing the 24-Hour Economy Authority Bill.

Mr First Deputy Speaker: For us as Members of Parliament, when we are making laws, we do not make policy. We make law to back the policy and your Brother has already quoted from the Memorandum. So, it is only when the provisions of the law depart from the policy, then you can raise an issue. But apart from that, all that you are raising, with all due respect, is a figment of your own imagination—I use the word imagination.

Mr Boamah-Nyarko: Mr Speaker, no, I am not offended by the English. I am a student of a Adisadel College so I am not really bothered about the English. My concern, which was what we expressed and I have the right to express my concerns and views on it even if it departs from the Memorandum as an individual who is contributing to the enactment of the Bill, so that subsequent times, whoever is listening

to it, can also be guided; the Executive, the House, and the Leader—

Mr First Deputy Speaker: I am again doing this because you are my very good Friend and a first-timer. When you are debating the principle at Second Reading, you can make this argument. But when it comes to a consideration of a Bill, you make proposal for deletion, you make proposal for addition, you make proposal for alteration. You do not argue at the Consideration Stage of a Bill as if you are debating the Bill at Second Reading. So, there is no difference between what you are doing and what is done at the Second Reading.

Mr Boamah-Nyarko: Mr very good Friend and First Deputy Speaker, I am guided accordingly. Thank you.

Mr First Deputy Speaker: You are welcome.

Yes, Dr Kabiru Mahama?

Dr A. K. T. Mahama: Mr Speaker, the proposal I have under clause 12 is to *delete* the whole of that particular clause. My reason is that, in this particular Bill, when it comes to reporting, it has stated that the Authority will be reporting to the Minister for Finance and the President. Everything in this Bill, the spirit and the letter of this Bill clearly states that it is supposed to be under the Ministry of Finance. If we look at the functions of the Authority, if we read through the reporting channel, if we look at even the approval of financing, it is clearly situated within the Ministry of Finance. Now if we leave it in the current form in terms of clause 12, we are going to create a difficulty in terms of oversight by the Legislature.

The difficulty is going to be that, while the Authority is going to be under the Office of the President, we would be wondering whether or not the Minister for Finance, or the Minister that may be appointed by the President, different from the Minister for Finance, is going to be reporting to us on the matter of the Authority. And if we do not synchronise what appears to be an inconsistency, we would be difficult having oversight of the Legislature over this particular Authority. That is why I humbly submit that we let this whole clause—or as Mr Speaker, you are directing that it be referred to the Winnowing Committee. If we are still going to take it to the Winnowing Committee, we should probably consider that thoroughly. But the current edition is more absurd and it creates confusion than it is supposed to bring clarity—

Mr First Deputy Speaker: Dr Kabiru Mahama, have you adverted your mind to Articles 82, 83, and 84 of the Constitution regarding which Minister oversees National Security?

Dr A. K. T. Mahama: Well, Mr Speaker, I will be guided. But the Security and Intelligence Agency Act, 2020 (Act 1030), clearly provides that there must be a minister responsible for National Security which we argued sometime in the past that if the President appoints a minister without clearly appointing a Minister for National Security, it is in violation of that statute. So, in the current Government, that is why it has been annexed to the Ministry of the Interior.

Mr First Deputy Speaker: Is there any provision in the Constitution that says so?

Dr A. K. T. Mahama: Mr Speaker, I cannot get any provision in the Constitution that says so—

Mr First Deputy Speaker: It is because there is no provision. The President is the Chairperson for National Security. The President may choose to designate a minister. He has the power. So, when the President decides to designate the Ministers for Defence, Education, or the Minister for the Interior, so be it. So here, they are placing the 24-Hour Economy Authority under the President, giving the power to the President to designate a minister. So, what is wrong with it?

Dr A. K. T. Mahama: Mr Speaker the difficulty is as I said, we shall get to know. We are asking the Minister for Finance to report, and the reports—*[Interruption]*—Not the payment of allowance. Read the Bill under annual report. Please, before you respond, read the whole Bill. When you go to annual report—

Mr First Deputy Speaker: Yes, what does the annual report say?

Dr A. K. T. Mahama: Mr Speaker, it says in clause 24 that:

- (1) “The Board shall within thirty days after the receipt of the audit report, submit an annual report to the President and the Minister responsible for Finance, covering the activities and operation of the Authority for the year in which the report relates.”

And it continues.

- (2) “The report shall include:

- (a) the report of the Auditor-General;
- (b) an assessment of the targets of the Authority;

(c) a summary of the challenges faced by the Authority and feedback on the activities and operations of the Authority from stakeholders; and

(d) recommendation to improve on the efficient and effective performance of the functions of the Authority”.

(3) “The Minister responsible for Finance shall, within thirty days after the receipt of the annual report, submit a report to Parliament with a statement that the Minister responsible for Finance considers necessary.”

Mr First Deputy Speaker: So, I agree with you if you come to clause 24, it should read “a minister designated by the President”. So, I will agree with you on clause 24 but to say that clause 12 be deleted, I disagree.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, we do not have an amendment before us, so, Mr Speaker, if you can put the question, we can proceed.

7:40 p.m.

Mr First Deputy Speaker: Dr Kabiru, do you still want the provision deleted in view of the explanation given?

Dr Mahama: Mr Speaker, in the spirit of the guidance you have given, that the concerns may be reflected in clause 24, I will abandon the proposed amendment.

Clauses 12 and 13 ordered to stand part of the Bill.

Clause 14—Functions of the Chief Executive Officer

Mr S. Mahama: Mr Speaker, I beg to move, subclause (1), paragraph (a), line 2, *delete* “affairs of the”, and the new rendition will be, “the Chief Executive Officer is responsible for the day-to-day administration of the Authority.”

Question put and amendment agreed to.

Clause 14 and ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, Hon Member?

Alhaji Sulemana: Mr Speaker, even though you have already—

Mr First Deputy Speaker: You would need to bring a Motion to reverse my decision.

Alhaji Sulemana: No, far from that. Just to raise my concern for the records. I thought that there would have been an opportunity for the appointment of a Deputy CEO because, Mr Speaker, this is going to be a very important Authority. If we look at the mandate of this Authority, it will require a deputy to support the CEO in the administration.

Mr First Deputy Speaker: Well, you have made your point. So, his concern is that the policy that came before us did not make provision for the appointment of the Deputy CEO. But once the Bill has been introduced, it is in the domain of Parliament. So, he is suggesting that we introduce a Deputy CEO.

Chairperson of the Committee?

Mr S. Mahama: Well, Mr Speaker, once there will be a Second Consideration, we may want to defer this.

Mr First Deputy Speaker: Very well. Yes, Hon Jerry Ahmed.

Mr Shaib: Mr Speaker, if you ask me, I will tell you honestly that there should be no room for deputies; they will cause problems. They will think that they have the same remittance powers as him. And they will end up not doing anything. If we want to save some money, take away the deputies and allow whoever is going there to function properly. Unless they want to create one job, three shifts.

Mr First Deputy Speaker: Yes, Majority Leader and Leader of Government Business.

Mr Ayariga: Mr Speaker, I think I will urge my Colleague to drop that because it is not part of the policy proposal. The President shall, in accordance with Article 195 of the 1992 Constitution, appoint other staff of the Authority. There is an opportunity for others to be appointed to assist with the work if the President deems it fit. I think we should leave it the way it is.

When we legislate deputies, it creates problems, especially for these agencies. When we appoint a chief executive, we appoint a deputy chief executive. It tends to create friction. I agree with Hon Shaib. In any case, the policy came without a decision to have a deputy so I think we should drop it.

Mr First Deputy Speaker: But in the past, we have been creating a position for two deputies.

Mr Ayariga: In fact, I know of those who did three deputies.

Clause 16—Secretary to the Board

Mr S. Mahama: Mr Speaker, I beg to move, subclause (2), paragraph (c), *delete* “on the advice of” and *insert* “or”. The new rendition will be:

“The board shall appoint a secretary to the board. The secretary shall perform any other function that the board or the chief executive officer may direct.”

Mr First Deputy Speaker: Yes, Hon John Darko.

Mr Darko: I will yield to my Brother.

Mr Boamah-Nyarko: Mr Speaker, I want to comment on the proposal made by my Colleague and then make a counter proposal. The rendition reads: “the secretary to the board perform any other function that the board, on the advice of the chief executive” I am not sure I got it right. Could Hon S. Mahama state it again? I do not want to misquote what he said.

Mr S. Mahama: The proposed amendment is to *delete* “on the advice of” and *insert* it with “or”. So the new rendition will be.

“The board shall appoint a secretary to the board. The secretary shall perform any other function that the board or the chief executive officer may direct.”

Mr Boamah-Nyarko: Mr Speaker, in this House, we have made the provision that the secretary to the board should report to the board directly. So, this provision, which is asking the secretary to perform any other function that the board or the chief

executive officer may direct, may lead to some absurdity. Because in the event where the board give a directive to the secretary of the board, and the chief executive also gives a contrary position or direction. What becomes the situation?

When it comes to a secretary to the board, the direction should be to the board, not “or” the advice of the chief executive.

Mr First Deputy Speaker: Hon Shaib.

Mr Shaib: I agree with my Colleague, and just to also say that the reporting line should be to the Board Chair.

7:50 p.m.

Mr First Deputy Speaker: So, give us a rendition.

Mr Boamah-Nyarko: Mr Speaker, I would go with the old rendition, that is “perform any other function that the Board may direct”. I so submit.

Mr First Deputy Speaker: Yes, Chairm of the Committee?

Mr Mahama: Mr Speaker, I think I am amenable to this to take off the ambiguity.

Mr First Deputy Speaker: So, do the needful, withdraw your amendment.

Mr S. Mahama: Mr Speaker, my amendment will still be re-amended. Indeed, we will *delete* “on the advice of”, but we will *delete* the “Chief Executive Officer”.

Question put and amendment agreed to.

Mr Darko: Mr Speaker, with respect, on clause 16(1), it reads: “The Board shall

appoint a Secretary to the Board.” I will propose, and Mr Speaker, if you would indulge me, that we include that “The Board shall, subject to the Companies Act, Act 992, appoint a Secretary to the Board”.

Mr Speaker, I am saying this because the Companies Act, 2019 (Act 992), section 211, lists the qualifications of a Secretary, and then even goes ahead, in section 212, to list the functions. So, if the Secretary is appointed —

Mr First Deputy Speaker: Does the Companies Act apply to the Authority?

Mr Darko: Mr Speaker, you may want to direct me on that, but I believe that all Secretaries to both are subject to the Companies Act, but I am subject to your direction.

Mr Boamah-Nyarko: Mr Speaker, normally, when it comes to the appointment of Secretary to the Board, it is almost always the Board appointing on the advice of the Chief Executive because the Chief Executive would be working hand in hand with the Secretary to the Board. So, you may reference other Acts, but I know on several fronts that the appointment of a company secretary is “the Board may appoint a Secretary to the Board on the advice of the Chief Executive.”

I so submit.

Mr Darko: Mr Speaker, based on the question you asked, I am also curious if we are making a case that the Authority is not subject to the Companies Act, is it to say that the qualifications as the law requires will not be applicable to a secretary appointed to serve? That cannot be the case. So, I am surprised that the Hon Leader seems to suggest that the Act 992 does not

apply here. Qualifications of secretaries to any Board must be subject to Act 992. So, could it be the case that the Board will appoint somebody who is not qualified per Act 992? That is the question I believe you may want to respond.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, I think you gave him some guidance. Now, an Act which sets out how companies are to be set up, the boards, and then the secretary, and then it sets out the qualifications for secretaries. Here, we are dealing with a statutory body, an Authority being established by Parliament. It is not a company. So, we cannot import the qualifications for a company secretary into the Board of an Authority that is being established, and that is the guidance that Mr Speaker gave. You should understand that this Authority is not going to be driven by private interest.

A company may end up listing at the Stock Exchange, and so regulators are interested in the quality of people who put themselves forward to try and run people's businesses and manage their money, their resources *et cetera*. Here, it is a political thing in the sense that it is the President who is setting out to achieve a governance objective, and that is why he is appointing his Chief Executive and the Board, and the board members are being told that they can also appoint a secretary to assist them to basically perform the functions of making sure that meetings are convened, keeping records of the meetings, and then communicating decisions of the Board.

So, I believe that they will look for people who are competent to carry out those functions. If they fail to do that, they will

suffer politically because they will have an incompetent Authority, because it is served by an incompetent board, since it has a bad secretary that makes the board inefficient, and there will be a political price to pay for that.

So, let us just leave it as structured.

Mr First Deputy Speaker: I will put the question on —

Mr Boamah-Nyarko: No, we finished 16(c). I was commenting on clause 16 (1), where I said “the Board shall appoint a Secretary to the Board on the advice of the Chief Executive”.

Mr First Deputy Speaker: Well, it is for the consideration of the House. Let me hear from Mr Sulemana.

Alhaji Yusif Sulemana: Mr Speaker, I do not think that we should tie the hands of the Board and suggest that the Chief Executive should be the one recommending to them. The point is that no Board will appoint somebody who will not be competent enough to be able to, as it were, perform the functions that are stated here. So, there is no justification that we should allow the Chief Executive to be the one recommending to the Board.

So, for me, I think that the rendition that we have should stay.

Mr Boamah-Nyarko: So, Mr Speaker, I think the proposal is not for the Chief Executive to recommend. I said on the advice, but I do not have a problem abandoning the proposal to proceed.

Mr Ayariga: The Chief Executive is already a member of the Board, so he will be there to advise them. He is on the board,

and he is there to advise them. So, if his concern is advice, then he does not have a problem, because they will get the advice.

Mr First Deputy Speaker: But he is also part of the appointing Authority, because the law does not say the Board Chair. It says that “the Board”, and he is part of the Board. So, how can he be part of the Board and again come out as a member of the Board to advise a Board of which he is a member? He is wearing two hats.

Mr Boamah-Nyarko: The Chief Executive wears two hats, as a management head and a Board Member.

8:00 p.m.

Mr First Deputy Speaker: The Act of the Board would include the Chief Executive. So he is part of the decision-making body.

Clause 16 ordered to stand part of the Bill.

Clause 17 — Internal Audit Unit

Mr S. Mahama: Mr Speaker, I beg to move, subclause (5), line 3, after “copy”, *delete* “each”.

Mr Speaker, the new rendition will be,

“the internal auditor shall, in accordance with subsection 4 of section 16 of the Internal Audit Agency Act, 2003 (Act 658) submit a copy of the report prepared under this section to the chairperson of the Board.”

I so submit, Mr Speaker.

Question put and amendment agreed to.

Clause 17 ordered to stand part of the Bill.

Clause 18 — Funds of the Authority

Mr Poku-Adusei: Looking at the object of this Bill, “the functions of the Bill”, and what we want to achieve as a nation with this Bill, I want to propose that clause 18 (b), the funds of the Authority, should automatically exclude loans. Mr Speaker, the objective of this 24-hour economy is not to burden the state with loans. It is rather intended to take out from loans to a 24-hour economy where the economy will be self-sufficient.

Mr First Deputy Speaker: Hon Members, let us do some exercise.

Go back and look at clause 1 of the Bill. What does clause 1 say?

Mr Poku-Adusei: Clause 1, “Establishment of the 24-Hour Economy Authority.

Mr First Deputy Speaker: Read clause 1(1).

Mr Poku-Adusei: Clause 1(1). “There is established by this Act the 24-Hour Economy Authority as a body corporate.”

Mr First Deputy Speaker: So, why would you want to make a law and deny a body corporate from taking loans? A body corporate is a juristic person.

Mr Poku-Adusei: Mr Speaker, I am not denying it, but Mr Speaker, let us be—

Mr First Deputy Speaker: My Brother, on this occasion, you just want to be an eternal litigant. Resume your seat.

Mr Poku-Adusei: No, not necessarily.

Mr First Deputy Speaker: Hon Members, resume your seat.

I do not think it will accord with common sense and reason to establish a 24-Hour Economy Authority as a corporate body, and when it comes to the sources of funding, we deny a corporate body, a juristic person that we are creating, the power to access loans. For me, it does not accord with common sense and reason. I am doing this because the Hon Member is a lawyer, and then I expect the Hon Member to know the legal position of creating a corporate body. A legal position of creating a juristic person.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, let me just explain that part of the model of the 24-hour economy is to pool partnerships and raise funds to invest in certain critical ventures. The Authority, in some instance, will be required, not just to take a loan by itself, but it can be part of a venture in which they will have to take a loan, and all of them will be responsible for the loan. I do not think that we can divorce the exercise that the Authority is going to engage in from taking of loans. It is not going to be possible. Let us take my earlier example about developing the Volta corridor, and it becomes necessary to develop the Lake Transport System. The 24-hour Economy Authority can raise loans to work with the Lake Transport Company to purchase a fleet of vessels that will ply that route in order to aid the agricultural activities that will be taking place along those routes to support evacuation *et cetera*.

So, taking loans will be one of the activities, because we are also supposed to benefit from returns on investments. If they have not taken loans to invest, how are they going to benefit from the returns? Why are

they not saying that we should not allow the Authority to benefit from returns on investments?

Moneys approved by Parliament may not necessarily be loans. They could be simple budgetary allocations. They could also be loans taken by the Government of Ghana and given to the Authority. But there is a category of loans where the Authority itself can deal directly with financial institutions and take those loans. That is why this one is being made explicit, so that the Authority is not constrained, and that any time that they have to take a loan, they will have to come to this House for authorisation. That is the object of this clause so that taking a loan is part of the things that they can do. I beg you, let us make progress.

Mr First Deputy Speaker: Hon Members, this is very novel in the legislative process. The whole world is listening to us. On one breath, we are making a law to say that we are establishing a corporate body. Let us try as much as possible to avoid this kind of deliberate in our legislative process. We cannot say we have created you as a corporate body, juristic person, yet I am denying you the power to take a loan. It is never done anywhere. So, sometimes, the deliberate nature of it is clear for everybody to see. We should try as much as possible to do it in a way that glaringly, will not be seen that this is the game that we are playing.

Mr Poku-Adusei: Mr Speaker, with all humility, I am not playing a game. I was coming from the purposive approach when it comes to interpretation and what this Bill is seeking to achieve. I averted my mind to section 3 that we have done, Functions of the Authority. There are so many functions from paragraph (a) to (m). I did not see any

of these functions that would require the Authority to assess a loan.

Mr First Deputy Speaker: Do you agree with me that in law, when we create a corporate body, it is a juristic person just like a human being?

Mr Poku-Adusei: Mr Speaker, 100 per cent.

Mr First Deputy Speaker: Can we make law based on the circumstances, based on the functions that you perform, that you cannot take a loan?

Mr Poku-Adusei: Oh, yes. If it is intended to achieve a purpose.

Mr First Deputy Speaker: What kind of law would that be? Please, I think we have to make progress. I will put a question on Clause 18. There is nothing ambiguous about Clause 18.

8:10 p.m.

Clauses 18, 19 and 20 ordered to stand part of the Bill.

Clause 21 — Assumptions from taxes

Mr Boamah-Nyarko: Mr Speaker, I am a bit concerned about the provisions of clause 21, which seeks to exempt the Authority from the payment of taxes that the Minister for Finance may in writing, determine with the prior approval of Parliament. We already have the Exemptions Act, 2022, Act 1083 as rightly indicated here, which gives the Minister for Finance that authority to make that proposal

to Parliament. I am just interested in why we want to bring this back under this provision. I do not know if the Chairperson of the Committee can explain this.

Mr First Deputy Speaker: Chairperson of the Committee, they want you to specifically explain. It is clear though, but explain.

Mr S. Mahama: Mr Speaker, too much meat does not spoil the soup. It is for emphasis, just so we know that it is also in this law.

Mr First Deputy Speaker: Are you convinced? Very well.

Clause 21 to 23 ordered to stand part of the Bill.

Clause 24 — Annual reports and other reports.

Dr Mahama: Mr Speaker, I have a proposed amendment and it is consequential to the previous discussion in clause 12. By this I am proposing the deletion of “and” after “President” and also deletion of “responsible for Finance” after “Minister”, then *insert* in place of “and”, “or”. And after “there” we *insert* “this”. The new rendition, Mr Speaker, if I may just read:

The Board shall, within 30 days, after the receipt of the audit report, submit an annual report to the President or the designated Minister, covering the activities and the operation of the Authority for the year to which the report relates.

Mr Speaker, I so submit.

Mr First Deputy Speaker: Well, that should be the position. But to say “or” provides an alternative that the President may not receive it. So, we should maintain “and”, and then say “the President and the Minister designate”. So, we say:

“The Board shall, within 30 days, after the receipt of the audit report, submit an annual report to the President and the Minister designated, covering the activities and the operations of the authority for the year to which the report relates.”

Dr Mahama: Mr Speaker, I am guided, so I move that the new rendition should read:

“The Board shall within 30 days, after the receipt of the audit report, submit an annual report to the Minister and the Minister-designate, covering the activities and the operation of the Authority for the year to which the report relates.”

Thank you very much.

Mr S. Mahama: Mr Speaker, I want him to retake that.

Mr First Deputy Speaker: It reads: “The Board shall within 30 days, after the receipt of the audit report, submit an annual report to the President and the Minister-designate.”

Mr S. Mahama: So, he said “the Minister and the Minister-designate”.

Mr First Deputy Speaker: “the Minister-designate”

Mr S. Mahama: So, Mr Speaker, your rendition is now –

Mr First Deputy Speaker: That is what we are putting the question on.

Mr Richard Acheampong: Mr Speaker, I am kind of confused here. This is because reading from clause 23, the Bill says “audit and account and forward a copy each of the audit reports to the Minister responsible for finance and the Board.” –

Mr First Deputy Speaker: So, what will happen is that consequentially, the Minister for Finance should read “Minister-designate” because of clause 12 and the fact that “Minister” has not been interpreted in the law, so you cannot take it to be the Minister for Finance.

Mr R. Acheampong: But the sponsors of the Bill are so specific, and they have mentioned the Minister for Finance, so why do they want to change it.

Mr First Deputy Speaker: Then there is a problem with clause 12. Because clause 12 says “Minister designated by the President”. So, if it is the Minister for Finance, we should say “Minister” then go to the interpretation column to go and define the “Minister” to mean Minister for Finance.

Mr Ayariga: Mr Speaker, there is no conflict between clause 12 and the clause that we are looking at. Now, clause 12 (2) simply says “the President may in writing designate a Minister or any other person...” “Person” – so, it could even be a non-Minister “to perform functions assigned by the President.”. So, the assumption that the President is delegating to a Minister a supervisory responsibility on the basis of clause 12 is not well-founded.

In the case of clause 24, we are dealing with just reporting. Clause 23 talks about

financial reporting and clause 24 talks about general reporting. So, the idea is that the Minister for Finance is a critical stakeholder in terms of financial accountability, because he is going to be advancing money to the Authority. So, let him have the report. It is not a conferment of Ministerial oversight to the Minister for Finance. So, again, we cannot conclude that by asking him to present a copy of a report, we are conferring on him responsibility.

That is why the clause says that the report should be given to the President. This is because from the beginning we said that the Authority is answerable to the President. But then also, the Minister for Finance should also be a recipient of the report, simply because of the critical role that the Minister for Finance plays in making money available to the Authority. So, I do not see contradictions in any of these arrangements that we have made.

8:20 p.m.

Mr First Deputy Speaker: Hon Majority Leader, within the meaning of Clause 12(3), which says: “The Minister or any other person...”, who is that Minister? Is he a Minister different from the Minister for Finance?

Mr Ayariga: It could be, for instance, that the President will find out that this particular project that the Authority is overseeing, the most critical Minister is the Minister for Trade, Agribusiness, and Industry. So, the President may designate that Minister and say, on this issue of value chain development project, he wants the Minister for Trade, Agribusiness, and Industry, to anchor—

Mr First Deputy Speaker: Leader, no. He is talking about Executive oversight. It

is in relation to the Executive oversight that a Minister is designated. This one is not talking about a specific project; to say that this project relates to agribusiness, so the Minister of Trade, Agribusiness, and Industry is going to be responsible for this. If there is another project dealing with railway, then we say the Minister for Transport is in charge of it.

For me, the understanding is that the President will designate a Minister. So, who is that Minister designated? Will the President designate a Minister to exercise the Executive oversight, yet the report and other things will go to the Minister for Finance if that Minister happens not to be the Minister for Finance? In this context, if the Minister designate is going to be a Minister for Finance, please let us say so in the law.

Let me hear from the Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, the rendition in clause 24 is very basic and cuts across. The Public Financial Management Act, 2016, makes it mandatory for covered entities to submit annual reports to the Minister for Finance. Now, we make this provision to add the Minister responsible for a particular Ministry to the Minister for Finance so that those reports are given to the two Ministers.

In this particular case, because we said oversight is with the Presidency or a Minister or a person that he will designate, we can either change the President. The only difference we have here is the “Minister for Finance”. The Public Financial Management Act, 2016 says that annual reports must go to the Minister for Finance and the Minister responsible for the particular Authority.

In this case, the “President” was put in the clause because we contemplated that oversight is with the President or any person or Minister that he designates. So, we can tweak clause 24 to say: “The Board shall, within 30 days after receipt of the audit report, submit an annual report to the Minister designated...”, if we want to replace the President. But as for the Minister for Finance, that is what the law says under the Public Financial Management Act, 2016. So, the only change will be going straight to the President or whoever he designates to be. In this case, the Minister designate —

Mr First Deputy Speaker: So, who gives the policy directives?

Mr S. Mahama: The President.

Mr First Deputy Speaker: Yes. Majority Leader, let me hear you before.

Mr Ayariga: Mr Speaker, the object of this Bill is to place oversight in the hands of the President. That is clear in every respect. The rendition of clause 12, if you observe, is not the same as the provisions that we have in other Bills, where we say that the President may assign a Minister to be responsible for an agency. That one expresses that the President may assign a Minister to be responsible for an agency. If you look at clause 12(2), it says: “the President may, in writing, designate a minister or any other person.” We have never said that the President can appoint any person to oversee an agency. It is always a Minister that we say the President can appoint to oversee an agency. We always say so in view of the fact that the President cannot come to Parliament himself to answer questions. That is why we put a Minister so that when it comes to relating to Parliament, the Minister has standing to

come and answer questions, to come and present Papers and reports on behalf of that agency. That is why we always do it that way.

What I see here, and my understanding — unless I go back and check, and there is a completely different thinking, is the fact that the role of the Authority is largely a coordinating role. I indicated from the beginning that a lot of Ministers are involved in this exercise. A lot of agencies will be involved in this exercise. That is why there is a special provision that says that the President may, in writing, designate a Minister or any other person to perform functions assigned by the President. We have not been told exactly what functions they will be. Let us leave it that way.

Clauses 24 and 25 are simply reporting obligations. The report is to go to the President and the Minister of Finance. I think that is the whole idea. If the President takes the report and he has designated somebody to perform some function, and he wants to forward the report to that person, so be it. If he has designated a particular Minister to perform some functions, and he thinks this report is useful for that Minister, he refers it to that Minister. So, let us leave it as simple as it has been crafted, and then make progress.

Dr Mahama: Mr Speaker, when I first broached this issue in respect of Clause 12, I had envisioned what we are discussing now. This will be the first time, unless of course, independent constitutional bodies that we have within the structure of this House, that a Minister will be responsible for an Authority, and a different Minister will be reporting to Parliament on the same Authority. This is going to be the first. I do not want us to create a situation where we would have a different Minister responsible

for an Authority, and a different Minister is required to come and report, and the report to be submitted is not just financial.

If you read Clause 24, it is clear that it is not only financial. The Minister would accompany the report with a statement, including the challenges of the Authority. Mr Speaker, how can the Minister for Finance be talking about the challenges of an Authority that he does not have oversight over? Unless, of course, they are saying that the President will not appoint a Minister responsible for the Authority, and the President can decide to exercise the power of reporting to any Minister.

In this case, you contemplate the Minister for Finance. Otherwise, if we do not tidy things up with the proposed amendment, we are creating confusion. This is going to be the first, unless, of course, the Chairperson of the Committee reports to this House that there is any single Bill or any single Act that the Minister who has oversight on that agency is different from the Minister who is reporting to Parliament. We should not just create anything and go away as Members of Parliament.

Mr Speaker, with the greatest respect, we will need to tidy these things up. If we are not sure, let us defer it to the Winnowing Committee to tidy these things up. Otherwise, it is going to create some confusion.

Mr First Deputy Speaker: Hon Members, if you look at the marginal notes, it says: annual reports and other reports. So, because of other reports, it goes beyond just financial. What Dr Kabiru is saying is very true. If care is not taken, we will have the Minister for Finance playing a role in this Bill, and we will also have a Minister designated by the President. **So, which of**

them will be responsible and answerable to this House? Is it the Minister for Finance or the Minister designated? So, I am inclined to also declare clause 24 for winnowing.

Yes, Hon Majority Leader?

8:30 p.m.

Mr Ayariga: When it comes to the reporting rendition, I honestly do not see a problem. But I think that there is some case to revisit clause 12 to confer with the proponents of the Bill to have a sense of what the contemplation is when it comes to 12 (2). What really were they thinking when they crafted 12(2)? Because reading it on the face does not confer ministerial oversight on a minister in relation to the Authority. It does not. But Parliament is, in the way that it works, used to have a minister that comes to answer in relation to whatever that Authority is doing. And it seems that there is a vacuum in that regard and that is something that we ought to try and then address.

So, we can still take clause 24 and then contemplate some revision when it comes to Second Consideration. We will look at clause 12 and speak to the Attorney-General and Minister for Justice and see if we can address that.

Mr First Deputy Speaker: So, that if it will have impact on clause 12, we will do that.

Mr Ayariga: If it does, then we can also take it during Second Consideration.

Mr First Deputy Speaker: Very well. Accordingly, clause 24 is deferred.

Yes, Hon Majority Leader?

Mr Ayariga: My position is that clause 24 is not really a problem. But if we go to Second Consideration Stage and clause 12 changes, we can also revisit clause 24.

Mr First Deputy Speaker: We have to defer consideration of clause 24 so that when it is adequately considered, at the point of considering it, whatever other provision that will have impact on clause 24, we will look at it together.

Yes, Hon Habib Iddrisu?

Alhaji Habib Iddrisu: Mr Speaker, I just want to speak in support of what the Hon Majority Leader was proposing. Save that, whatever proposal might happen in clause 24, might have an effect in clause 12. Mr Speaker, even the way the Bill has been introduced into this House might also be problematic. Because you are talking about the Attorney-General and Minister for Justice being the one responsible for the entire 24-Hour Economy. He moved the Motions for the Second Reading, and if the decision of the Winnowing Committee on clause 24, have an effect on clause 12, inadvertently, we are going to have a new introduction. If it is the case that it will be under the Ministry of Finance, then it will be finance that will take care of it.

So Mr Speaker, I think that we should just suspend the entire Bill at this stage and refer it for further deliberation to—

Mr First Deputy Speaker: Hon Habib Iddrisu, I completely disagree with you. Whatever clause that is to be deferred, we would defer it. We are left with two or three clauses. So, Hon Habib, with all due respect, today, give it to me.

Alhaji Habib Iddrisu: Mr Speaker, with respect, no matter what we are going to do,

we will definitely come back to Second Consideration. No matter what. So, whether we are rushing it or not, we will bring the Bill back to Second Consideration.

Mr First Deputy Speaker: Hon Habib, let me ask you a simple question. Without completing Consideration, can you come to Second Consideration?

Alhaji Habib Iddrisu: Mr Speaker, by standing down clause 24, anything you do now will not get the Bill completed today. So, it is better we do the right thing.

Mr First Deputy Speaker: No, the other provisions are consequential provisions. For instance, we are left with Regulations and Interpretation then we are done.

Alhaji Habib Iddrisu: Mr Speaker, I am aware that due to some of the issues on clause 12, Members are ready to introduce new clauses to this matter. So, as Whip, I am drawing your attention to certain issues.

Mr First Deputy Speaker: So, when we get there, let them introduce it.

Clause 24 deferred.

Clause 25 — Regulations

Mr First Deputy Speaker: Why? You want to speak to a deferred clause?

Mr Boamah-Nyarko: No, Mr Speaker, with the greatest of respect, I want to introduce a new clause 25 before we go to Regulation, if I have your permission. Mr Speaker, we are passing—

Mr First Deputy Speaker: Hon Boamah-Nyarko, let me use the opportunity to again say that when you have a new clause to introduce, the new clauses are

introduced at the end. That is the practice. Is that not a new provision? Then we will direct the drafters to rearrange the clauses. If the new provision is carried out, then we direct the drafters to rearrange the numbering.

Clause 25 — Regulations

Mr Shaibu Mahama: Mr Speaker, clause 25(1) line 3, after “effective”, *insert* “efficient”. I so move, Mr Speaker.

Alhaji Habib Iddrisu: Mr Speaker, I just want to draw your attention for some guidance based on the matter, Hon Boamah-Nyarko raised under Standing Order 170(1)(f).

Mr Speaker, Standing Order 170(1)(f) states that:

“the consideration of the Schedule, and the Long Title shall follow the consideration of clauses, including new clauses, and the procedure prescribed in this Order shall be followed with the necessary modifications”.

Mr First Deputy Speaker: So, that is the correct position of the law. When the clauses are done, before you come to the Long Title of the Bill, that is the stage that the new clauses are introduced. So, you take the new clauses before you come to the Long Title of the Bill. So, what you have read is not different from what I have said.

Alhaji Habib Iddrisu: So, Mr Speaker, in this case, you have the view that he should stand down his new provisions and—

Mr First Deputy Speaker: That is what exactly I have said, that at the end—

Alhaji Habib Iddrisu: Mr Speaker, we just want to get you clearly.

Mr First Deputy Speaker: Hon Habib, you have been in this House for some time. When we are doing a consideration of a Bill, after the clauses are done, it is then that you come to the Long Title. So, before coming to the Long Title, if there are new clauses, in line with the provision that you have read, that is the point that you take the new clauses.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, we have just started implementing the 24-Hour Economy. Why are they in a hurry to go home? *[Laughter]* Mr Speaker is ready to wait. He has been sitting there for 12 hours. He just wants to do another 12 hours to add. So, Mr Speaker, we are left with just two clauses. Let us just take the two clauses, because we will definitely come back to Second Consideration. The two are standard clauses.

Question put and amendment agreed to.

Mr First Deputy Speaker: There is a further amendment by the Chairperson of the Committee.

8:40 p.m.

Mr S. Mahama: Mr Speaker, there is a second amendment to Clause 25—Amendment proposed – Subclause (2), paragraph (a), line 2, after “Accelerated” *insert* “Export”. The new rendition reads: “The design, duration, content, development and implementation of the 24-hour economy. And the accelerated export development programme.” I so move, Mr Speaker.

Question put and amendment agreed to.

Mr First Deputy Speaker: Hon John Darko.

Mr Darko: Mr Speaker, Clause 25 (2b) reads, “the procedure for the disbursement of an allocation of funds to micro, small and medium scale enterprises.” I want to suggest that we take the funds and make it loans. Since we are going to take loans from agencies or even money from Parliament for these small and medium-scale enterprises. So, in this current rendition, it is possible that these monies may be given out as grants. Unless the Chairperson of the Committee can explain to us the kind of funds we are talking about here, I would suggest that we write loans there.

It is obvious that the regulation is going to deal with loans that will be given to these small-scale companies.

Mr First Deputy Speaker: Yes, Hon Habib.

Alhaji Habib Iddrisu: Mr Speaker, if the Chairperson can try to assist me with the same clause, my Colleague, Hon John Darko, mentioned providing a definition for “other persons”.

“The procedure for the disbursement and allocation of funds to micro, small and medium-scale enterprises, and other persons.”

What is the definition of “other persons?”

Mr First Deputy Speaker: Well, “other persons” are defined in the Interpretation Act. I am not talking about the interpretation of the law. You can get the definition in there. So, Hon Habib, you do not have a problem. I want to get Hon John

Darko clearly. When it differs, they will specify the law; when it is not specified, it means it is not different.

Alhaji Habib Iddrisu: Mr Speaker, I have checked the interpretation session of this Bill, and there is nothing in that definition. I know the Chairperson very well. Other persons could mean members of the Daboya constituency; is that the case?

Mr First Deputy Speaker: Hon Habib, I think you are trying to insult my intelligence in a way because I am not referring to the interpretation of this law. I am referring to the Interpretation Act. I asked you to check the Interpretation Act. So, if you are saying you are looking at the interpretation column of the law, then you are not treating me fairly.

Alhaji Habib Iddrisu: This Bill states that if it conflicts with any other provision, we should apply this Bill. That is what the Bill states in clause 26.

Mr First Deputy Speaker: Is there any provision indicating that the word “person” is different from what is used in the interpretation?

Alhaji Habib Iddrisu: Mr Speaker, that is why I said I needed assistance from the Chairperson.

Mr First Deputy Speaker: I think you need some guidance from Hon Jerry. I would ask Jerry to guide you on this issue.

Alhaji Habib Iddrisu: No, Mr Speaker, because if you come to clause 26, it says that where there is a conflict or inconsistency between the provisions of this Act and other enactments relevant to this Act, the provisions in this Act shall prevail. So, if he gives the definition and it is the

same thing as the interpretation, I do not have a problem. But if he gives a different definition—

Mr First Deputy Speaker: In making law, it is not the Chairperson who provides the definition. When the definition is in the Interpretation Act, you need not bring it here. So, if you are looking for—Will you listen to me for once? If you are looking for an interpretation of a person, I am humbly asking you to look at the Interpretation Act.

Alhaji Habib Iddrisu: Mr Speaker, I think your role is to guide us. I do not understand something; it is within my right to still seek your guidance.

Mr First Deputy Speaker: I am guiding you, but you do not want to accept the guidance. I know exactly what you are doing; kindly resume your seat.

Hon John Darko, what is your issue?

Mr Darko: Mr Speaker, I think the Chairperson is on his feet. He understands exactly what I am asking for. What kind of funds are we giving out? Is it a loan or a grant? My view is that this will be a loan. Because we are going to be taking loans from other places. And we are going to get funds from the public. The question is whether the 24-Hour Economy is designed to disburse funds to people. If we look at the functions, it is not clearly stated.

Mr First Deputy Speaker: Hon John Darko, I think you are completely out of order. Kindly resume your seat.

Yes, Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, I wanted to avert my learned friend's mind to the fact that in section 18—Funds of the Authority,

loan is part of the funds. A loan is a subset of funds.

I want to make a further amendment to 25(1) because—

Mr First Deputy Speaker: Chairperson, hold on. Hon John Darko, when we talk about the funds of an entity, we do not single it out. And in talking about the disbursement of the fund, we do not give it per component. We talk about it in a composite manner. That is why the Chairperson of the Committee referred you to section 18, which talks about the funds.

Therefore, this provision sets out the procedure for the allocation of the funds. So, if you talk about the funds, it is one thing, as in section 18. So, what you are saying—Hon Members, I am restraining myself.

Mr Darko: With the greatest respect, Mr Speaker, what I am seeking to do here is not even really about section 18, the funds of the 24-Hour Economy. I am talking about the money that we are going to give out to the small-scale companies. The question is whether we are giving out loans or giving out grants.

If you read clause 25(2), we are giving out money. That is the money they refer to as funds. The question is whether it will be a loan or a grant. And I believe the Majority Leader understands what I am saying.

Mr First Deputy Speaker: So, what is the marginal note for 25? Is it not a regulation?

Mr Darko: Yes, Mr Speaker.

Mr First Deputy Speaker: Have you seen copies of the regulation before? So, if

this law says that the regulation must set out the procedure for the disbursement and allocation of funds, if there are any specific details, they will be captured in the regulations. But not in this particular law.

So, I am finding it difficult to understand the point you are making.

Mr Darko: Mr Speaker, bear with me. The difference is that the regulation is talking about the procedure for the disbursement. My issue is the disbursement of what? Is it the disbursement of loans?

Mr First Deputy Speaker: That is why they have consistently referred you to clause 18, which deals with the funds. So, the procedure for the use of that particular fund will be regulated. That is why clause 25 says that you must make a regulation. And the regulation must set out the procedure based on which you are going to use that particular fund. So, why would you want any specification, whether it is going to be a loan or something else? Because it is just creating the enabling environment on which the regulation is going to come.

8:50 p.m.

Mr Darko: Mr Speaker, the point here is that clause 25—

Mr First Deputy Speaker: So, Mr Darko, move your amendment.

Mr Darko: So, my amendment for clause 25 (2) (b) is that “the procedure for disbursement and allocation of loans to micro, small and medium-scale enterprises and other persons”.

Mr First Deputy Speaker: Look at the law from page 1 to the Interpretation and

tell me where it talks about the disbursement of a loan.

Mr Darko: If we look at clause 3—
[*Interruption*] Be patient.

Mr Speaker, we have to be tolerant. We are making laws. He cannot sit down and tell us that we are not making sense. He is wrong. He should withdraw that.

Mr First Deputy Speaker: Hon Sulemana, resume your seat. Hon Darko, also resume your seat.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, he has proposed an amendment, so put the question.

Mr First Deputy Speaker: Very well.

Mr Ayariga: I understand the question, which basically is that—[*Interruption*] I am on my feet, it is me.

Mr First Deputy Speaker: Hon Asamoah, you have occupied a very high position in this country. I do not expect you to be making that kind of noise. It is constituting a disorderly conduct.

Mr Ayariga: Mr Speaker, let me just explain. As we speak, they are concerned about whether it is a loan or a grant; we do not know whether it is a loan or a grant. We know that they may disburse funds, and in the interest of transparency and accountability, we are saying that if they are going to disburse funds, then they must set out the procedure for the disbursement of the funds, and the procedure must be captured in the regulations, and those regulations will come to this House to be approved.

So, let us proceed.

Mr S. Mahama: Mr Speaker, I was just trying to draw your attention to the fact—

Mr First Deputy Speaker: Come at Second Consideration.

Clauses 25 and 26 ordered to stand part of the Bill.

Clause 27 — Interpretation

Mr S. Mahama: Mr Speaker, the first amendment under clause 27 is to *delete* “the definition of Minister”. I so move.

Mr First Deputy Speaker: Yes, Alhaji Habib?

Alhaji Habib Iddrisu: Mr Speaker, I think that, as mentioned in clause 25 (2)(b), if the meaning of other persons—

Mr First Deputy Speaker: We do not have a regulation before us. We have a Bill before us.

Alhaji Habib Iddrisu: We have an interpretation on clause 27 so other persons should be defined.

Mr First Deputy Speaker: Hon Minority Chief, my very good Friend, take guidance that “person” has already been interpreted in the Interpretation Act so there is no need to define it here.

Alhaji Habib Iddrisu: Mr Speaker, at the Consideration Stage, rules are relaxed. — *[Expunged by order of the Speaker]* So, I need to know the definition of “other persons.”

Mr First Deputy Speaker: Alhaji Habib Iddrisu, when we speak in Parliament, we are speaking to the whole world, and the Consideration Stage of a Bill is not a joke.

So, I will consequentially order that the definition of “other persons” you claimed to have come Hon Acheampong, is expunged from the records as if it does not exist.

Mr R. Acheampong: Mr Speaker, this is a very expensive joke. I told him the word has already been defined in the Interpretation Act, and he would not understand my point. He is lucky the Legal Education Reform Bill, 2025 is here. He should take advantage. *[Laughter]*

Mr First Deputy Speaker: The proposal is to delete “the interpretation of Minister”.

Hon Members, in view of the fact that we would look at clause 24 and its impact on clause 12, we will leave the definition of a Minister so that when we look at those two provisions, we will see the bearing, and then we can reconcile.

So, Hon Chairperson, will you do the needful?

Mr S. Mahama: Mr Speaker, I am guided to stand that down, while we do the others.

Mr First Deputy Speaker: Very well. So, move to clause 27 (xii).

Mr S. Mahama: Mr Speaker, I beg to move, definition of “24-Hour Economy and Accelerated Development Programme”, paragraph (d), line 1, *delete* “diversify” and *insert* “diversified”.

Question put and amendment agreed to.

9:00 p.m.

Mr Kyei Asamoah: Mr Speaker, under the functions of the Authority, clause 3 (k), proposed the incentive regime applicable to companies operating in the 24-Hour Economy value chain. I am asking if we can define the incentive regime for the purpose of the Bill.

Mr First Deputy Speaker: You are talking with specific reference to which clause?

Mr Kyei Asamoah: Mr Speaker, clause 3 (k). Incentive regime could mean many things at different times.

Mr First Deputy Speaker: Well, I would direct the Draftsperson to look at the definition of “incentive regime”.

Question put and amendment agreed to.

Clauses 27 and 28 as amended ordered to stand part of the Bill.

Mr Boamah-Nyarko: Thank you very much, Mr Speaker. I want to make a new proposal for a clause. Mr Speaker, I want to look at agencies to work for 24 hours. This is a 24-Hour Economy Bill, and it is important that we establish some of the agencies that at least we expect—

Mr First Deputy Speaker: You are my very good Friend, so I will bring you up. Propose your amendment and give the justification for your proposed amendment. But if you do not have the proposed

amendment and you are arguing, it is difficult to understand.

Mr Boamah-Nyarko: Mr Speaker, I am guided. Proposed amendment,

“Agencies to work for 24 hours.

The Authorities shall ensure that the following state agencies should operate 24-hour shift system:

- (a) Drivers and Vehicle Licensing Authority
- (b) Ghana Revenue Authority
- (c) Ghana Ports and Harbours Authority
- (d) Passport Office.
- (e) National Petroleum Authority
- (f) Bulk Oil Storage and Transportation Company
- (g) GoldBod, and
- (h) any other agency as we may establish.”

Mr Speaker, I am making this proposal on very serious grounds that this is a 24-Hour Authority Bill. It will be important that all the agencies that we have indicated prior, that DVLA is supposed to work 24 hours, but we cannot see it actually functioning that way. Ghana Revenue Authority is working 24 hours particularly at the ports, Ghana Ports and Harbours Authority, and the Passport Office. We have been in this House where the Minister for Foreign Affairs has indicated that the Passport Office is supposed to work 24 hours. The NPA among others— The

GoldBod as we know today— As you know, gold mining is all over. So we need a provision to establish—

Mr Speaker, I so move.

Mr First Deputy Speaker: So, by the *expressio unius* rules, if the Hon Member has indicated those institutions, if we apply that particular principle, does the Hon Member think it will help us as a nation?

Mr Boamah-Nyarko: Very much so, Mr Speaker.

Mr First Deputy Speaker: Do you know all the *expression unius* rules?

Mr Boamah-Nyarko: Mr Speaker, you know we are all counsels.

Mr First Deputy Speaker: By express mention of those ones, all others are excluded. That is what the rule says.

Mr Boamah-Nyarko: Mr Speaker, I included any other agency that may—

Mr First Deputy Speaker: If we include any other agency, then it means that all the agencies in this country can operate under 24 hours.

I will give the floor to the Majority Leader.

I will put the question on your amendment, do not worry. Let me hear— I will put the question on your amendment.

Mr Ayariga: Mr Speaker, we are opposed to the proposal simply because it is too limiting. It lacks ambition. Our objective is for the entire economy, the entirety of Ghana, to work 24 hours. For the

Hon Member to list just about five or six organisations and say— If it was about the six organisations, we would not be passing a law establishing an Authority. We are opposed to this. Mr Speaker, put the Question and let us vote on it.

Mr First Deputy Speaker: Yes? Do you have a counter-proposal?

Alhaji Habib Iddrisu: Mr Speaker, not actually, but I want to appeal to the Hon Majority Leader from the angle that he is going. Mr Speaker, I know he is a very good lawyer in good standing. When the Hon Member's Colleague counsel raises issues of this nature, let us interrogate it and not just move into voting. This is because the import of his— *[Interruption]* That is why I invited him to ask him that. I wanted to know the intent and the reason he has made that proposal.

Mr Speaker, when we listen to the Hon Member carefully, he is actually saying that if we have made a document to say we are passing a 24-Hour Economy Authority Bill, we can mention some of the starters, some agencies to start up. It is very important to start up.

When we pass the law like this, and we just do not even mention something, either one or two, not necessarily what he has mentioned— He used the word, “and may”. I do not want the Hon Majority Leader to go through this angle of putting Questions because I do not want to hijack some of the Questions. I want us to have a safe landing.

If he has to withdraw, then he will withdraw. If we have to polish it up, then we polish it up.

Mr First Deputy Speaker: Hon Habib, clearly, you have been in this House for some time. Is that how we legislate?

Alhaji Habib Iddrisu: Mr Speaker, the angle that the Hon Member is coming from, one might differ, but the intent can be polished up. What I am saying is that there is nothing wrong saying that we should start with the National Petroleum Authority, where fuel stations need to work 24 hours. We talk about DVLA, where we can do things 24 hours. The ports working 24 hours. Mr Speaker, this thing is borne out of a vision of our President

Mr First Deputy Speaker: Hon Habib, in the Memorandum of the Bill, is the memo indicating that they are starting from somewhere?

Alhaji Habib Iddrisu: Mr Speaker, there is a history behind it. Our President—

Mr First Deputy Speaker: I think I will have to put the Question. I am putting the Question on the proposed amendment by Hon Boamah-Nyarko.

Alhaji Habib Iddrisu: Mr Speaker cannot put the Question now because we are not properly constituted to put this Question.

There is a proposed amendment on the Floor. The proposed amendment is coming from your Side.

Question put and amendment negatived.

9:10 p.m.

Mr First Deputy Speaker: Any other issue?

Mr Ayariga: Mr Speaker, we are in your hands. We have done more than five hours.

Mr First Deputy Speaker: That brings us temporarily to the end of the Consideration Stage for today.

Mr Ayariga: But let me thank Hon Colleagues for the patience and sitting to assist us have this Bill taken through the Consideration Stage.

Mr First Deputy Speaker: The Consideration Stage has come to an end for today. Hon Leader, tomorrow being Friday—

Mr Ayariga: Mr Speaker, 2 o'clock.

Mr First Deputy Speaker: 2 o'clock? Hon Members, we have done more than five hours. Fortified by Standing Order 56 (2), I will proceed to adjourn the House since same lies within my powers.

ADJOURNMENT

The House was adjourned at 9:04 p.m. till Friday, 6th February, 2026 at 2 o'clock in the afternoon.

Editor's Note

This *Official Report* was corrected by the House on 13th February, 2026.

Column 92, paragraph 3, line 2, “d” was added to “introduce”.